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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL, SABRA, AND REGULAR MEETINGS

November 18, 2025

WEBVTT

1
00:00:07.050 --> 00:00:15.389
Boardroom: Hello, everyone. Good afternoon. I'm calling to order the special meeting of the Berkeley City Council. Today is Tuesday, November 18th, 2025.

2
00:00:15.500 --> 00:00:27.119
Boardroom: And, Clerk, could you please start us off with a roll? Certainly. Councilmember Kesarwani is absent. Taplin is absent. Bartlett is absent.

3
00:00:27.460 --> 00:00:38.509
Boardroom: Traeb? Classon. O'Keefe? Here. Blackaby? Here. Munapara? Here. Humbert? Present. And Mayor Ishii? Here.

4
00:00:39.050 --> 00:00:41.240
Boardroom: Alright, thank you very much.

5
00:00:41.240 --> 00:01:04.300
Boardroom: So, this is a special meeting, so we just have one item on our agenda, the 2024 Police Accountability Board and Office of the Director of Police Accountability Annual Report. And so, I'm gonna just turn it over to you all. Just so folks know, the way we're gonna do this is they're gonna make a presentation, and then we'll ask questions, and then we'll do public comment, if there's any public comments, only on this item.

6
00:01:04.300 --> 00:01:10.080
Boardroom: And then, any comments that we have left will come back to the Council. Okay? Alright, turning it over.

7
00:01:10.120 --> 00:01:28.499
Boardroom: Thank you, Madam Mayor, members of Council, colleagues who are tuned in, Preston and Zoom, and members of the public, we appreciate the opportunity to be here today. My name is Hansel Aguilar, I'm the City's

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Director of Police Accountability. To my right, you have our Chair of the Police Accountability Board, Joshua Caetano.

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00:01:28.500 --> 00:01:33.019
Boardroom: And to my left is, Jose Murillo, he's our policy analyst for our office.

9
00:01:33.020 --> 00:01:43.480
Boardroom: And just tuned in in the office, ready to be on standby with tech support on our end. We have our, investigator, Dan Weinberg, and our data analyst,

10
00:01:43.480 --> 00:01:52.999
Boardroom: Saeed Medi, and we also have, one of our UC Cal, interns for the year, Esther Phan, they're back in the office.

11
00:01:53.000 --> 00:02:05.430
Boardroom: We appreciate the opportunity to come before you. The City Charter in Section 125-16 requires us to do an annual report, and it structures it very specifically, so this is our second iteration under the new model.

12
00:02:05.440 --> 00:02:10.949
Boardroom: And we're going to just outline to you what we're gonna discuss today. Next slide, please.

13
00:02:11.180 --> 00:02:23.190
Boardroom: So, we're gonna do a gentle overview of the PAB and the ODPA's powers and duties, our investigative processes, procedures, complaint data, overview of the PAB's policy work.

14
00:02:23.190 --> 00:02:35.660
Boardroom: our outreach that we've done, in the last year, and we'll discuss the BPD trends and patterns in vehicle and pedestrian stops and other enforcement activities, and also some challenges and recommendations.

15
00:02:37.050 --> 00:02:38.450
Boardroom: Next slide, please.

16
00:02:38.670 --> 00:02:47.040
Boardroom: One of the things that, just a gentle reminder, is important that we have a hybrid system of oversight in here, which is,

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17
00:02:47.180 --> 00:02:53.999
Boardroom: It was purposeful under the, enhanced oversight program, so when we went from the Police Review Commission.

18
00:02:54.000 --> 00:03:17.890
Boardroom: Both the staff and the commissioners were housed under this one entity, the Police Review Commission. Now we have the Police Accountability Board, which is our 9 appointed community members, and the Office of Director of Police Accountability. We're interdependent entities that work together to do, oversight of the Berkeley Police Department. Our jurisdiction is of the sworn police department officers.

19
00:03:17.890 --> 00:03:28.050
Boardroom: The department does have civilian, employees, and our office does not have authority or jurisdiction over, their personnel activities.

20
00:03:28.050 --> 00:03:52.459
Boardroom: Theâ€¦ it's important to note the different, purposes of both the PAB and the ODPA. The PAB isâ€¦ has a broader sort of mandate and policy practices and procedures review, and our chair's gonna go over that and some of the activity they've been doing. Our role as the office, we're the, investigative arm, but we're also the administrative arm of the,

21
00:03:52.460 --> 00:03:58.789
Boardroom: the entity here of the oversight system, and we provide a day-to-day work, that supports the PAB.

22
00:03:58.790 --> 00:04:03.170
Boardroom: And we work together, just checks and balances, between our entities.

23
00:04:03.640 --> 00:04:04.939
Boardroom: Next slide, please.

24
00:04:06.120 --> 00:04:25.179
Boardroom: Hey, good afternoon, Councilmembers. First, I just want to acknowledge and apologize that this report is coming in November 2025, when it is the 2024 annual report. So there may be things that, bridge from 2024, but are still relevant today, just to acknowledge that, up front.

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00:04:25.460 --> 00:04:32.649
Boardroom: In terms of the PAB's powers and duties, we really do have two primary, duties, and one power.

26
00:04:32.860 --> 00:04:57.510
Boardroom: The first duty is to make recommendations on policy, and I think that the Council has seen that, over the course of this year, and I wanted to highlight a few of those things later on in this presentation about what we did in 2024 with respect to that, duty. The second is to make findings on allegations of misconduct, and with that, we pair with the Director of Police Accountability. He presents findings to us, and we make recommendations to the Chief of Police.

27
00:04:57.580 --> 00:05:02.390
Boardroom: And if there's a disagreement, we submit those to the city manager for a final determination.

28
00:05:02.550 --> 00:05:17.919
Boardroom: And our primary power, which is identified in the Charter, is to access records of city departments, to compel attendance of sworn employees of the police department, and to exercise the power of subpoena as necessary to carry out our functions, which includes both our oversight.

29
00:05:17.960 --> 00:05:23.419
Boardroom: Responsibilityâ€¦ all of our oversight responsibilities, including the ability to make recommendations on policy.

30
00:05:25.740 --> 00:05:26.650
Boardroom: Next slide.

31
00:05:31.080 --> 00:05:36.349
Boardroom: And back to me again, our office also has, enumerated powers and duties

32
00:05:36.830 --> 00:06:00.890
Boardroom: One of the things that I just emphasize here, although we are separate entities, our role is also to ensure that the board is being supported. There is a sort of clause in the, in the charter that I think is important to highlight, that the office and director, we shall carry out the work of the board as described therein, and include the day-to-day operations.

33
00:06:00.890 --> 00:06:24.749

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Boardroom: But it also has this, very interesting clause that says the, the operations of the board office and staff. So the board office, it's, it's this very interesting, clause there because, there is no separate board office. The Office of Director of Police Accountability has been the de facto board, staff, so that, has, in, from time to time.

34
00:06:24.750 --> 00:06:34.520
Boardroom: Also limited our ability to, to provide them more, of the sort of support that they need to carry out their important, policy, procedures function.

35
00:06:35.080 --> 00:07:00.060
Boardroom: Additionally, one of theâ€¦ again, I'll emphasize that our personnel investigations is one of our main functions and powers and duties here, and the language here is, timely, thorough, complete, objective, and fair investigations into the complaint. I'll also just take the note here that we did receive some questions, before this meeting, and I'll, be, providing some responses, after the fact.

36
00:07:00.060 --> 00:07:03.939
Boardroom: We're also happy to provide responses to any questions that may come.

37
00:07:03.940 --> 00:07:15.310
Boardroom: From this presentation. But, I highlight there that, that, language of timely, thorough, complete, objective, and fair investigations, because it will be something that will come up later today.

38
00:07:15.770 --> 00:07:37.619
Boardroom: And, the other function of our office is to meet periodically with stakeholders, including but not limited employee organizations representing officers, organizations promoting civil rights and liberties, and organizations representing communities of color, and solicit them, inputâ€¦ solicit their input, regarding the work of the Police Accountability Board and the Officer Director.

39
00:07:40.260 --> 00:07:41.340
Boardroom: Next slide, please.

40
00:07:42.560 --> 00:07:54.510
Boardroom: Okay, and now we're going to give a gentle overview of our investigative, process, procedures, and complaint data. Our, policy analyst, Jose Murillo, is going to just, walk us through that.

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41
00:07:57.590 --> 00:08:05.899
Boardroom: Thank you. Good afternoon, Mayor, council members. As the Director mentioned, my name's Jose Murillo, I'm the Policy Analyst with our office.

42
00:08:05.960 --> 00:08:07.959
Boardroom: Along with the director, I've beenâ€¦

43
00:08:08.020 --> 00:08:11.409
Boardroom: Within this position for a little bit over 3 years now, so I've gottenâ€¦

44
00:08:11.420 --> 00:08:14.250
Boardroom: Quite familiar with our investigations process.

45
00:08:14.260 --> 00:08:20.439
Boardroom: Just as a quick overview, we are a complaint-driven system, which means that we have to receive a complaint from a member

46
00:08:20.450 --> 00:08:36.409
Boardroom: to the public, and we don't have the current authority to self-initiate complaints, that could lead up to personal investigation, which is different, from our policy review process, where the board can self-initiate, investigations or reviews into policy.

47
00:08:36.409 --> 00:08:47.680
Boardroom: So with that noted, complainants have to submit their complaint to us within 180 days of the alleged misconduct. We notify officers within 28 days of receiving that complaint.

48
00:08:47.680 --> 00:08:56.659
Boardroom: What proceeds is an investigation that we're allotted 120 days, with the opportunity for, an extension up to 190.

49
00:08:56.850 --> 00:09:11.029
Boardroom: If I'm correct, 195. Which, during that time, will be interviewing our complainants, involved officerâ€¦ er, involved sworn officers, any additional witnesses along with the material, such as body-worn camera.

50
00:09:11.190 --> 00:09:19.560

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Boardroom: Any incident reports and other relevant material. And that whole process is completed within the 240-day, period.

51
00:09:21.800 --> 00:09:31.609
Boardroom: This year, in terms of ourâ€¦ the complaints received, just a quick overview of what the year was like for us, we received 53 complaints, er, 53 complaints.

52
00:09:31.610 --> 00:09:42.620
Boardroom: Within those complaints, there are 459 allegations which were investigated. And out of the 53 complaints received in 2024, 51 of those complaints were closed.

53
00:09:44.560 --> 00:10:01.919
Boardroom: Of those allegations, in 2024, 97 of them, were also reviewed by the chiefs of police after, board consideration. Of the 97 allegations reviewed, 6 of them resulted in sustained findings by the board.

54
00:10:01.920 --> 00:10:18.949
Boardroom: And the chief agreed with one of those, leading to a sustained rate of 16.67%. In terms of the allegations that were elevated to the city manager's office as part of our process, when there's a disagreement between the findings of the PAB,

55
00:10:19.030 --> 00:10:30.810
Boardroom: And the chief, 7 of those were made to the City Manager's office, and the City Manager sustained 3, which led to an agreement rate of those findings of 42.86%.

56
00:10:33.170 --> 00:10:41.640
Boardroom: And I'll now hand it back to Chair Cayetano for the overview of the PAPS policy, practice, and procedures work. Could you actually go back one slide?

57
00:10:41.850 --> 00:10:53.199
Boardroom: So I just wanted to point out for the Council two things. The first is that the agreement rate between the City Manager and the PAB is 42.86%. Last time that we presented our annual report, that was at zero.

58
00:10:53.250 --> 00:11:02.800
Boardroom: And so I think that that signals, more of an alignment between the City Manager's office and the PAB's findings than was there previously.

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00:11:03.360 --> 00:11:09.530
Boardroom: The second thing I wanted to note is that we have received 97 allegations

60
00:11:09.780 --> 00:11:17.949
Boardroom: But there are a number of policies that are actually very difficult for complainâ€¦ complainants to actually submit,

61
00:11:18.240 --> 00:11:32.720
Boardroom: an allegation of a complaint. So, for example, if an officerâ€¦ we mentioned this earlier at a previous council meetingâ€¦ if an officer improperly muted their body-worn camera, or improperly did not activate their body-worn camera when policy says they were supposed to.

62
00:11:32.720 --> 00:11:52.659
Boardroom: there's no way for a complainant to actually identify that, because they don't have access to the body camera right now. And so these things are a vague public review, and so these things might not be captured by this data right here. There are a whole swath of other policies, and if the Council's interested, we could provide that information to you. Okay, let's go to the next slide, thank you.

63
00:11:54.330 --> 00:12:03.730
Boardroom: So, I wanted to highlight for the Council, some things that were only cursorily mentioned in the report, and that is ourâ€¦ and just to flesh it out a little bit for you.

64
00:12:03.760 --> 00:12:20.690
Boardroom: the PAB does a ton of policy work, and in 2024, we did a lot. But our policy work is, in general, constrained by bandwidth, by the members of the board who are volunteers, and we, in 2024, I believe, we had 6 active board members, and today we also have 6.

65
00:12:20.690 --> 00:12:35.240
Boardroom: And a couple of those board members who are very active are constrained within our regulations negotiations process. Their bandwidth is almost completely taken up by that. But in terms of the 2024 policy work that we didâ€¦ next slide, please.

66
00:12:36.490 --> 00:12:37.790
Boardroom: Next slide, after that.

67
00:12:38.640 --> 00:12:40.209

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Boardroom: One of the firstâ€¦

68
00:12:40.910 --> 00:12:47.379
Boardroom: items, that we submitted in 2024 was the Texting offenses report, and the Council heard this.

69
00:12:47.920 --> 00:12:50.420
Boardroom: in April, I believe, of this year.

70
00:12:50.600 --> 00:12:59.289
Boardroom: And I just wanted to highlight that in 2024, the PAB used its subpoena power for the first time to access the underlying records.

71
00:12:59.400 --> 00:13:05.349
Boardroom: for the texting offense, and also, the final report that was submitted to Council.

72
00:13:05.460 --> 00:13:20.950
Boardroom: And that was reviewed by the city attorney's office. We didn't have access to that for about a year, and it took us about a year toâ€¦ for the board to actually step up and assert its subpoena power to access those records. So after that happened, we then submitted our final report.

73
00:13:20.950 --> 00:13:25.599
Boardroom: And, it wasn't until this year, actually, that the Council heard the findings of that report.

74
00:13:25.790 --> 00:13:42.390
Boardroom: And I wanted to acknowledge that there was a resolution that the Council issued, condemning any and all racism and misconduct, affirming the City Council's opposition to arrest quotas, and asking the California Legislature to extend the prohibition on arrest quotas, which are currently limited to the California Vehicle Code.

75
00:13:42.570 --> 00:13:50.130
Boardroom: And at that council meeting, as a follow-on from the 2024 report, the Council also signaled maybe an interest in

76
00:13:51.110 --> 00:14:06.270
Boardroom: a feature arrest quota policy, and at our last meeting, the Deputy Chief Tate actually proposed language to us that I personally

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support, and I would askâ€¦ and I would expect that would be coming before this Council at a future meeting to you.

77
00:14:06.270 --> 00:14:16.240
Boardroom: This language specifically would introduce into BPD policy that no member of the department shall establish or enforce any quotas for arrests or citations, and that is a recommendation that was

78
00:14:16.320 --> 00:14:19.990
Boardroom: Directly a product of our 2024 report.

79
00:14:20.400 --> 00:14:21.700
Boardroom: Next slide, please.

80
00:14:23.560 --> 00:14:43.549
Boardroom: We also, another milestone achievement was, the Fair and Impartial policing report, which was the product, of a task force that was initiated in 2021, in response to a 2018 report and the unrest in 2020, and the identification that Berkeley actually had huge racial disparities in 2020 that it needed to address.

81
00:14:43.550 --> 00:14:50.169
Boardroom: And so in response to that, report, BPD implemented a number of strategies around traffic enforcement.

82
00:14:50.490 --> 00:14:54.760
Boardroom: And, weâ€¦ and Council heard,

83
00:14:54.980 --> 00:15:01.620
Boardroom: and actually received a joint recommendation this year, accepting BPD's policyâ€¦ policy changes.

84
00:15:01.810 --> 00:15:15.770
Boardroom: But one thing that was a recommendation in our Fair and Impartial policing report, that we still, recommend this action, that it's still pending action that we recommend Council take, is to really measure the effectiveness.

85
00:15:15.770 --> 00:15:29.040
Boardroom: of BPD's three-pronged approach, because we understand that it's been put into policy, but narrowing the racial disparity gap is a goal of that policy, and it should be measured against the policies that BPD implemented.

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86
00:15:31.360 --> 00:15:52.869
Boardroom: I also want to acknowledge that one of the implementation pieces from this fair and impartial Placing Report was the early intervention system, which the Council approved in, earlier this year, and is currently set to be rolled out, next month, I believe. And there is an entire, policy that will be dedicated toward identifying and supporting officers

87
00:15:52.870 --> 00:15:55.820
Boardroom: Before misconduct could even take place,

88
00:15:55.910 --> 00:16:01.580
Boardroom: in a non-punitive manner, and I appreciate the Council for supporting that measure as a result of this report.

89
00:16:01.980 --> 00:16:03.259
Boardroom: Next slide, please.

90
00:16:06.830 --> 00:16:09.989
Boardroom: The next is our regulation negotiations, which,

91
00:16:10.180 --> 00:16:22.729
Boardroom: Believe it or not, we're also continuing in 2024 and in 2023. Just for a little bit more historical context, we passed our final regulations, our draft final regulations, in April 2023.

92
00:16:23.390 --> 00:16:30.799
Boardroom: And we began to engage in the meet and confer process in June, November 2023, all the way through November.

93
00:16:31.950 --> 00:16:34.990
Boardroom: And then in November,

94
00:16:35.350 --> 00:16:40.039
Boardroom: We, the city let go. Our first labor negotiator dismissed him.

95
00:16:40.210 --> 00:16:43.480
Boardroom: And in March, the city hired a second labor negotiator.

96
00:16:43.830 --> 00:16:45.910

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Boardroom: March 2024, excuse me.

97
00:16:46.030 --> 00:17:04.599
Boardroom: After the second labor negotiator was hired, there began a different process, and the PAB entered a different process, where we began internal city stakeholder negotiations, not with the union, but also with, internal city stakeholders, including the city manager's office, the chief of police, and the HR department.

98
00:17:04.599 --> 00:17:13.350
Boardroom: in order to, come to a more consensus-driven model. And, you know, I really would encourage, Council toâ€¦

99
00:17:13.550 --> 00:17:20.310
Boardroom: set the closed session, that will decide some issues that even the cityâ€¦ internal city stakeholders,

100
00:17:20.720 --> 00:17:34.629
Boardroom: are struggling with right now, because right now, our members are meeting, you know, 2 days a week, 3-hour meetings each, and it really hampers our ability to get other policy work done, which I think is important to the city as well.

101
00:17:34.940 --> 00:17:44.120
Boardroom: And so, I know that Council is aware of the prolonged negotiations, and I'm looking forward to passing the final regulations when they come before you.

102
00:17:44.830 --> 00:17:46.000
Boardroom: Next slide, please.

103
00:17:48.100 --> 00:17:51.659
Boardroom: We also did two other pieces of, work,

104
00:17:52.180 --> 00:18:01.659
Boardroom: of policy work. The first happened in our policy subcommittee, and I wanted to highlight this because I thought it was a great example of the PAB and BPD working together.

105
00:18:01.920 --> 00:18:16.460
Boardroom: For 9 months, BPD and PAV met to revise BPD307 vehicle pursuits policy, and we really came to a meeting of the minds on most of the provisions, in fact, all but one provision in the policy.

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106
00:18:16.460 --> 00:18:23.670
Boardroom: And I thought that there was a very productive, discussion where it was an exchange of reasons, exchange of best practices.

107
00:18:23.670 --> 00:18:41.060
Boardroom: And we really developed a trust in that relationship. And this was all, this all happened before BPD actually issued its Policy 307, so it didn't issue this policy until it had gone through, you know, in this case, 9 months of, discussions with the PAB.

108
00:18:41.240 --> 00:18:45.339
Boardroom: At the end of that process, weâ€¦ the PAB had one recommendation.

109
00:18:45.390 --> 00:19:04.239
Boardroom: around, the use of forcible pursuit intervention techniques, that this year the PAB submitted to the city manager's office, and I expect that we will, you know, come back to that in the future, because the recommendation that came out of these negotiations was really to heighten,

110
00:19:04.400 --> 00:19:06.289
Boardroom: To heighten the standard.

111
00:19:06.560 --> 00:19:14.220
Boardroom: Before which Berkeley police officers could initiate a forcible pursuit intervention technique on the streets of Berkeley.

112
00:19:14.340 --> 00:19:22.250
Boardroom: Because right now it's subject to a reasonability, balancing test, which is very difficult to apply in the heat of the moment.

113
00:19:22.250 --> 00:19:39.910
Boardroom: Instead, we justâ€¦ ourâ€¦ the PAB in 2024, we recommended that BPD adopt what many other jurisdictions, including San Francisco, adopted, and that is applying the use of deadly force standard, so if there's an immediate apprehension of reasonablyâ€¦ ofâ€¦ of, of reasonableâ€¦ excuse meâ€¦

114
00:19:39.960 --> 00:19:44.040
Boardroom: Apprehension of bodily injury or a death.

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115
00:19:44.110 --> 00:19:48.450
Boardroom: Something like that. And so, that recommendation

116
00:19:49.300 --> 00:19:52.090
Boardroom: will likely be coming before Council in the future as well.

117
00:19:53.130 --> 00:20:05.440
Boardroom: The other recommendation that we made wasâ€¦ came out of our budget subcommittee, which one of the council members was actually on, Councilmember Blackaby, and we, recommended, a transparent budget process, because one of ourâ€¦

118
00:20:05.850 --> 00:20:20.400
Boardroom: One of our powers, permissive powers, is to review BPD's budget. Now, the difficulty with that is that every budget cycle, only the additions to BPD's budget are actively reviewed by Council. And so we really, looking forward, ask Council to

119
00:20:20.400 --> 00:20:35.520
Boardroom: allow the PAB to review not just the additional requests, but also the other 99.5% of BPD's budget, that isn't normally reviewed year to year in order to make, a recommendation in light of resource constraints that the city is facing.

120
00:20:40.930 --> 00:20:41.899
Boardroom: Turn it over.

121
00:20:44.570 --> 00:20:54.720
Boardroom: That's me again, our office again, if you could advance the nextâ€¦ well, I'll just, real quickly over there, that was, was that take back the night, or what, what event was it, do you recall?

122
00:20:56.170 --> 00:21:08.839
Boardroom: National Night Night Out, excuse me. This was, us at the National Night Out event, that's one of our former investigators, Keegan and myself. We, make it an effort to be out, the community events,

123
00:21:08.840 --> 00:21:33.269
Boardroom: even considering our constrained, personnel resources, we want to make sure that community members know about our office, and the work that we're doing, and that they feel comfortable coming to us. So, that's usually our setup that you see, at these events. Juneteenth is another keynote event that weâ€¦ that might have actually been Juneteenth, I

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think about it. But, those are the events that we try to be at with community members and have

124
00:21:33.270 --> 00:21:35.309
Boardroom: Dialogue and conversations with them.

125
00:21:35.360 --> 00:21:51.219
Boardroom: I'll briefly also just highlight a few of the engagement activities that we did. One thing that we need to celebrate, and the Council did celebrate with us, oh, excuse me, was that, we're 50 years into our program, and even this year, Council.

126
00:21:51.350 --> 00:21:53.620
Boardroom: Pass, theâ€¦

127
00:21:54.050 --> 00:22:17.820
Boardroom: the recognition of the Police Accountability Day, which we'll celebrate on April 16th, moving forward, or April 15th, rather, moving forward, and we're 50 years in, a lot of communities, not only in the Bay Area, in California, but across the region, or across the country, rather, reach out to us because of our expertise and our experience in civilian oversight, and I think we, it's important to.

128
00:22:18.200 --> 00:22:21.250
Boardroom: Emphasize that rich tradition that we have here.

129
00:22:21.280 --> 00:22:44.270
Boardroom: The other thing that we did, last year, in preparation for our annual review of the use of force policy, we had use of force forums. We did them during the summer. To be transparent, they weren't well attended, but they gave us the opportunity, these virtual forums, to have conversations and go over the policy on use of force. And I would say this,

130
00:22:44.270 --> 00:22:57.929
Boardroom: There's a lot of, I think, areas where we're leading the way, and use of force, we have one of the most robust use of force policies in comparison to other communities. In fact, at our recent NACO conference.

131
00:22:57.930 --> 00:23:14.439
Boardroom: former commissioner, George Perez Velez, was highlighting how robust our use of force policy here at Berkeley is. So, again, we, in that regard, I think we, you know, our national sort of model for other, police departments and oversight entities to look at.

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132
00:23:14.620 --> 00:23:30.680
Boardroom: We have participated in different conferences, both regionally and nationally, and presented at them. One of the, unique opportunities we got presented this, past year was, I got, the opportunity to sit in, to.

133
00:23:30.980 --> 00:23:45.310
Boardroom: collaborate with other, public safety practitioners, policing practitioners, with the Commission on Peace Officers Standards and Training, which is POST, on, learning domain, on,

134
00:23:45.310 --> 00:24:07.740
Boardroom: peace officers' interactions with diverse communities, and it was focused, particularly in the LGBTQ community and police officers, and I was really proud of the work we did there. That, work is actually used, that work product, to train officers across the state. So, our office gets tapped into those opportunities and want to make sure that we're representing the city well.

135
00:24:07.830 --> 00:24:32.289
Boardroom: We're continuing, as you see there, Lucky, who's not present with you before today, my mom's in town, so we spent some time with her. He's our therapy animal. We're happy to keep expanding on that program. We keep taking him to a community outreach. He was at this, post-training as well, and, there was a lot of, petting that was taking place there, and continuing to expand the, work on animal-assisted interventions.

136
00:24:34.400 --> 00:24:40.550
Boardroom: And I'll go ahead and now turn it over to another meaty part of our report, which is our BPD Trends

137
00:24:40.820 --> 00:24:59.750
Boardroom: analysis on, on patterns in vehicle, pedestrian stops and other enforcement activities. Again, this is charter, bound, language that, that we, we're required to report on for our, our, annual report. And I would say, again, to uplift another, element of our

138
00:24:59.950 --> 00:25:03.380
Boardroom: oversight duties, that this work is done,

139
00:25:04.230 --> 00:25:09.610
Boardroom: Veryâ€¦ this is one of the areas of the work that is done,

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140
00:25:10.190 --> 00:25:21.919
Boardroom: more, with less effort, because the data's very available through the Transparency Hub. So that's very helpful. I've been in other jurisdictions, I know other practitioners

141
00:25:21.920 --> 00:25:38.140
Boardroom: that, when it comes to getting basic data, they really struggle with it, and they're like, how are you doing it? How did you get the Berkeley Police Department to do the transparency of it? And I wish I could take credit, but we didn't, and it's helpful that that data is available for this part of the report.

142
00:25:40.940 --> 00:25:43.200
Boardroom: Thank you, Director.

143
00:25:43.200 --> 00:26:06.040
Boardroom: An overview of the stop data for 2024, we do provide a comparison of the triennial period, we presented to Council last year. As an overview, theâ€¦ in total in 2024, there were 4,773 stops. In terms of the patterns that were observed, those are some of the racial disparities that have been highlighted. In previous reports and the PABS FIP work.

144
00:26:06.040 --> 00:26:22.519
Boardroom: Continue to persist at about the similar level. Again, one of the questions that gets brought up is in terms of how we make this assessment. In our report, in comparison to the BPDs, we use a population-based comparison, compared to the BPD's, Veil of Darkness and the other,

145
00:26:22.560 --> 00:26:30.570
Boardroom: methods that they used in their report. In terms of the levels of citations, arrests, and psychiatric holds.

146
00:26:30.570 --> 00:26:47.590
Boardroom: Which were highlighted in our previous years, and in this current report, the level remains consistent to prior years, and a majority of stops were observed to be around districts 1, 2, 3, and 4, primarily along major roadways, as one would expect for this kind of stop.

147
00:26:48.060 --> 00:27:06.330
Boardroom: In terms of use-of-force trends, there were 294 use of force incidents reported by the BPD, in 2024. Folks from the Black and African

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American community involved were involved in 154 incidents, 154 incidents, which is roughly 57.83%.

148
00:27:06.410 --> 00:27:24.400
Boardroom: Folks identified they're perceived to be as white were 96 incidentâ€¦ 96 incidents, which constitutes about 29.81%. And then Hispanicâ€¦ the Hispanic-Latino comâ€¦ Latinx community, were about 45 incidentâ€¦ er, 45 incidents to about 13.98%.

149
00:27:24.400 --> 00:27:33.870
Boardroom: And the other categories, which include Asian, biracial, Native American, Indian, or unknown, constituted 16 incidents with, 5.44%.

150
00:27:33.880 --> 00:27:55.559
Boardroom: One question that we received and comes up to us frequently from members of the public trying to understand the data is why, if there was only 294 incidents, we see 742 officers, or 322 subjects, or in other instances, just the number of uses of force. The reason for that is that each incident could involve multiple officers applying different.

151
00:27:55.670 --> 00:28:03.000
Boardroom: Types of force, so that's why you get the disproportionate numbers, which might be confusing, at an initial glance.

152
00:28:04.420 --> 00:28:28.529
Boardroom: In terms of an overview, the Charter also requires us to report, on BPD's training. In the calendar year 2024, officers completed a total of 7,00065 hours of training. The most frequent training topics included supervisory skills, firearms training, crisis management and response, specialized equipment training, traffic enforcement.

153
00:28:28.610 --> 00:28:31.900
Boardroom: And specialized investigative techniques.

154
00:28:32.030 --> 00:28:38.750
Boardroom: Particularly within those, in terms of the categories, specific, those are the topics.

155
00:28:38.840 --> 00:28:57.599
Boardroom: Tactical and operations were 2,800, approximately 2,860 of those hours, followed by management and leadership, which made up 2,390 hours. Conference and seminars were 1,437. Technology and systems were 198 and a half.

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156
00:28:57.640 --> 00:29:02.930
Boardroom: Legal and legislative, update training were 180 hours.

157
00:29:05.870 --> 00:29:22.880
Boardroom: And now I'll now pass it back to our director. If I may add something, one thing that the department noted in their annual report this year was that they're going to eliminate the Level 1 use of forest reporting requirements. So, you know, next time this year, or in March, you may see a decrease in the number.

158
00:29:22.890 --> 00:29:30.630
Boardroom: And that, too, was a policy change that was made without any input from, really, this council or the PAB. And so, you know, ourâ€¦

159
00:29:30.890 --> 00:29:41.529
Boardroom: desire is to look and make a recommendation on that, prior to them implementing that, which I believe has not happened yet. And if the Council's interested in that, we can proceed, along those grounds.

160
00:29:43.710 --> 00:29:58.990
Boardroom: This is the, sort of final, stage of our presentation here, where we just talk about some of, challenges and recommendations. So, in 2024,

161
00:29:59.920 --> 00:30:11.339
Boardroom: as a continuation of the sort of narrative and discussion we had, in the triennial report, we talked about some of the challenges that we face. I'll also caveat by saying that

162
00:30:11.430 --> 00:30:35.189
Boardroom: in transition, phases, going from one model to another, one iteration of the model to another, is not uncommon for programs and jurisdictions to face some of these growing pains. So I think part of it is, associated with that. The other thing is to really ensure that we're institutionalizing the independence of the program here in a way that respects the charter language.

163
00:30:35.190 --> 00:31:00.179
Boardroom: So, just generally speaking, we saw incomplete, implementation of charter initiatives, disputes regarding the scope of authority, some operational constraints, on staffing and classification challenges, infrastructure and IT delays. Again, I mentioned earlier in the

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presentation that the charter talks about board staff, but then also distinctly talks about the

164
00:31:00.180 --> 00:31:06.369
Boardroom: EPA staff, and in practice, this has just been one set of staff, so I think

165
00:31:06.370 --> 00:31:26.330
Boardroom: The framers of the charter, excuse me, had a, envisioned, at least the way I read the charter, where there was at least board-dedicated staff that was separate from the ODPA staff, given our distinct duties and powers and responsibilities. If you could advance to the next slide, please.

166
00:31:28.340 --> 00:31:29.230
Boardroom: Okay.

167
00:31:29.230 --> 00:31:51.559
Boardroom: Some of the, recommendations, we noted in the report was to finalize and adopt permanent oversight regulations. Our chair discussed that process and history, and that's underway. Addressed racial disparities in police stops and use of force. Our, policy analysts discussed, our differences in benchmarking and why we may see,

168
00:31:51.560 --> 00:32:14.420
Boardroom: or be talking about the same thing in different ways between us and the police department. We're utilizing, a residential, population as a benchmark. The, department may be utilizing other, techniques, like, Veil of Darkness. And this is also part of an ongoing public safety conversation in criminology, how we assess,

169
00:32:14.420 --> 00:32:27.200
Boardroom: disparities in policing. We noted that we need to enhance public engagement. There have been times where we see a lot of community engagement in the work that we're doing, and other times where,

170
00:32:27.200 --> 00:32:39.119
Boardroom: We wish that there were more folks, available to engage with us. And, we, we know that our responsibility there, we're trying to make these community relationships and be at places,

171
00:32:39.210 --> 00:32:47.369
Boardroom: where, where we need to be and engage with the community. Strength, strengthen oversight of surveillance and specialized units.

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172
00:32:48.140 --> 00:32:49.550
Boardroom: that was,

173
00:32:49.690 --> 00:33:00.360
Boardroom: Related mostly to the Downtown Task Force report and some of the conversation regarding there. Support subcommittee engagement and policy reform capacity.

174
00:33:01.070 --> 00:33:04.930
Boardroom: Okay, andâ€¦ Next slide.

175
00:33:06.890 --> 00:33:22.970
Boardroom: Okay. And, we also provided our office some additional, recommendations as well, and noted in the report, established oversight-specific civil service classifications, and that is, one of the questions that we,

176
00:33:22.970 --> 00:33:45.409
Boardroom: It was going to be related to one of the questions we received ahead of this presentation, enhanced infrastructure and IT coordination for charter compliance, adopt standardized, complaint subcategorization and improve trends analysis, ensure adequate resources for civilian oversight operations, invest in youth engagement and inclusive outreach, and I will say, from our part.

177
00:33:45.410 --> 00:34:02.250
Boardroom: We're undergoing a lot of that, relationship building this past year, which is not presented in this report, but will be in next year, report. We had the opportunity to host a youth, workshort, so we're really proud of that relationship, and we, plan on, expanding it.

178
00:34:02.960 --> 00:34:12.680
Boardroom: At this time, I want to stop the presentation here. I don't know if our chair wants to add any concluding remarks.

179
00:34:12.969 --> 00:34:26.940
Boardroom: No, we're just happy to answer any questions. I think that for the next annual report, I think it would be beneficial if we were to present at a time at or around the department's annual report to have that alignment there, and we could commit to that.

180
00:34:28.219 --> 00:34:39.539

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Boardroom: And one quick question, Madam Mayor, we did have some of the responses available for the questions we received ahead of time. I don't know if you wanted us to start from there, or if you had a different flow.

181
00:34:39.540 --> 00:34:57.249
Boardroom: Yeah, we can just ask them. I mean, so, just so folks know, some of us sent questions ahead of time, just to give them a heads up, and that way you could prepare some of your responses, so hopefully that was helpful, and we'll just ask them, and you can answer them then. Sure. So, speaking of, does anyone have any questions?

182
00:34:58.420 --> 00:35:01.309
Boardroom: I know you do, butâ€¦ oh, pfft, sorry.

183
00:35:01.620 --> 00:35:09.329
Boardroom: Well, if I turned on the parliamentarian, it would tell me who had questions. So, starting with Councilmember Lunapara.

184
00:35:09.440 --> 00:35:11.950
Boardroom: And thank you all so much for the presentation.

185
00:35:12.350 --> 00:35:15.829
Boardroom: Thank you so much. I have a couple questions.

186
00:35:16.250 --> 00:35:27.090
Boardroom: Theâ€¦ do youâ€¦ can you outline the requirements and procedures for PAB involvement in BPD policy discussions as it is explained in the Charter?

187
00:35:28.780 --> 00:35:32.499
Boardroom: there's no criteria. It says that weâ€¦

188
00:35:32.970 --> 00:35:43.170
Boardroom: are able to review BPD policies, practices, and procedures. And so, we are able to either initiate our own review.

189
00:35:43.420 --> 00:36:01.910
Boardroom: or we receive, policy complaints from the public, that the board can accept or reject, and we have built out, this year a criteria of factors, to consider public interest, board member capacity, BPD interests, and accepting or rejecting those members of the public complaint.

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190
00:36:01.910 --> 00:36:12.399
Boardroom: I think one thing that is evident from this presentation is that there are two types of policy reviews that we undertake. One is reactive, where there's an event that happens.

191
00:36:12.400 --> 00:36:28.630
Boardroom: And, those resulted in the Downtown Task Force Report and the Fair and Impartial policing report. The others are proactive, and those are ones that, are of interest to the board, and are largely drawn from best practices from around other jurisdictions. And I think, both are of interest, to the city.

192
00:36:29.490 --> 00:36:45.930
Boardroom: Thank you. I have a more specific question. The report references both internal and external complaints, and both were reported to BPD Internal Affairs, so I'm just curious if you can explain the difference between the two.

193
00:36:47.560 --> 00:36:49.570
Boardroom: My thoughts?

194
00:36:50.090 --> 00:37:08.699
Boardroom: Sure. In terms ofâ€¦ so one of the aspects of our complaint process, which, so whenever we receive a complaint, again, we're complaint-driven, so we could only have external complaints. But the BPD, on the other hand, they could receive complaints from their internal staff or within otherâ€¦

195
00:37:08.750 --> 00:37:24.950
Boardroom: departments within, er, sorry, with other staff within the department itself, and members of the public. So they make that distinction of the external, which is coming from a member, community member, versus internal, where it's coming from the inside. But one caveat that we've talked about is that

196
00:37:24.980 --> 00:37:31.840
Boardroom: Unlike our process, where we send our complaint forms to the BPD, and they conduct a parallel investigation.

197
00:37:31.840 --> 00:37:56.290
Boardroom: the PAV and the ODPA, when BPD receives a complaint, we don't get that report to initiate a parallel investigation. So that's why we only have the external versus BPD has external versus internal. And I'm

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not sure if the director wants to add anything to that. No, neither, sir. I think the chief actually, referenced internal complaints at her last presentation. She talked about during the course of an investigation, when there's an external complaint that is made.

198
00:37:56.290 --> 00:38:10.609
Boardroom: she will initiate an internal complaint when they identify a separate violation of policy. And that's sort of what that is referring to, which is why there's a higher sustain rate for internal complaints as opposed to external ones.

199
00:38:11.640 --> 00:38:14.510
Boardroom: Okay, that's really helpful.

200
00:38:14.720 --> 00:38:24.109
Boardroom: I'm also curious, for Cheroke Hayatano, how you think that the City Council can broadly support the PAB.

201
00:38:24.930 --> 00:38:29.669
Boardroom: Yeah, I think thereâ€¦ there are a couple ways. The first is, as I mentioned.

202
00:38:30.610 --> 00:38:42.299
Boardroom: The PAB is a board of volunteers, and we are constrained by our resources. We rely a lot on staff, who is not technically our staff, to do a lot of the labor.

203
00:38:42.300 --> 00:38:52.249
Boardroom: But we currently sit at 6 members, and I would really encourage Council to, continue to, even, like, to put out in your Council newsletters,

204
00:38:52.250 --> 00:39:02.760
Boardroom: that the PAB is a body that serves the public, and those members of the public who are interested in public service and in public safety in the city have an opportunity to contribute to this city.

205
00:39:02.760 --> 00:39:18.859
Boardroom: And to have a running list of people who are interested in that in the case of openings. You know, we have an opportunity, or we have an option availability for alternates as well. And so I think that it's really important, given the breadth of the work that we do, for us to be fully staffed in that sense.

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206
00:39:18.860 --> 00:39:26.999
Boardroom: Second thing is, I learned recently that the Council has a 4x4, with the Housing Board.

207
00:39:27.000 --> 00:39:41.160
Boardroom: And I think that, there could be a benefit to a similar, committee with the Chief, a couple members of the PAB, and a couple members of Council in order to keep abreast of some of the more quickly evolving policy changes that the Council has seen this year.

208
00:39:42.210 --> 00:39:46.290
Boardroom: Just to clarify, did you mean Rent Board? Yes, Rent Board. Sorry.

209
00:39:47.620 --> 00:39:49.890
Boardroom: Great, thank you, those are my questions.

210
00:39:51.380 --> 00:39:55.049
Boardroom: Thank you, Councilmember. Moving on to Councilmember Blackby.

211
00:39:56.610 --> 00:40:07.779
Boardroom: Thanks, Madam Mayor, and thanks, to the team at the PAB, and for fielding the questions in advance via email. I did go through the report, it's a really thorough report.

212
00:40:07.780 --> 00:40:19.440
Boardroom: I think I spent some time with it, maybe on the other end before, I can't remember, but anyway, I appreciate the work. So, just a couple of things just to tick through. On the public engagement part, I totally support

213
00:40:19.440 --> 00:40:32.739
Boardroom: the idea of how we, of enhancing public engagement. Do you have some ideas of how we can broaden participation? I do, if, you know, when we do that, want to make sure we broaden it and include as many voices as possible. Have you thought about how we might do that?

214
00:40:32.810 --> 00:40:56.820
Boardroom: Yes, and there are different models and different ways that you can do engagement work. One of my concerns, and I have been attempting to communicate this with Council, is the infrastructure and the resources constraints. There's a lot of statutory deadlines and

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timelines that we have, and given that the sort of bulk of our work is the investigations, that's where a lot of our priority goes.

215
00:40:57.340 --> 00:41:08.680
Boardroom: And one of the things that's gone, a few budget cycles is a request for, sort of, a dedicated person that can assist us with this, because we can build out a program,

216
00:41:08.810 --> 00:41:25.909
Boardroom: in different ways, to do sustainable engagement. Often, our engagement work has been very reactive. We get invited, but we're not proactively seeking opportunities, although in some places we are. To give an example, Jose is an alum of our,

217
00:41:25.910 --> 00:41:29.860
Boardroom: the regional, network, the Leadership Public Schools.

218
00:41:29.860 --> 00:41:53.990
Boardroom: Okay, I always get it right, wrong, but, of Hayward, and he, we get invited to, participate in their career fair. We're actually in talks and discussion with having, a more sustainable internship program with that, network and other, nearby, high schools to be able to do that, and through YouthWorks. So that's one element. We're also building,

219
00:41:54.050 --> 00:42:04.200
Boardroom: relationships with the other oversight, programs in the region, making sure that, we're abreast of the issues that they're facing, and, and also speaking,

220
00:42:04.200 --> 00:42:25.759
Boardroom: to sort of broader issues that we're all facing, and even something like vehicle pursuits, as a policy, we need to be engaged. Sometimes we get vehicle pursuits from other jurisdictions that end up coming to Berkeley. So that, that is part of our engagement work and being knowledgeable about that. Okay. One suggestion I'd just make is, lean into more of, I think, the policy work

221
00:42:25.760 --> 00:42:28.490
Boardroom: Just looking at what could come ahead. Drones.

222
00:42:28.520 --> 00:42:52.870
Boardroom: other surveillance technology. I mean, I just think there's an opportunity to bring people and ask for public input through your process on the policy side. I think that's something that would actually be more

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engaging than just a general event, but say, hey, let's have a discussion about what the community thinks about the drone policy and make sure we inform what the department's thinking about, what council's thinking about. I would just lean into that. I just think there's a lot of opportunity there, and you could be a good kind of.

223
00:42:53.030 --> 00:43:10.970
Boardroom: convener of community discussion on some of this stuff, which could be useful. Again, as long as, I think, as long as you're getting broad perspectives, it could be actually really useful. Let's talk about the personnel complaints, and I appreciate the detail, kind of, the table. One of the things that does kind of concern me when we look at all of the numbers.

224
00:43:11.140 --> 00:43:23.699
Boardroom: It's justâ€¦ it's not even the agreement or disagreement rate with the city manager, with the department, because thatâ€¦ certainly there's progress being made there. But it's just the fact that, you know, of the, you know, whether you look at 53 complaints.

225
00:43:23.700 --> 00:43:35.180
Boardroom: you know, we've got 3 sustained complaints, or 459 allegations, you know, 6 sustained allegations. And again, this is through no fault of your own, but it's saying, like, look, there'sâ€¦

226
00:43:35.320 --> 00:43:47.939
Boardroom: 95% of cases that are resulting in either administrative closure or somethingâ€¦ or an allegation not being sustained, which is a lot of staff work that's going towards

227
00:43:48.070 --> 00:43:58.699
Boardroom: work that isn't materializing in something that's a sustained finding. So I guess my question is, how do we, you know, we don't want to discourage people, we want to encourage people to make complaints.

228
00:43:58.700 --> 00:44:12.890
Boardroom: But we also want to triage and make sure that we're not encouraging frivolous complaints that then require your staff time, require BPD staff time. Every time there's a complaint, we notice the officer, right? So, I mean, there's a whole process that happens. So how do weâ€¦

229
00:44:12.890 --> 00:44:32.270
Boardroom: how do weâ€¦ how do we manage that? Do you have some ideas? Because I, you know, Iâ€¦ I think we should be getting much closer to 40-

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50%, right? Like, the ideal should be half the time you find something and half the time you don't, just for sake of argument. But a 6% sustained rate is just really small, and again, do you haveâ€¦

230
00:44:32.270 --> 00:44:34.959
Boardroom: Evidence of other jurisdictions to compare to, butâ€¦

231
00:44:34.960 --> 00:44:40.510
Boardroom: My mind is going there, like, it just feels like there's opportunity there to figure out how to improve that, improve the targeting of it.

232
00:44:40.850 --> 00:44:48.480
Boardroom: A chair wants to, say a few remarks, and, if he doesn't touch what I touched. I have 3 quick comments.

233
00:44:48.540 --> 00:44:53.350
Boardroom: Councilmember Blackbee, the first is that I, you know, at the last annual report, which was in March 2024,

234
00:44:53.350 --> 00:45:18.150
Boardroom: there was a comment by Councilmember Humbert about repeat, repeat complainants. And I think one thing that the board is working on is implementing a regulation around vexatious complainants, in the same way that there are vexatious litigants, and to pre-screen vexations and to hold them to a higher standard that would reduce the workload, because there are instances in the city of vexatious complainants, and we think that that does burden the

235
00:45:18.150 --> 00:45:19.190
Boardroom: director's office.

236
00:45:19.190 --> 00:45:34.330
Boardroom: The second thing is, the board really does think, and this will come up in the regulations discussion, that access to body-worn camera can actually facilitate a quicker and more efficient process, because complainants can seeâ€¦ sometimes they misremember what happened.

237
00:45:34.330 --> 00:45:43.089
Boardroom: And once they see what happened, they're like, oh, that actually didn't play out the way that I wanted to, I'm gonna withdraw my complaint. And that can actually also lead to a more efficient process.

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00:45:43.090 --> 00:46:06.129
Boardroom: The third thing is that, I know that our sustain rate is low, and there are a few different reasons for that, but I do want to point out something that wasn't highlighted, during the presentation is that, there are, as sort of what I mentioned, that there are a wide swath of complaints that are serious complaints that our board doesn't hear because there's pending criminal investigations, like officer-involved shootings. There are also instances that the PAB has seen

239
00:46:06.130 --> 00:46:21.119
Boardroom: although hard to quantify, where the most serious allegations are sometimes voluntarily withdrawn by the complainant. And that is a concern to the PAB, and we think that a process that subjects complainants to a very rigorous standard,

240
00:46:21.210 --> 00:46:33.109
Boardroom: where they are being cross-examined, like, there's a lot of situa- things that go into that, actually dissuades, people from making complaints that are actually more serious. I thinkâ€¦

241
00:46:33.510 --> 00:46:43.069
Boardroom: one thing that Iâ€¦ as I've been reflecting on why there's such a low sustain rate is because sometimes, the serious allegations that we've seen have been not pressed.

242
00:46:43.220 --> 00:46:49.620
Boardroom: the complainant may cite to a lack of there being any result. And I think,

243
00:46:49.630 --> 00:47:13.469
Boardroom: it's true, if I were a complainant, I would want to know what would happen at the end of this process, and I would not want to know that there was a resolution and what the resolution was. And I don't think in my time here at the board, there's ever been a resolution that has found in the complainant's favor, where they've actually received a recommendation that has found in their favor, and they understood that, in this case, they were vindicated. And that's a concern for the city's complainant process. But I just wanted to highlight those three things

244
00:47:13.470 --> 00:47:20.599
Boardroom: for you, and then pass it back to the director. Yeah, and I also want to just caution, the sort of,

245
00:47:20.610 --> 00:47:33.310

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Boardroom: rabbit hole we're going, utilizingâ€¦ and not that you were, Councilmember Blackaby, but, Sustain Race is sort of metric of, of how successful or, or how effective a program is being.

246
00:47:33.330 --> 00:47:41.599
Boardroom: I think some oversight communities and even jurisdictions can focus on that in a way that may not be helpful or productive.

247
00:47:41.670 --> 00:47:50.289
Boardroom: At the, at the very least, at the baseline level, with oversight in, in this complaint process is allowing committee members to exercise

248
00:47:50.300 --> 00:48:12.719
Boardroom: their constitutional rights to bring about their grievances to the government. So, we are able to do that through this independent process. Yes, they can always go through internal affairs, but there are historical barriers that may prevent that. So, independently, we're able to do that, and I think that in and of itself is something that we need to highlight and emphasize.

249
00:48:12.720 --> 00:48:32.069
Boardroom: I also just want to emphasize, too, the concern about the vexatious complaint, and part of theâ€¦ is the language in our interim regulations. There has to be, if it's prima facie, alleged misconduct, then that's what allows us to go forward. But then, after a cursory review.

250
00:48:32.070 --> 00:48:45.640
Boardroom: of the evidence, body-worn camera mainly, like the chair just mentioned, we see that, you know what, what was being described is not necessarily what is being observed here. Put to the body-worn camera point.

251
00:48:45.640 --> 00:49:09.090
Boardroom: In other jurisdictions, there's direct access to body-worn camera, by the oversight entities. I've been in a model where that was the case, and that could also streamline the process, if we don't have to go through the administrative process of doing the records request, waiting for it to come back, we can really get ahead of being able to close out some of these, the cases. And the other thing, in terms of comparators,

252
00:49:09.110 --> 00:49:27.720

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Boardroom: There are some, entities and groups that are looking at these, sustained rates. There's a, a website, and I'll share with you in the RESTA Council Police Scorecard, where they're looking at these, rates. And there are rates inâ€¦ there are jurisdictions that mirror our rates, so, for example.

253
00:49:27.790 --> 00:49:51.340
Boardroom: LA is listed as their sustained complaint rate to be 6%, which mirrors ours. But then there's other jurisdictions, like New York is at 26%. So, we also have to be mindful about what their legal standards may be. Are they using the preponderance of the evidence? And they may or may not be, so that when we're doing these comparisons, we gotta be mindful about the sort of legal thresholds.

254
00:49:51.360 --> 00:50:09.779
Boardroom: Okay. Well, I would just incurâ€¦ I appreciate that. I just encourage that the sooner in the pipeline that we can, at least apply some sort of filter before you go too far is helpful. And I think that's just something we should continue to work on, because as you're talking about needing staff time to do all this other work.

255
00:50:09.780 --> 00:50:18.269
Boardroom: there's a huge amount of staff time that's going into this, that if you can figure out how to triage and prioritize a little bit, right? I mean, I think that frees up a lot of other time to do some of these other things.

256
00:50:18.270 --> 00:50:32.600
Boardroom: Let's pivot over to the policy side. Appreciate the, kind of, the detailed review. You mentioned there's another 14 reviews currently in the pipeline for the coming year. What issues, are you expecting to complete this year? Do you have some priorities for what you're trying to bring forward on the policy side?

257
00:50:34.660 --> 00:50:49.589
Boardroom: Thanks, Councilmember. Many of those 14 have been closed this year, so this is kind of the awkwardness of presenting a 2024 report in November 2025. There are only very few of those 14, I believe, like, 3 or 4 that are still open.

258
00:50:49.590 --> 00:51:02.089
Boardroom: In terms of the policy recommendations that canâ€¦ that the Council can expect coming from the PAB, I think you will see recommendations around surveillance, as you mentioned. We have been, vigilant.

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259
00:51:02.100 --> 00:51:13.669
Boardroom: around the changes to BPD surveillance policies and, as it relates to ALPR data. I do want to flag, I believe that BPD's, pilot program with the ALPR,

260
00:51:14.060 --> 00:51:26.570
Boardroom: you know, project is, coming to a close in 2026. And I think that is an opportunity to review the ALPR policy, its effectiveness. The Council just heard the Surveillance technology, annual report,

261
00:51:26.570 --> 00:51:34.820
Boardroom: And I would really encourage Council, as it reviews the efficacy of the ALPR program and the policy therein, to understand, like.

262
00:51:35.390 --> 00:51:40.489
Boardroom: when the chief says that the ALPRs assist in

263
00:51:40.660 --> 00:51:45.670
Boardroom: identifying and solving crimes. What theâ€¦ is that true?

264
00:51:45.760 --> 00:51:55.470
Boardroom: if they were not present as well, would officers also be able to solve? And so, like, these are questions that the PAB asks the chief, for evidence supporting.

265
00:51:55.470 --> 00:52:16.150
Boardroom: a lot of the policy changes, around surveillance. Is it true that you would not be able to solve crimes, without this data? And that is a question that I haven't really heard this Council ask the Chief, or to provide, or I haven't seen evidence to that effect, and we're asking BPD to provide that evidence, as it relates to their newly implemented surveillance technologies.

266
00:52:16.150 --> 00:52:24.230
Boardroom: And we will continue to do so. The other one was the vehicle perceived policy, but I believe I already mentioned that, so I won't take up more of your time on that. Okay. Thanks.

267
00:52:24.390 --> 00:52:38.679
Boardroom: On the trends and patterns in stops, can I just shareâ€¦ I just want to share, because I'm really interested in, sort of, the methodology we use to look at bias here. And I wanted to share, if I could.

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268
00:52:38.840 --> 00:52:45.990
Boardroom: the BPD annual report, methodology, and just, I wanted us to have a discussion or kind of comment about it.

269
00:52:45.990 --> 00:53:00.140
Boardroom: So, you'd mentioned, like, the data you're presenting is sort of the absolute kind of, you know, stops, arrests, just basically racial makeup of those people who were stopped against the entire population, and the frequency, and how much more frequent or less frequent it might be.

270
00:53:00.180 --> 00:53:05.550
Boardroom: I do find the way the BPD's presented these three analyses on the at-fault collisions.

271
00:53:05.550 --> 00:53:21.089
Boardroom: Where they basically are looking at collisions and the racial breakdown of collisions versus moving violations, and looking to say, like, this is actually a representative of who's kind of driving on the roads versus who's being pulled over, is sort of a very interesting comparison.

272
00:53:21.090 --> 00:53:27.550
Boardroom: The yield rate analysis here, which is basically, percent of searches that,

273
00:53:27.550 --> 00:53:43.739
Boardroom: turn up contraband. So, again, if you assume that if some racial group is being stopped much more frequently and doesn't yield a successful search, that that's aâ€¦ there's more harassment, there's more kind of intimidation happening, they're not actually generating fruitful searches.

274
00:53:43.960 --> 00:54:01.950
Boardroom: Or this veil of Darkness test, where you're looking at a certain time of day, and at some times of the year, that's, you know, at 6pm, it's light, and 6pm, it's dark, and looking to see, like, again, you know, given all of us being equal at the same time of day, whether it's light or dark, you should be seeing, again, the similar kind of breakdown if you don't see bias.

275
00:54:02.120 --> 00:54:06.710

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Boardroom: And, at least according to these three tests that they've presented in their annual report.

276
00:54:06.890 --> 00:54:24.370
Boardroom: you know, you see pretty good evidence that you don't see much bias in these numbers, is I guess, what I'm trying to say. And we know there's a lot of other factors that contribute to the racial breakdown of the absolute numbers in terms of stops and these statistics.

277
00:54:24.520 --> 00:54:28.280
Boardroom: So, I guess my question is, whyâ€¦ why should weâ€¦

278
00:54:29.180 --> 00:54:33.939
Boardroom: you know, what's the right set of analyses here? I find the BPD

279
00:54:34.170 --> 00:54:47.389
Boardroom: analysis to be pretty compelling, because they'reâ€¦ they seem scientifically valid in terms of trying to control for all these other factors, and I'm curious your response, and why we should look at those metrics in your report versus these, or how you would put these together.

280
00:54:50.310 --> 00:55:15.310
Boardroom: Yeah, so I'll just say that I think that's a million dollar question, what's the right analysis? And, it's part of a broader sort of conversation in criminology and criminal justice and policing. There are different benchmarks. There is no identified one best benchmark or a set of benchmarks that are best to analyze. We're dealing with social phenomena that's highly complicated, and there's also an element of the qualitative version of

281
00:55:15.310 --> 00:55:40.300
Boardroom: We're looking at the numbers and statistics, but let's look at the body-borne camera and look at qualitatively, how, these interactions play out, and what happens at the next level when they go to, the courts, are these, are yielding convictions. And so there, I think there's a full life cycle of, criminal justice, the spectrum here that, that may or may not necessarily be right

282
00:55:40.300 --> 00:56:01.009
Boardroom: represented, I think what we, want to just highlight that there are, at least from the basic standard of utilizing the residential population benchmark, that those numbers don't seem to necessarily, agree with what we would sort of expect,

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283
00:56:01.230 --> 00:56:09.350
Boardroom: on, on the different, proportionalities, of the demographics.

284
00:56:09.350 --> 00:56:30.970
Boardroom: And I hear your point, what you're saying, and I also think we have a very, qualified, data analyst in Arlo Mombok, who, explorers, and I had a lot of conversations. Again, I go back to the FIP conversation, where they really scrutinized the veil of Darkness conversation, because, how we, designated twilight period, I think, matters.

285
00:56:30.970 --> 00:56:36.400
Boardroom: I'm giving you, I think a more broader answer, but I think it'sâ€¦

286
00:56:36.400 --> 00:57:00.939
Boardroom: Important to say that there are limitations with the statistical data, that this is a mixed-method sort of approach that we need to look at this phenomenon, and also just, understand that, the numbers may suggest one element of it, but when you look at qualitatively in the interactions, like, you're saying that the numbers suggest, potentially there's no bias, but when you look at the interactions in

287
00:57:01.420 --> 00:57:26.270
Boardroom: look at how the demeanor of the officer may be from one racial background to another, and Stanford did a great analysis on this, where they did it in Oakland, and they were looking at all of these police interactions, and officers were talking differently to different community members based on race. So I think that's where we have more nuances in this conversation here. Okay, my time's up, so I'll wrap up.

288
00:57:26.270 --> 00:57:27.319
Boardroom: No, my head.

289
00:57:28.990 --> 00:57:32.340
Boardroom: Okay, I mean, I'll just say that, you know, Iâ€¦

290
00:57:32.340 --> 00:57:50.260
Boardroom: Iâ€¦ I understand what you're saying, but I think, like, our concern really is around bias. These are at least some of the best tests I think we have to establish that. We know that when you look at the absolute numbers, there's all sorts of other factors in there, and so I justâ€¦ I think, like, when you use the global data in terms of stops.

291

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00:57:50.390 --> 00:57:55.449
Boardroom: you're wrapping in lots of other things into that analysis. This, I find, again.

292
00:57:55.660 --> 00:58:02.110
Boardroom: I'm free to be correct, please correct me, but I find this to be closer to the actual, you know.

293
00:58:02.130 --> 00:58:18.079
Boardroom: piece that's within our control, which is what is the police department doing in terms of how they're conducting their stops, as opposed to all the other socioeconomic factors that are involved in what those racial disparities are. And I'm not minimizing the disparities, I'm just trying to say, what isâ€¦ how is our department acting

294
00:58:18.080 --> 00:58:25.590
Boardroom: you know, and I find these analyses kind of closer to that. So I guess my ask would be, over time, I would love to kind ofâ€¦

295
00:58:25.630 --> 00:58:29.470
Boardroom: You know, arrive at a more common set of

296
00:58:29.470 --> 00:58:41.399
Boardroom: of, of measurements that we can agree on between theâ€¦ so we're not all using our own analyses, but we're trying to find the same analyses and speak a common language. So, that's, I think, for another time.

297
00:58:41.400 --> 00:58:52.249
Boardroom: Couple last things, and I willâ€¦ thanks, Councilmember Taplin. On the early warning system, in the report, you mentioned, kind of, there were four departmental actions that arose from those audits.

298
00:58:52.370 --> 00:59:03.819
Boardroom: Which I thought was really interesting. Could you describe how that process worked, how the process of doing the audits worked, and you identified some, some, problematic situations, and there were some remedies. Can you just talk about how that works?

299
00:59:04.120 --> 00:59:21.240
Boardroom: Yeah, we don't, handle the early warning system audits. That happens internally within the department. The department selects, randomly, under its current system, 4 random officers, and it evaluates them against the criteria factors, and

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300
00:59:21.520 --> 00:59:25.280
Boardroom: theyâ€¦ those factors are not clearly laid out to the PAB.

301
00:59:26.040 --> 00:59:35.689
Boardroom: And then they come to a qualitative assessment of that officer's compliance with policy, and then they make certainâ€¦ they make certain recommendations, and you saw a couple of those in the report.

302
00:59:35.720 --> 00:59:48.180
Boardroom: With the new early intervention system, instead of only randomly selecting 4 officers, it will evaluate 80 different factors across the entire, Berkeley Police Department.

303
00:59:48.590 --> 01:00:10.809
Boardroom: sworn officer staff, and so that will, allow for more targeted interventions that you see in these reports, as opposed to there just being four. You might see many more, and there will be a more, laid out process in the early intervention policy that will be rolled out next year. Okay. Yeah, I'm really encouraged by the new system. It was more the kudos that, like, it feels like that

304
01:00:10.810 --> 01:00:14.480
Boardroom: The audit was identifying some issues.

305
01:00:14.480 --> 01:00:21.039
Boardroom: there were some remedies that were being kind of put against those issues, and I was just kind of curious how that process works, and support

306
01:00:21.110 --> 01:00:27.989
Boardroom: you know, more of that, using the technology to identify problems, and then, coming up with a solution to those problems.

307
01:00:28.440 --> 01:00:37.190
Boardroom: Last couple things. On the annual report, youâ€¦ kind of at the end of the report, there was a section where you were talking about, the production of the annual report.

308
01:00:37.190 --> 01:00:56.130
Boardroom: And, I know that in the charter, it's sort ofâ€¦ the ODPA drafts the report, and then the board approves it. And there's sort of some question about, should there be two reports, one report, what's the

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deal? I would just say, you know, from my perspective as a council member, I mean, I felt like the charter is fairly clear in that it's like.

309
01:00:56.130 --> 01:01:02.890
Boardroom: you know, the ODP is authoring it, but at some point, it's authoring a report that the full board has to approve.

310
01:01:02.890 --> 01:01:19.670
Boardroom: And so there's a, there's, you know, there's an advise and consent kind of responsibility there, and I sort of support that continued process, which is, rather than having two separate reports, or here's the ODPA one and here's the PAB one, there is a Police Accountability Board report with multiple authors.

311
01:01:19.670 --> 01:01:34.809
Boardroom: And soâ€¦ so you were asking for some feedback in the document, at least in this particular council member, my feedback is, I like having one report, and it's a collaboration between your office in terms of producing it, and the board in terms of approving it, and that there's some give and take in terms of

312
01:01:34.880 --> 01:01:59.840
Boardroom: edits and strategic direction, I mean, I feel like that's part of the process of producing a port, again, to me. So I, you know, we'll see how it goes, but that would be my feedback, that you're, you know, in terms of what you were asking for, and I think this current process could work, and you wrestle out the issues with the board, to get to a finished product that the board is comfortable with. Councilmember, can I ask if you just have other comments that you keep them for later, so we can get through our questions?

313
01:01:59.840 --> 01:02:07.399
Boardroom: Sounds good. Last question, looking forward, is what are your top 3 to 5 goals for the year? That's kind of, I guess, the college interview question, but, like,

314
01:02:07.400 --> 01:02:11.930
Boardroom: what are you trying to do in 2025 and into next year? What are your top priorities?

315
01:02:12.240 --> 01:02:36.790
Boardroom: Is that for the PAP or for ODP? Maybe for each of you, then I'm officially done. Sure. One of the things we're excited about, again, continuing relationships on our internship program side. We just had a

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conversation this week with YouthWorks. We're in the early stages of exploring an RFP process that would enhance our ability to host more, interns and collaborate, with that department a little bit more.

316
01:02:36.790 --> 01:02:43.709
Boardroom: We're continuing to expand our relationship with the university, and also exploring opportunities to do,

317
01:02:43.710 --> 01:02:51.240
Boardroom: some work-study, opportunities with both the Berkeley College and the university.

318
01:02:51.640 --> 01:02:53.910
Boardroom: And we're,

319
01:02:54.120 --> 01:03:08.010
Boardroom: we've piloted with social media, mostly LinkedIn is more of a bandwidth thing, it's low-hanging fruit, but we really want to expand that program. We know the benefit and value of it, we just want to make sure it's a sustainable program.

320
01:03:09.470 --> 01:03:20.930
Boardroom: Yeah, I think our number one goal is to pass our regulations that create a process that's fair for both officers and for members of the public, that's efficient, and that facilitates a just process.

321
01:03:20.930 --> 01:03:39.379
Boardroom: And that should be coming to completion soon. The second is to, continue to be a resource for Council, to rely on to provide, recommendations around best practices, and to provide recommendations around public safety, specifically in Berkeley. And that, that goes across, a number of areas.

322
01:03:39.380 --> 01:03:51.729
Boardroom: The third thing is to really holdâ€¦ I mean, our job is to hold the department accountable, and so when weâ€¦ when the department produces a report, our job is to analyze that report and to provide recommendations to Council based on that report.

323
01:03:51.730 --> 01:04:16.220
Boardroom: really, part of that third prong is furthering the relationship that we have with the department. I think the Councilmember has pointed out many times that there's an opportunity there for us to continue to work on relationships with the department, and I really

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personally have been pushing for that when it comes to joint policy and reporting efforts. Great, thank you. And thanks, Councilmember Taplin, for your indulgence, and thanks to my colleagues for their indulgence.

324
01:04:16.220 --> 01:04:30.309
Boardroom: Thank you. Thank you. No, you had great questions, I justâ€¦ So Councilmember Tregep is next. Okay, thank you, Madam Mayor, and this is questions only, so, I will limit it to that.

325
01:04:32.470 --> 01:04:40.880
Boardroom: to save time, I am going to go rapid fire, so I will ask all the questions right now.

326
01:04:41.530 --> 01:04:47.949
Boardroom: Some of them are just for my own edification in reading the reports. Question 1.

327
01:04:47.950 --> 01:05:02.729
Boardroom: Can you describe the difference in the report? It mentioned certain complaints were not sustained, and others. The marker used was exonerated. Could you describe the distinction?

328
01:05:02.910 --> 01:05:16.529
Boardroom: Number two, I know we're, you know, it's, well, maybe what, what is the projected date for the next report, that you will be presenting?

329
01:05:16.530 --> 01:05:27.059
Boardroom: And if you have been able to see any trends right now that may be distinct from the trends noted inâ€¦ orâ€¦

330
01:05:27.460 --> 01:05:33.209
Boardroom: the conclusions Or patterns noted in 2024.

331
01:05:34.050 --> 01:05:44.630
Boardroom: I was interested in the report, it was mentioned that one of the,

332
01:05:45.170 --> 01:05:50.299
Boardroom: Flags was for AI-assisted report writing,

333
01:05:50.810 --> 01:06:01.440

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Boardroom: there was a pending item on AI at the Council, so I was curious if you could speak more about what that would entail.

334
01:06:02.680 --> 01:06:19.849
Boardroom: I wanted to know, how is the level of adjudication determined, such as whether the police chief or the city managers determines, or investigates a violation?

335
01:06:19.950 --> 01:06:24.400
Boardroom: Or determines whether one is sustained or not sustained.

336
01:06:24.880 --> 01:06:28.980
Boardroom: Iâ€¦

337
01:06:30.170 --> 01:06:40.170
Boardroom: On page 32 of the report, it does mention, that districts 1 through 4 have the highest

338
01:06:40.300 --> 01:06:45.999
Boardroom: Geographic disâ€¦ numberâ€¦ distribution of highest number of stops.

339
01:06:46.330 --> 01:06:59.169
Boardroom: But on page 8, it says, D1 through 3 and District 7. So I was curious if that was a typo, or if, if I'm missing, a distinction here.

340
01:06:59.770 --> 01:07:06.530
Boardroom: Iâ€¦ I would love to learn more about

341
01:07:06.760 --> 01:07:22.389
Boardroom: Who has the authority to deem, a violation, or an allegation, rather, administratively closed, and what may be the reasons for administrative closure of a case.

342
01:07:22.800 --> 01:07:33.449
Boardroom: And lastly, what specific recommendations do you have, to reduce racial disparities in police stops? Thank you.

343
01:07:37.580 --> 01:07:43.110
Boardroom: I'll start with that last question, and then,

344

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01:07:43.590 --> 01:07:50.569
Boardroom: I'll also, engage with some of the earlier ones, and then I think our data analysts, orâ€¦

345
01:07:50.570 --> 01:08:08.040
Boardroom: is tracking the questions, which we might not be able to answer all of them at this time. But the, I think that's a great question, the last one, what recommendations we have. For one is, more research. Engage in more conversation and analysis about what is going on, why some of these,

346
01:08:08.040 --> 01:08:28.719
Boardroom: disparities, discrepancies, may be taking place. Again, the qualitative piece, I think, is an important element of this when we're talking about bias. We just need to understand more. Councilmember Blackaby alluded to bringing the community in more, and it'll be in our next report, but we did have, a senior citizen focus,

347
01:08:28.870 --> 01:08:32.470
Boardroom: senior citizen focus groups.

348
01:08:32.910 --> 01:08:50.190
Boardroom: where weâ€¦ we're looking at particular policy reviews, so those are sort of engagements we would like to have, where we bring in, community members a little bit more and bring them in, to share their conversations. And we also have a, a pending, task, which is to do a,

349
01:08:50.189 --> 01:09:02.170
Boardroom: a public survey, to get a better understanding of where we are with these interactions. I think the last one that was done was, a little bit near around,

350
01:09:03.939 --> 01:09:23.359
Boardroom: the 2020, mark, or shortly after. So we're in need of a more robust, over a robust community engagement survey regarding public safety to find out more about these interactions, because complaint rates, are in the, the data from the police interactions are only going to get us but so far.

351
01:09:23.560 --> 01:09:37.609
Boardroom: The other element, the more technical one about the definitions, that comes right now, the, the sort of definitions we're utilizing are from, the interim regulations. We have those.

352

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01:09:38.109 --> 01:09:42.679
Boardroom: Right now, so, for exonerated,

353
01:09:43.189 --> 01:09:54.559
Boardroom: We have, that is, for unfounded, the evidence fails to support the allegations, but the allegations cannot be shown as false. The finding shall be not sustained.

354
01:09:56.000 --> 01:10:02.849
Boardroom: That should be not sustained. If the evidence shows that the alleged act did not occur, the finding shall be unfounded.

355
01:10:02.850 --> 01:10:18.340
Boardroom: If the evidence shows that the alleged act did occur, but was lawful, justified, and proper, the finding shall be exonerated. And if the evidence shows that the alleged act did occur and the action was not justified, the finding shall be sustained. So we have very set definitions we're working off.

356
01:10:18.590 --> 01:10:27.030
Boardroom: And I'll yield to the chair if he wants to take any questions. On the question of how to reduce, racial disparities in police stops, I think,

357
01:10:27.200 --> 01:10:45.929
Boardroom: whatever metric the Council wants to use, there's an opportunity to reduce the disparity, that both the department and the PAB has identified. And I think, one of the recommendations that we made in our FIP report was for the EIS, which is being implemented. The second thing, which was not implemented but could be taken up next year.

358
01:10:45.930 --> 01:10:52.530
Boardroom: is the profiling by proxy policy. And the profiling by proxy policy, governs

359
01:10:52.610 --> 01:11:07.319
Boardroom: when BPD should be investigating, complaints made by members of the public that appear to be motivated, for reasons other than crime. So, if a member of the public,

360
01:11:08.170 --> 01:11:09.860
Boardroom: If a member of the public

361

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01:11:10.020 --> 01:11:12.670
Boardroom: calls BPD, and there's a call for service.

362
01:11:12.700 --> 01:11:31.410
Boardroom: But there is an indication in the call for service that there is a racial motivation by the caller, then, BPD policy directs, specific steps for the department to take before responding to that, and to also verify on the scene,

363
01:11:31.410 --> 01:11:46.310
Boardroom: the story that is being told. And I think in those instances, because even under, BPD's traffic model, one of the prongs is, community calls, I believe, and, the PAB has seen, repeated instances of community members in Berkeley,

364
01:11:46.470 --> 01:11:51.500
Boardroom: Who have called, BPD,

365
01:11:52.500 --> 01:12:08.490
Boardroom: on black members, on black Berkeley residents. And it turns out that the call for service resulted in a really big miscommunication, because the person, was just living their life, and they didn't know what was happening, and the officers,

366
01:12:08.540 --> 01:12:26.070
Boardroom: onlyâ€¦ were only relying on what was a faulty description or narrative, at the time, and so I think, the policy around profiling by proxy can be strengthened, it can be, enumerated better, and I think, there could be trainingâ€¦ more training around that policy specifically. So that's the recommendation from our FIP report.

367
01:12:26.590 --> 01:12:49.849
Boardroom: Thank you, and just to clarify, youâ€¦ which, recommendation did you say was already being implemented? The EIS, EIS. The earlyâ€¦ sorry, excuse me, the Early Intervention System. Early Intervention System. Okay, and, with, with apologies, I do have, two more, that I just caught, just based on your presentation. I was oneâ€¦

368
01:12:50.030 --> 01:13:02.580
Boardroom: I was curiousâ€¦ you mentioned that, external investigations may trigger internal investigations, and that is on the same incident, soâ€¦

369
01:13:02.580 --> 01:13:11.040

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Boardroom: What controls are in place to avoid double counting in those cases for statistical purposes.

370
01:13:11.250 --> 01:13:22.810
Boardroom: And lastly, it was mentioned that there were some challenges getting laptops, other IT challenges, and have those been resolved, or are they still, challenges?

371
01:13:23.540 --> 01:13:26.670
Boardroom: Next question. Do you want to take the first question? Double counting.

372
01:13:26.950 --> 01:13:28.810
Boardroom: The double count? You want to?

373
01:13:29.030 --> 01:13:46.890
Boardroom: Sorry, I was focused on the second one. I think, I mean, like, the director can weigh in. He's, more well-versed in the preparation of the complaint form, but, the allegations are presented on the same form in the PAB, so there's no double counting of allegations. It's the department's,

374
01:13:46.990 --> 01:13:59.510
Boardroom: the department separates external versus internal complaints, we don't. And so the complaint is submitted to the PAB as one complaint with multiple allegations, and none of those allegations are duplicative. Does that answer your question?

375
01:14:00.190 --> 01:14:11.340
Boardroom: So with the percentages, that there's a distinction between, internal and external, how many are sustained?

376
01:14:11.680 --> 01:14:15.570
Boardroom: That, basically, it's, it'sâ€¦

377
01:14:15.970 --> 01:14:25.930
Boardroom: the same universe of complaints, but maybe looking at the data, slightly differently? Is thatâ€¦

378
01:14:26.480 --> 01:14:27.709
Boardroom: Basically, yep.

379

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01:14:29.610 --> 01:14:36.010
Boardroom: Yeah, soâ€¦ In terms of our complaints, when we're thinking about the sustained rates, or evenâ€¦

380
01:14:36.100 --> 01:14:50.990
Boardroom: the agreement rates between our office, the chief, and the city manager's office, that follows within our own data set of the complaints known to us. So for example, if 10 of our allegations get forwarded to the chief, but we only disagree with 7,

381
01:14:51.010 --> 01:14:56.939
Boardroom: Then those would be the ones that would go to the city manager's office, and it's to our discretion, but they follow our sameâ€¦

382
01:14:57.100 --> 01:15:01.100
Boardroom: Sort of our own dataset, they're all accounted for within the sameâ€¦

383
01:15:01.110 --> 01:15:15.889
Boardroom: Set of data. In terms of the external versus internal, this is more of a BPD process. We, as we mentioned, we're complaint-driven, so we don't necessarily initiate our own investigations. So, whatever, our number is, it's sort ofâ€¦

384
01:15:15.890 --> 01:15:40.160
Boardroom: doesn't really change because we would consider that complaint as its own separate incident. The allegations might change, and Director Aguilar, could speak a little bit more to what that process looks like with the complainant. But for double counting, having worked with that data, it doesn't really comeâ€¦ at least for us, it doesn't really present an overlap, because the data sets areâ€¦ sort of, they're separated. So BPD will send us their number.

385
01:15:40.160 --> 01:15:49.089
Boardroom: we can't really cross-verify them, apart from knowing how many we sent them. So the internal one doesn't really overlap, butâ€¦

386
01:15:49.280 --> 01:16:11.659
Boardroom: I'll pass this to Director Aguilar for more context. I don't have additional context just yet, but I do want to address also the other, question, which is the IT. Weâ€¦ I just had a recent conversation with the city manager, so it was an ongoing conversation. Just a background on that, we used a snow ticket in the city, one of my first snow ticket requests to Mayor Aragin.

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387
01:16:11.660 --> 01:16:27.920
Boardroom: Was that we wanted to make sure that I was, transferring information to the PAB in a very secure and confidential way, utilizing the city's infrastructure. And I've been in other jurisdictions where I was able to procure laptops for our, commissioners. It's beenâ€¦

388
01:16:27.920 --> 01:16:46.960
Boardroom: for me, a very exhaustive sort of conversation over years, in here regarding the importance of that, and I've spoken with several city managers, deputy city managers, and, the IT director on this. I'm hopeful that we are getting to a closer place, but it has not been, fully resolved yet.

389
01:16:47.050 --> 01:16:58.910
Boardroom: I thinkâ€¦ I think where itâ€¦ it actuallyâ€¦ it matters to the PAB is, we don't have access to ShareDrive, orâ€¦ or Google, or the Share Drive that, for the Microsoft systems that Berkeley uses, and so BPD,

390
01:16:58.910 --> 01:17:15.360
Boardroom: maintains all of their records on a shared drive, and theyâ€¦ we would be able to create a joint folder to share data, but we're not able to because we're not able to use, actually, a shared drive, and so that's prevented us from accessing certain data that we would be able to otherwise, and so they have to, like, you know, take it down to PDF and send it to us.

391
01:17:15.360 --> 01:17:19.020
Boardroom: But it's not very collaborative, you know? Is that the subject ofâ€¦

392
01:17:19.120 --> 01:17:27.700
Boardroom: Like, like, is that a policy decision, or is that just something that's a point of agreement, but hasn't been implemented?

393
01:17:27.800 --> 01:17:28.880
Boardroom: Yet.

394
01:17:29.860 --> 01:17:32.180
Boardroom: I think it's a city, ITâ€¦

395
01:17:32.640 --> 01:17:39.929

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Boardroom: And appropriations question, not a policy that we have to really adopt as a board.

396
01:17:40.440 --> 01:17:58.819
Boardroom: Okay, thank you. And then I did want to make sureâ€¦ I'd love to get a response on the AI question, using AI to, enter, citations, or if I'mâ€¦ just, for my own edification, I was trying to understand.

397
01:17:59.110 --> 01:18:02.300
Boardroom: What, this was getting at.

398
01:18:02.300 --> 01:18:20.760
Boardroom: I'm sorry, which element is it? The AI part? I know, but which part? Was it, the body-worn camera sort of, AI use, orâ€¦ It wasâ€¦ So, the report writing. Okay. The report writing. AI-assisted report writing. Yes, and for this, we were, part of the history there, we,

399
01:18:20.760 --> 01:18:28.580
Boardroom: We're tracking the different technologies. Axon, the, company that our city utilizes for body-worn camera.

400
01:18:28.580 --> 01:18:51.620
Boardroom: they had launched at the time, and they were promoting their AI-assisted, report writing, and the department had not made any indications that they were looking into this. This was a sort of, example where the PAB in the office was being proactive on looking at an issue before, or, or emerging technology, before it could be adopted or even contemplated.

401
01:18:51.620 --> 01:18:55.619
Boardroom: So, we were able to partner with, the Brooklyn Law,

402
01:18:55.620 --> 01:19:18.899
Boardroom: the department, that's being headed by, Chase Aboudin, and we did a very thorough, robust analysis on this, and looked at, what were the, benefits and, and the trade-offs for utilizing this. This technology is very early in the stages. It could be promising, it, it, promotes and, being able to get officers,

403
01:19:18.900 --> 01:19:36.289
Boardroom: off the desk and back on the street, but it is not necessarily without issues, and it could be potentially legally, contested, and so we're tracking this issue. I think, it's still in its early phases. There's a few recommendations that came out of that analysis.

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404
01:19:38.810 --> 01:19:56.560
Boardroom: and I think this is my last clarifactory question, but in the context of, there were some complaints that were made, and that was the category, isâ€¦ is that theâ€¦ is that the contention by a complainant, is that allegedly.

405
01:19:56.560 --> 01:20:03.760
Boardroom: They, like, someone improperly used AI technology, or didn't use it for policy.

406
01:20:03.840 --> 01:20:05.490
Boardroom: To write up the report.

407
01:20:05.950 --> 01:20:12.169
Boardroom: I don't think there was aâ€¦ I mean, the director can correct me if I'm wrong, I don't remember a complaint about AI.

408
01:20:12.170 --> 01:20:26.260
Boardroom: I think, there are complaints that we receive about, failure to write a proper report, or putting false information in a report, but I don'tâ€¦ the department doesn't use AI for its reportâ€¦ for its, reporting process, and soâ€¦

409
01:20:26.330 --> 01:20:29.109
Boardroom: That wouldâ€¦ that would be surprising to me.

410
01:20:29.800 --> 01:20:40.570
Boardroom: Okay, I think I maybe conflated the policy review oversight section with, report writing later on. Okay, thank you. Thank you, Councilmember Humbert?

411
01:20:40.630 --> 01:20:50.659
Boardroom: Yeah, thank you, Madam Mayor. And thank you all for the presentation, and thank you for this very thorough report that you've provided us.

412
01:20:50.780 --> 01:21:02.490
Boardroom: A lot of work went into it. And I appreciated, Chair Cayetano's reference to, my comments, I guess, a year ago about,

413
01:21:02.560 --> 01:21:13.240

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Boardroom: vexatious complainants, because that's the first thing on myâ€¦ the first question on my list here. What, you know, and you mentioned that you're looking into.

414
01:21:13.530 --> 01:21:26.339
Boardroom: ways maybe to sift out the vexatious complainants from the, you know, the complainants who have righteous, complaints. What have you been doing in that regard?

415
01:21:26.750 --> 01:21:29.899
Boardroom: So we, we're amending our,

416
01:21:30.350 --> 01:21:39.489
Boardroom: regulaâ€¦ not our regulations, our operating procedures, to introduce a vexatious complainant, provision. There is an opusâ€¦ opâ€¦

417
01:21:39.780 --> 01:21:49.099
Boardroom: open question about whether that provision needs to go through meet and confer. And so, that is something that is holding up part of the process.

418
01:21:49.240 --> 01:22:03.499
Boardroom: There's another question about, the interaction with our charter, because the charter does require, complaints to be submitted to the board, and so there's aâ€¦ we could, do a quick look, so to speak, of,

419
01:22:03.560 --> 01:22:23.419
Boardroom: complaints that areâ€¦ that the director considers to beâ€¦ fall under the vexatious complainant standard, submit them to the board for, adjudicationâ€¦ for a quicker adjudication before, actually engaging on further fact-finding. But I think the thing that's holding it up right now is, this question around meet and confer, and also,

420
01:22:23.580 --> 01:22:29.329
Boardroom: Yeah, that's primarily the question. Okay. Alright, thank you. I appreciate that.

421
01:22:29.700 --> 01:22:46.659
Boardroom: But that remains a concern of mine. I'm convinced there are, you know, there's a small group of people out there that are generating a disproportionate number of these complaints, and it sounds like that's correct. But, you know, even the courts have a hard time dealing with vexatious litigants because

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422
01:22:46.660 --> 01:22:51.840
Boardroom: You know, you want people to be able to, you know, to exercise their constitutional rights toâ€¦

423
01:22:52.030 --> 01:22:55.460
Boardroom: to, to make these complaints. So,

424
01:22:55.900 --> 01:23:15.280
Boardroom: Here's another relatively specific question. The report notes that the category of discourtesy is one which, your office is targeting, and I guess this is to, to the DPA, your office is targeting for disaggregation to increase analytical precision.

425
01:23:15.370 --> 01:23:23.399
Boardroom: However, I noted that of 107 allegations of discourtesy, only one was sustained in 2024.

426
01:23:23.490 --> 01:23:41.310
Boardroom: Given the extremely low absolute numbers and percentage of complaints sustained in this category, why do you think it's worthy of analysis via some process of disaggregation rather than, for example, you know, an analysis of complaint sources?

427
01:23:45.620 --> 01:23:58.010
Boardroom: If I may. Okay, sure. The BPD's policy, actually disaggregates this courtesy as a separate, by itself, and so we're following what BPD does there. Okay.

428
01:23:58.590 --> 01:24:09.410
Boardroom: But does it merit, you know, a lot of energy and time when we're talking about 1 out of 107? I mean, that seems de minimis to me.

429
01:24:10.080 --> 01:24:14.970
Boardroom: I don't think there would be much energy and time into evaluating just one. Alright, okay. No, that's fair.

430
01:24:15.990 --> 01:24:32.720
Boardroom: Another question. Since 2021, the total number of allegations has tripled or quadrupled, while sustained findings have remained relatively flat. In your view, what explains this widening gap between allegations and sustained findings of police misconduct?

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431
01:24:33.570 --> 01:24:56.960
Boardroom: One thing I would say is related to your previous question in line of inquiry, 2024 was a very unusual year, and happy to go into closed session and talk more into the weeds of it, but, it was, a lot of our numbers were driven in part, by certain community members, and, one thing I would just say and caveat that, each of these,

432
01:24:56.960 --> 01:25:00.329
Boardroom: Complaints generated by a few individuals.

433
01:25:00.330 --> 01:25:23.249
Boardroom: they were corroborated with actual interactions, so it wasn't like they were, there wasn't any prima facie, threshold met there, and I think that's what complicatedâ€¦ we were now forced to look at this more closely, because it was getting through the complaint intake phase, but then when we got to the other side of it, we got body-worn camera footage, and it says, whoa.

434
01:25:23.390 --> 01:25:47.009
Boardroom: It's not what's being described here. We also did interact a lot with the city attorney's office to make sure that we were properly utilizing the framework, the interim regulations and the charter, to be able to, properly, come up with dispositions for that in a way that respected the rights of the complainant, the due process rights, and also of the officers.

435
01:25:47.010 --> 01:26:05.869
Boardroom: We've been having these conversations. What can we do with the assistance framework? But, again, 2024 was unusual in that regard, that a lot of our numbers were driven by particular individuals, but they were also verified instances with those, complaints.

436
01:26:05.870 --> 01:26:07.829
Boardroom: Okay. No, I appreciate that.

437
01:26:08.400 --> 01:26:24.250
Boardroom: Another relatively specific question, the report notes that, that you, the ODPA, or the DPA, applied for multiple grants, but you weren't awarded any. How many grants did, did, the office apply for?

438
01:26:24.590 --> 01:26:35.570
Boardroom: Can you answer that question? Yeah, we were swinging for the fences, so there were two big, grants, close to a million dollars, over multiple years, soâ€¦

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439
01:26:36.370 --> 01:26:44.180
Boardroom: Okay. One was through the, U.S. Department of Justice, and the other one was the Mayor's, Bloomberg Challenge.

440
01:26:46.690 --> 01:26:48.790
Boardroom: Did you work with theâ€¦

441
01:26:48.920 --> 01:26:57.340
Boardroom: city attorney and the city manager's office toâ€¦ to create these grant proposals? We did,

442
01:26:57.390 --> 01:27:21.930
Boardroom: screenâ€¦ so, at the stages where they were, they did not require that interaction, and we were utilizing the city's framework for that. At some point, if we proceeded with them, we would have to, naturally interact with those offices. At the stage where we initially applied, we did not. But we did, reach out for, collaborations, like, with the BPD, because it did impact, that, and it would

443
01:27:21.930 --> 01:27:26.120
Boardroom: required that collaboration. Okay. You just didn't get there, is that right? Correct.

444
01:27:26.270 --> 01:27:44.839
Boardroom: And then this reflects something that, that Councilmember Blackaby mentioned, this, bifurcated reporting model with separate reports being issued by the Office of the DPA and, and the Police Accountability Board itself. And I guess, you know, just quickly,

445
01:27:45.020 --> 01:28:00.320
Boardroom: I want to respond to that. I think, likewise, that I would only want to see one report. The charter created both of, the, both offices, both the board and the office together, and what I'd like to see, personally, is

446
01:28:00.450 --> 01:28:11.389
Boardroom: is what we've been seeing, which is a report, drafted by the Office of the, the ODPA, and then approved by the board.

447
01:28:12.950 --> 01:28:15.439
Boardroom: Okay, Councilmember Blackaby coveredâ€¦

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448
01:28:15.690 --> 01:28:22.009
Boardroom: The issue about, you know, recovery rates, yield rates, and metrics, like day versus night traffic stops.

449
01:28:22.060 --> 01:28:41.450
Boardroom: In my view, those are the best practices, and I have real concerns, that, for example, the comparison of the traffic stops to the demographics of Berkeley don't really get at the real issue, because our borders are porous. I mean, our city boundaries are porous.

450
01:28:41.450 --> 01:28:49.200
Boardroom: And the demographics of our surrounding cities are very different from ours. So I don't think that's aâ€¦ I don't think that's a good stat.

451
01:28:49.250 --> 01:28:57.970
Boardroom: In my view. Okay, I think that's it. Let me, let me just double-check here.

452
01:29:00.970 --> 01:29:18.100
Boardroom: No, that's it. Thank you. If I may, because you had a question about this, I think maybe the question was also, what was unclear? Because it said that the process is ambiguous and unclear, in regards to the report, and I was curious to know what was unclear.

453
01:29:18.550 --> 01:29:32.240
Boardroom: We're talking about the production of the report? Yeah, soâ€¦ The bifurcation question. Yeah, and I'll take lead on this, and I don't know if the, chair, has the same sentiment. So, there's definitely,

454
01:29:32.750 --> 01:29:57.450
Boardroom: Let's take a step back, what I was proposing here, there is, precedent in other jurisdictions, sort of oversight, where the board writes a report and the office writes a separate report. I understand, the, the sort of bandwidth concerns about all these different entities and about doing more work than necessary, so I want to acknowledge that. I think what my concern was that

455
01:29:58.810 --> 01:30:19.510
Boardroom: they'reâ€¦ in writing and putting together these different elements of the report, there's an editorial element that I think is sometimes difficult to reconcile, where, we're atâ€¦ we're asked toâ€¦ tasked to produce this report, but sometimes it's being editorialized in a way that may or may not

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456
01:30:19.510 --> 01:30:31.939
Boardroom: be within, sort of what the office's philosophical standpoint is on how the charter is seeking a report. So, we're looking at it from a very technical, like, these are the things, butâ€¦

457
01:30:31.940 --> 01:30:56.649
Boardroom: the language behind how we present it, that's where sometimes the difficulties, come into place, how to say and how to present the data, the data, you know, speaks for itself, soâ€¦ and I know I can get in trouble with that, but, how we talk about it, I think, matters, and sometimes council members may ask questions, why did you say it this way, and why did you not say it that way? And then that's where theâ€¦

458
01:30:56.690 --> 01:31:14.710
Boardroom: different authors coming into place, that's where the sort of challenges could present themselves. But I don't know if that answers the question neatly, but, I just think the editing process isn't as spelled out in the way that other processes are spelled out in the Charter.

459
01:31:17.100 --> 01:31:31.649
Boardroom: Okay, so it seems like part of the issue is really in agreeing on how to present the report, perhaps? That part is unclear, but maybe also more clarity might be helpful from the Charter itself.

460
01:31:32.320 --> 01:31:55.190
Boardroom: or Council's direction, like, what is intended in terms of, like, patterns, and what is it that you want us to report on? Some things that the office believes fit within the framework of patterns, may or may not make it to the report or get edited out, and is that theâ€¦ what is the intent, what is theâ€¦ of Council and the public when they're consuming this report? I see. Okay, thank you.

461
01:31:55.190 --> 01:31:57.060
Boardroom: Councilmember Bartlett.

462
01:31:57.870 --> 01:32:08.099
Boardroom: Thank you, Madam Mayor. Thank you for your very comprehensive report here. Quickly, just to hone in on a couple of points.

463
01:32:08.330 --> 01:32:12.639
Boardroom: Looking at the, the stops data,

464

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01:32:13.160 --> 01:32:22.870
Boardroom: And do you have access to the information as toâ€¦ of the pullovers who lived inâ€¦ who are residents of Berkeley and who are not? Is that captured at all?

465
01:32:23.610 --> 01:32:47.159
Boardroom: Within our report, or in general? In general, in your report. Well, I don't recallâ€¦ I'll have the director, just verify that. But yes, the stop data does, BPD's transparency Portal does, in fact, include whether a person or someone being pulled over is a resident of Berkeley, not Berkeley. It's actually analysis, I believe, we presented in the Fair and Impartial policing report.

466
01:32:47.370 --> 01:33:10.380
Boardroom: Earlier this year, where we did a similar analysis for, residents of Berkeley and those coming from outside, from other cities and other jurisdictions passing through. If I recall correctly, and we could certainly get back to your office about that, but when we did that analysis, when we compared the population of residents versus non-residents, the patterns and distributions were relatively the same.

467
01:33:10.510 --> 01:33:19.139
Boardroom: So, if, we presented, we had a slide on this in our presentation, but it does analyze, non-Berkeley versus Berkeley residents.

468
01:33:19.140 --> 01:33:30.860
Boardroom: And theâ€¦ for black people residing in Berkeley, this is in our report, they were 6.55 times as likely to be stopped as their white counterparts. And that is for residents of Berkeley specifically.

469
01:33:31.070 --> 01:33:37.280
Boardroom: So, I would reference our FIP report there. Okay, yeah, so thatâ€¦ okay, so that, that sort of,

470
01:33:37.450 --> 01:33:50.469
Boardroom: paints a very clear picture. And honing in on, the reasons for the stops, the top two, of course, are, violation of traffic and, reasonable suspicion. And so.

471
01:33:50.610 --> 01:33:56.249
Boardroom: Reasonable suspicion, of course, is a pretty low threshold. I don't know the exactâ€¦ I'm not a criminal lawyer.

472

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01:33:56.450 --> 01:34:07.159
Boardroom: I don't know the exact threshold of what that is, preponderance, orâ€¦ It's low, right? Lower than preponderance. Yeah, and so this is where theâ€¦ where the bad, the bad mindset comes through.

473
01:34:07.250 --> 01:34:20.960
Boardroom: and reasonable suspicion. You know, but I know we've taken steps to sort of categorize the metrics that lead to theâ€¦ at least quantify your suspicion, via these reporting tools they have. Can you talk about that at all?

474
01:34:24.810 --> 01:34:29.150
Boardroom: You know, like, he was hanging out theâ€¦ he was hanging out the seat. He was waving hisâ€¦

475
01:34:29.310 --> 01:34:30.190
Boardroom: You know.

476
01:34:30.450 --> 01:34:46.719
Boardroom: Wait, what appeared to be a gun out the window, I don't know. This kind of thing. I don't know if there's been an effort to quantify in that sense. However, I think there is an emphasis in the department on report writing and the act of report writing, which is going to Councilmember Trigov's question about AI-assisted report writing.

477
01:34:46.720 --> 01:34:56.230
Boardroom: There's something that AI does where it consolidates and it uniform, it makes, report writing uniform such that it will,

478
01:34:56.700 --> 01:35:11.409
Boardroom: input those key words, thatâ€¦ that take away from the officer'sâ€¦ that don't show what the officer was actually, seeing or deciding in that time. And so I think, we haven't evaluated, like, systematically what those reports say, and whether they'reâ€¦ whether,

479
01:35:11.580 --> 01:35:28.409
Boardroom: they are inserting those phrases that are, from our perspective, suspicious, or, like, sort of red flags. But if that's something that the Council's interested in, we can do that, especially as it comes to evaluating BPD's, three-pronged traffic approach, because really, what they're trying to do with their three-pronged traffic approach

480
01:35:28.410 --> 01:35:29.750

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Boardroom: is,

481
01:35:29.750 --> 01:35:54.669
Boardroom: find race-neutral, indicia, to allow them to guide their enforcement mechanisms. And so, the way that we can reconcile, or to analyze that is to analyze how the officers are actually reporting, and to match up what they say is, what they're, what they're using as their criteria with what the officers are actually reporting. But that is a labor-intensive process. There's not, like, aâ€¦ there's not, like.

482
01:35:54.670 --> 01:35:57.850
Boardroom: A system to evaluate that that's currently in place.

483
01:35:57.860 --> 01:36:04.610
Boardroom: Okay, that'd be something to consider in your recommendations going forward. Possibly, future ARs, orâ€¦

484
01:36:04.690 --> 01:36:11.279
Boardroom: Policies around some of these information-gathering tools that I know we do use, and are available to us.

485
01:36:11.750 --> 01:36:14.070
Boardroom: You about to speak? Yeah,

486
01:36:14.730 --> 01:36:29.439
Boardroom: you can consult with Chief Lewis on this, but thereâ€¦ Iâ€¦ we have experienced extreme pushback when it comes to being able to access these records, and so if we were to engageâ€¦ to do this sort of policy work that you're envisioning, there would have to be buy-in from the department on that. Okay.

487
01:36:29.660 --> 01:36:33.030
Boardroom: Something we can, work on together.

488
01:36:33.100 --> 01:36:51.930
Boardroom: The, other element I want to address with my colleagues about the, the racial makeup of people outside of Berkeley versus Berkeley, I'm not surprised that you say that the evidence is the same, because if you look at our neighbor to the left, to the south, and to the north, it probably evens out, in terms of our makeup.

489
01:36:52.060 --> 01:36:54.770
Boardroom: To our north is very,

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490
01:36:54.980 --> 01:37:11.980
Boardroom: very, I guess, you know, white, essentially, to our south, less white. Richmond's past our immediate neighbors. But overall, the overall, I guess, distribution probably will paint a similar picture, richly.

491
01:37:12.290 --> 01:37:16.530
Boardroom: Okay, and then the last piece is just, I guess,

492
01:37:18.880 --> 01:37:31.589
Boardroom: In terms of the yield per pullover, that's another example, another, another indicator. What are your thoughts on our yield ratios compared to other cities, similar disposition?

493
01:37:33.250 --> 01:37:38.320
Boardroom: Yeah, so I could, read from a paragraph of our report on the yield,

494
01:37:41.920 --> 01:37:51.720
Boardroom: It says that City Auditor's data analysis shows that only 13% of calls from community members resulted in a citation or arrest, compared to 42% of officer-initiated stops.

495
01:37:51.720 --> 01:38:03.730
Boardroom: To effectively reduce the potential for profiling by proxy, which I mentioned earlier, analysis of this 13% should be conducted to determine what types of community calls are most likely to yield a law enforcement response crucial to public safety.

496
01:38:03.730 --> 01:38:21.169
Boardroom: And so I think, when it comes to yield rates, what we see is that when members of the community, which is a prong that BPD uses in its enforcement, actually results in a lower yield rate. And so, that's something for the Council to keep in mind as it analyzes the effectiveness of what BPD has put for its policy here.

497
01:38:21.270 --> 01:38:41.010
Boardroom: And then when I was in the Police Review Commission in its prior iteration, that was, a key policy element that kept coming up. And, we had aâ€¦ the BPD was very, proactive in engaging with us on trying to craft, some process to minimize, sort of, racism by proxy, and so,

498

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01:38:41.250 --> 01:38:47.550
Boardroom: is distressing it's still active, but I'm glad you're on it, and please keep at it. Thank you.

499
01:38:48.330 --> 01:38:54.490
Boardroom: Thank you. Councilmember Lenopara, did you have a follow-up question? No, I have a comment. So, I'll wait. Thanks.

500
01:38:54.490 --> 01:39:18.550
Boardroom: Got it. Alright, I have 3 questions, and then, I really want to move on, because it's already 5.40. So the report lists that there are 12 active subcommittees. I know it seemed like maybe there were fewer when you just had it up on the screen, but this seems like a lot of work for 6 folks who I know are currently there, so I'm curious, what are the priorities for the subcommittees, and how are you measuring their outcomes?

501
01:39:18.870 --> 01:39:26.370
Boardroom: So these areâ€¦ many of them are ad hoc committees, so the Regulations Committee, for example, I mean, they meet consistently, but,

502
01:39:26.370 --> 01:39:40.190
Boardroom: They're not a standing committee, internally. They meet with, external city stakeholders. The Fair and Impartial policing committee was an ad hoc committee, and that has been dissolved since the report has been published, and all the action items are finished.

503
01:39:40.250 --> 01:39:57.850
Boardroom: And so in terms of what our priorities are, we really wanted to, and we have a, we implemented a plan this year to, standardize our committees, and one of them was to establish a policy committee and to streamline all policy requests through this policy committee, and so the department has a consistent,

504
01:39:57.850 --> 01:40:14.889
Boardroom: you know, a partner to collaborate with as well, and so they know who to go to, and when they're thinking of revising policies, who they should communicate with. And so the policy subcommittee is really one of the three anchors. The other one is, I believe the Budget and Operations Committee, but that comes up every two years, and it's coming up now.

505
01:40:14.890 --> 01:40:25.350

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Boardroom: And so that's something that, you know, as the process kicks up, kicks, begins internally within the city, that's something that we are, we are also aligned on with the city's processes.

506
01:40:26.870 --> 01:40:43.260
Boardroom: That's really helpful, and I'm glad to hear that you're consolidating. I think that makes a lot of sense. This question just came up for me during the presentation. How does the amount of time and training for BPD compare to other departments? I'm not sure if you looked into that. Is that high, low, average?

507
01:40:43.840 --> 01:41:05.310
Boardroom: That's one area of the report that was new for us this year. We didn't do that analysis. There was more that we can do, on that. This was very surface level, just compilation of the hour, so we don't have the response for you yet, but we are actually, interested in expanding our analysis there, because they provide a lot of data points for us that I think is important, especially as we're going into budget season.

508
01:41:05.310 --> 01:41:17.639
Boardroom: Thank you, and can you clarify your community engagement objectives? Like, what kind of deliverables are you trying to achieve? Do you keep track of how many people you talk to or reach out to? What kind of metrics do you keep?

509
01:41:18.540 --> 01:41:23.160
Boardroom: And this is for the office or the board, because we mightâ€¦ may or may not have different strategies here, butâ€¦

510
01:41:23.160 --> 01:41:42.469
Boardroom: I don't want to speak for your subcommittee. Okay. So I'll speak from the office's perspective. One of the things we want to do is raise awareness about the program. So, being at the visible community events, both internally, externally, is important to us, but also making sure that we're mindful of our bandwidth.

511
01:41:42.470 --> 01:41:54.220
Boardroom: So, we're, identifying those events. We do normally have, sign-up sheets, because we are actively increasing the number of folks that we add into our.

512
01:41:54.460 --> 01:42:08.939
Boardroom: listserv, so that's, that's something that we do. We also, field a lot of inquiries online, whether through email or through, also

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through phone calls through our office, so those are sort of engagement, pieces. Last,

513
01:42:08.940 --> 01:42:15.760
Boardroom: Year, or we highlighted in the last year's report, we did, acquire,

514
01:42:15.760 --> 01:42:19.490
Boardroom: The, civil, complaint,

515
01:42:19.600 --> 01:42:38.930
Boardroom: processing system, it's a case management system, but it's also more than that, and allows us to be able to track a lot of data. We just haven't been able to merge all the data, and we're planning to be able to provide that information out to Council in our next upcoming report, because there's a lot of data that's just not, being communicated out.

516
01:42:38.930 --> 01:42:43.650
Boardroom: I think, from the board's perspective, I think we don'tâ€¦ we don'tâ€¦ metrics are hard.

517
01:42:43.650 --> 01:43:03.149
Boardroom: But benchmarks are something that I try to set for our board. One of them is I've tried to instill a sense in every board member that has come on to connect with the local community organization that's in their district. And I think sharing the public safety perspective to a local community organization is something that's important, and it's something that roots us in the community, something that we should stay connected to.

518
01:43:03.150 --> 01:43:22.810
Boardroom: And the second thing is another benchmark that we try to set every year is to host a community event, and, specifically around a policy that's of community interest. And so, one of the priorities for the board this year has been around immigration policy, and so we've beenâ€¦ we're working on hosting a community event to bring in.

519
01:43:22.810 --> 01:43:31.939
Boardroom: Different stakeholders to, bring in different jurisdictions from around the country to explain best practices when it comes to implementing a sanctuary city policy.

520
01:43:33.090 --> 01:43:51.980

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Boardroom: Thank you. And then also, I'm just curious, has, ODPA partnered with BPD to do community outreach? Or actually, neither PAP or ODPA? We have partnered in, in different ways, and I know one of the, board members, Board Member Wells, did go out to,

521
01:43:52.300 --> 01:43:54.109
Boardroom: Coffee with a Cop,

522
01:43:54.110 --> 01:44:13.879
Boardroom: event, so there are times when the, department taps into us. We didn't do National Night Out this year, but that's typically an event that we partner with them, so, we try to, have these conversations. I know with Arlo also, we're exploring one of our things for our work plan in our office was to

523
01:44:13.890 --> 01:44:27.960
Boardroom: have a sort of geek-out day, where we would talk about data and teach them about the trans community members, about the transparency hub, and that is a natural partnership with Arlo in that, segment of the, BPD.

524
01:44:28.360 --> 01:44:39.270
Boardroom: And I'm on a steering committee put together by Dr. Arredondo on the Gun Violence Prevention Program, and that's, both us and BPD are on that, and we collaborate with the community there.

525
01:44:39.700 --> 01:44:45.359
Boardroom: That's great, thank you. Okay, so moving on to, public comment.

526
01:44:45.640 --> 01:44:55.840
Boardroom: I think we've gotten all of our questions now. Do we have any public comment on this item? This is a special meeting, so this is the only item on our agenda.

527
01:44:56.960 --> 01:44:59.110
Boardroom: And are there folks online, too?

528
01:45:02.400 --> 01:45:07.379
Boardroom: I'm interested in the development of the vexatious

529
01:45:07.690 --> 01:45:16.860

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Boardroom: complainant policy and what the consequences would be to the complainant. I can see where that would arise, and it would be an issue of concern.

530
01:45:17.120 --> 01:45:26.910
Boardroom: But would they be barred from making a complaint in the future? And what if they did make a series of unmerited, frivolous complaints, but they actuallyâ€¦

531
01:45:27.020 --> 01:45:29.190
Boardroom: Then, have a valid complaint.

532
01:45:29.580 --> 01:45:34.199
Boardroom: And I'm concerned about persons with mental health issues who might be complainants.

533
01:45:34.420 --> 01:45:46.560
Boardroom: Because you sometimes have to filter through what they're saying, and sometimes it may not be valid, but within it, they can actually have a valid underlying complaint.

534
01:45:46.570 --> 01:45:58.739
Boardroom: Particularly in the way that they're treated. And that goes for not only complainants, but witnesses, that they have to be given some credibility. You have to work through that.

535
01:45:58.830 --> 01:46:02.429
Boardroom: So it'll be interesting to see how the policies,

536
01:46:02.560 --> 01:46:13.810
Boardroom: proposed. Are there common issues in the vexatious complaints, orâ€¦ that are being alleged? Is there a common officer involved?

537
01:46:13.910 --> 01:46:29.039
Boardroom: Do we look at those, because of those issues? I was interested in the, when the chair stated about there was a particular black resident in the community, about how repeated, unfounded complaints were made against him.

538
01:46:29.040 --> 01:46:46.379
Boardroom: And Iâ€¦ I'm very curious to know the nature of that, and what's that all about, if he was just, as the chair said, living his

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life. Were they looking at something he was doing in his yard, and just complaining unnecessarily? Was he a homeless person? Becauseâ€¦

539
01:46:46.590 --> 01:47:05.660
Boardroom: There can be valid complaints against homeless people, and there can be sometimes community members who just don't like to see homeless people. In fact, itâ€¦ I've heard, or been told of people who observe a homeless person, and they literally follow them around, watch what they're going, and ifâ€¦

540
01:47:05.860 --> 01:47:07.589
Boardroom: Thank you. Thanks, Carol.

541
01:47:14.390 --> 01:47:15.140
Boardroom: Bye.

542
01:47:16.240 --> 01:47:16.980
Boardroom: Workers.

543
01:47:18.050 --> 01:47:18.730
Boardroom: Hmm.

544
01:47:21.780 --> 01:47:25.490
Boardroom: I really like coming up here, so thank you for all being there.

545
01:47:25.640 --> 01:47:32.359
Boardroom: And in case I need an extra minute, Steve said he would give me one, but hopefully I'll be done quicker than that.

546
01:47:32.510 --> 01:47:35.940
Boardroom: But I'm here at the moment because I really want to thank

547
01:47:36.850 --> 01:47:40.470
Boardroom: These people, I've been to a bunch of their meetings.

548
01:47:40.900 --> 01:47:50.250
Boardroom: Because transparency and accountability would be just so gloriously helpful in these perilous times.

549
01:47:50.380 --> 01:48:06.739

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Boardroom: I was in Chicago back in the 60s and had plenty of interactions with the non-accountable and non-transparent police department there. So I really appreciate it, especially with cop cities rising everywhere.

550
01:48:07.020 --> 01:48:10.639
Boardroom: And the question is, is Berkeley going to beâ€¦

551
01:48:11.180 --> 01:48:13.739
Boardroom: Of, for, and by the people.

552
01:48:14.050 --> 01:48:15.789
Boardroom: So, thank you, Mayor.

553
01:48:16.100 --> 01:48:34.889
Boardroom: Because I feel some confidence that we're going to try to stick to that, so thank you. Yeah, because I also was happy to report a police officer that literally de-escalated a situation so exquisitely, I had toâ€¦

554
01:48:34.990 --> 01:48:39.740
Boardroom: Call it in, because it's like, wow!

555
01:48:40.120 --> 01:48:51.030
Boardroom: That was beneficent. So, I've been to some de-escalation trainings, because again, you all know I'm a hippie, and I much prefer peace

556
01:48:52.100 --> 01:48:54.500
Boardroom: And love to war.

557
01:48:54.640 --> 01:49:01.169
Boardroom: So, yeah, because we're also utterly, in Oakland and almost everywhere, totally

558
01:49:03.450 --> 01:49:09.030
Boardroom: I don't have an appropriate, polite word about the drones and surveillance.

559
01:49:10.570 --> 01:49:20.589
Boardroom: That is mushrooming and expanding, all with the intention of protection, just like we have nuclear bombs

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560
01:49:21.160 --> 01:49:35.049
Boardroom: mutually assured destruction. It's like, let's stick to peace. Thank you. Yes, please, I do have an extra minute. Yeah, you can take another minute. Thank you, because this really matters to me. It's the only reason why my bones are still standing here.

561
01:49:38.300 --> 01:49:39.500
Boardroom: Gosh.

562
01:49:39.950 --> 01:49:47.220
Boardroom: I want to be safe, I want everyone to be well, but that doesn't mean I should carry 50 machine guns, so please.

563
01:49:47.370 --> 01:49:55.510
Boardroom: Pleaseâ€¦ Pleaseâ€¦ I heard you mention the program for kids. If weâ€¦

564
01:49:55.860 --> 01:50:03.740
Boardroom: If we supply what people need, They will not beâ€¦ desperate.

565
01:50:04.800 --> 01:50:06.439
Boardroom: I've been desperate.

566
01:50:06.960 --> 01:50:13.840
Boardroom: I once reached out, I was so hungry, and, quote, stole a steak up my sleeve.

567
01:50:14.410 --> 01:50:22.960
Boardroom: However, I put it back when I saw another woman looking at the prices that obviously go up when people steal.

568
01:50:23.080 --> 01:50:27.830
Boardroom: My point is, let's care for each other. Please, let'sâ€¦

569
01:50:27.940 --> 01:50:34.529
Boardroom: guide each other. I've worked with kids. Let's help each other. Thanks. Thanks. Thanks, Maria. And thank you, Sheet.

570
01:50:37.720 --> 01:50:39.410
Boardroom: Am I okay? Yep, come on up.

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571
01:50:39.920 --> 01:50:41.589
Boardroom: Hi, Mayor, how are you?

572
01:50:42.090 --> 01:50:52.520
Boardroom: I want to thank you again for the excellent years of service that you have provided to Berkeley and to the larger community. As I've always said.

573
01:50:52.820 --> 01:50:57.870
Boardroom: The City of Berkeley struck gold when it brought you on as mayor.

574
01:50:57.900 --> 01:51:05.240
Boardroom: I've always said that. I am a person in my late 50s, and I have been at Berkeleyan forâ€¦

575
01:51:05.240 --> 01:51:24.519
Boardroom: a lot of my life. Not right now, I don't live in Berkeley, but either I have attended university and or high school, or have lived in Berkeley for many, many decades. And I have never felt the compunction, as I told you when we first met, I don't know if you recall, I was here a few weeks ago, about 2 months ago, I have never felt the compunction, absolute compunction, to come

576
01:51:24.640 --> 01:51:35.240
Boardroom: Before elected officers, until about 2 months ago because of a situation, regarding a business, a relatively new business, which is so extreme.

577
01:51:35.680 --> 01:51:50.650
Boardroom: I have, unfortunately, had a rather negative interaction with our friend here, District 4, Councilman Igor Traguub. I have been carbon copying you on all the emails that I've been sending to his executive assistant, Mrs. Olga Bolatina.

578
01:51:50.780 --> 01:52:00.279
Boardroom: It doesn't seem that, based upon my preliminary interactionsâ€¦ I'm so sorry, I just realized, so are you making a comment on this report that was just had?

579
01:52:00.310 --> 01:52:25.060

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Boardroom: No. Oh, okay. That's having to do with the lady I was talking to me earlier. Okay. It has to do with a personal issue. I see. So, this is actually a special meeting on a specific report, so unfortunately, this isn't the comment period. Yeah, that's kind of based upon the itinerary, which I saw online, that this was a generalâ€¦ Yeah, this isâ€¦ thisâ€¦ that meeting will start at 6 o'clock, where it's supposed to, but I think we're running a bit late, soâ€¦ Okay, well, now that you have me here, why don't

580
01:52:25.060 --> 01:52:48.570
Boardroom: and I just go ahead and finish, I'm curious. I'm sorry, I can't let you finish. I apologize. But you're welcome to continue yourâ€¦ you're welcome to start completely fresh in the next meeting, and share your comment there. And what time does that begin? That meeting probably won't start until, like, 620, but feel free to submit an off-agenda public comment card, for the next.

581
01:52:48.570 --> 01:52:50.490
Boardroom: meetingâ€¦ yeah.

582
01:52:50.680 --> 01:53:10.040
Boardroom: Thank you. Yeah, you don't need to stand in line, though. You'll submit this comment, and then she'llâ€¦ what she does is she'll pull names out from there. Yeah, thank you. Did you want to useâ€¦ You haveâ€¦ okay, you're gonna use one of your minutes? Okay.

583
01:53:12.530 --> 01:53:16.859
Boardroom: Does anyone else want to make a comment that's here in person on this item? I just want to make sure.

584
01:53:17.180 --> 01:53:33.879
Boardroom: Are you gonna make a comment? One minute. We're supposed to start at 6, but we're in the special meeting still. Yes. Okay, go ahead and start your comment. Oh, okay. This is directed to the folks over here.

585
01:53:34.280 --> 01:53:46.489
Boardroom: I haven't really been able to look through this in detail yet, but a few things kind of jumped out at me. Under reasons for a stop, it would be good to have a disposition breakdown.

586
01:53:46.970 --> 01:53:54.039
Boardroom: under, traffic violations, type of violations would be useful.

587

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01:53:54.840 --> 01:53:58.140
Boardroom: For instance, you know, expired tags,

588
01:53:58.390 --> 01:54:01.070
Boardroom: Versus, running a red light.

589
01:54:01.840 --> 01:54:03.090
Boardroom: Big difference.

590
01:54:04.720 --> 01:54:11.779
Boardroom: Under disputes regarding scope of authority, numbers would be helpful there.

591
01:54:12.010 --> 01:54:13.820
Boardroom: How often does this happen?

592
01:54:14.500 --> 01:54:15.979
Boardroom: Break that down.

593
01:54:16.670 --> 01:54:27.160
Boardroom: Under administrative closure, basically, this is so broad.

594
01:54:27.280 --> 01:54:30.419
Boardroom: It's basically, the dog ate my homework.

595
01:54:32.510 --> 01:54:36.120
Boardroom: Thank you. Are there any comments online?

596
01:54:37.820 --> 01:54:51.779
Boardroom: Yes, there's oneâ€¦ one hand raised, so this is for public comments on the special meeting agenda for the Police Accountability Board and report. We have one speaker that's, Leah Wilson.

597
01:54:54.170 --> 01:55:18.690
Leah Wilson: Hi, I'm Leah, the Vice Chair of the PAB, and I wanted to just hop on. Our chair has done an incredible job this afternoon, and I'm sorry that I can't join you. There was a lot of discussion about the metrics for staff reporting and tests for bias, and I wanted to emphasize that Appendix 1 of the FIP report that we submitted last year detailed all of our concerns with the

598

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01:55:18.690 --> 01:55:20.269
Leah Wilson: bulk collision test.

599
01:55:20.490 --> 01:55:23.779
Leah Wilson: The yield rate analysis and the veil of Darkness.

600
01:55:24.020 --> 01:55:36.250
Leah Wilson: I was reminded of that when Councilmember Bartlett asked his question. I think it's important for Council to be aware that the at-fault collision, metric does not include

601
01:55:36.250 --> 01:55:51.960
Leah Wilson: discretionary stops based on equipment violation, registration or license plate infractions, or other low-level offenses that make up about 19% of all stops. And those are precisely the kinds of discretionary stops

602
01:55:51.960 --> 01:56:10.070
Leah Wilson: that lead to, or that can stem from, or be impacted by, the types of biases that Councilmember Bartlett alluded to. So, I do encourage the Council to look at that Appendix 1 of the FIP report, and also really welcome, as our chair mentioned.

603
01:56:10.070 --> 01:56:19.400
Leah Wilson: Council establishing metrics that both the PAB and the BPD would use going forward, I think that would benefit both entities as well as the public.

604
01:56:19.780 --> 01:56:20.700
Leah Wilson: Thank you.

605
01:56:20.860 --> 01:56:24.300
Boardroom: Thank you, Leah, that's very helpful. Appreciate your comment.

606
01:56:24.770 --> 01:56:32.280
Boardroom: That's it. Okay. Alright, very good. Coming back to Council for our comments on this matter, starting with Councilmember Lunapara.

607
01:56:33.010 --> 01:56:44.289
Boardroom: Thank you. I justâ€¦ I reallyâ€¦ I wanted to briefly push back on the notion or insinuation that the reasons for these racial disparities is due to people of color coming from other cities.

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608
01:56:45.350 --> 01:56:52.490
Boardroom: into Berkeley, and I appreciate Councilmember Bartlett's question, and Chair Cayetano clearing up,

609
01:56:52.750 --> 01:56:56.380
Boardroom: with the data on Berkeley residents, but I just don'tâ€¦

610
01:56:56.380 --> 01:57:14.159
Boardroom: really want to let that comment go on. I know that that's not what was meant, but I find the insinuation to be dangerous and dismissive of the very real experiences of many of our residents of color here in Berkeley, and does not do anything to build trust between our government and our communities of color, especially our black and brown residents.

611
01:57:14.160 --> 01:57:17.769
Boardroom: Which is kind of the goal of all of this. So, that'sâ€¦ that's all I wanted to say. Thanks.

612
01:57:18.430 --> 01:57:20.540
Boardroom: Thank you. Councilmember Taplin.

613
01:57:20.760 --> 01:57:37.270
Boardroom: Thank you, Madam Mayor, and thank you, Chair Cayetano, and Director Aguilar, and everyone. And, I just wanted to, say that, when Council adopted, or approved the three-pronged SOP, policy.

614
01:57:37.300 --> 01:57:43.640
Boardroom: A large part of that was to, deprioritize, those low-level,

615
01:57:43.820 --> 01:57:56.060
Boardroom: equipment violations, to address some of the disparities and the stops. Wanted to flag that. And then I also wanted to state that I am interested in, the policy questions around the,

616
01:57:56.330 --> 01:58:00.950
Boardroom: profiling by proxy policy. you know, both from aâ€¦

617
01:58:01.060 --> 01:58:18.700
Boardroom: from an equity perspective as well as a dispatch perspective, I think it's important that when we get calls for service, we are able to triage calls that, you know, don't require, you know, a deployment. And, we'll get to this later with drones, but that is one of the things I have

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been thinking about with respect to dispatch over the last few years. Thank you.

618
01:58:19.580 --> 01:58:39.140
Boardroom: Thank you, Councilmember Blackaby. Thanks, Madam Mayor. Three quick points. One, just thank you all. Thank you for being here. Thanks for the report. Thanks for indulging our questions, answering so many of our questions, and fielding them, and thanks for the discussion. I think it was really, enlightening and helpful, for many of us as we talked through, so thank you.

619
01:58:39.140 --> 01:58:51.410
Boardroom: Second point, totally agree, and, we're doing everything we can on this side, but, wrapping up the regulation negotiation is aâ€¦ I know it's a priority of yours, a priority of mine, a priority of ours.

620
01:58:51.410 --> 01:59:01.559
Boardroom: And we're looking forward to the upcoming closed session soon, where hopefully we can try and, get significant movement, just in terms of the time that is being spent by all parties.

621
01:59:01.560 --> 01:59:17.579
Boardroom: The sooner the better. So we're looking forward to that, and then kind of having a clean slate to move into the new year. And then third, I think a lot of the comments and questions and the discussion, to me, is also around just, encouraging ongoing prioritization and triage.

622
01:59:17.580 --> 01:59:30.940
Boardroom: You know, you're a small but mighty team, and to the extent that you can focus on a few key policy priorities and knock them out of the park, I think that's gonna serve you and all of us much better than,

623
01:59:30.940 --> 01:59:41.120
Boardroom: you know, mile wide, inch deep, so the extent that, you know, as a team, you're prioritizing those things, a few of those key policy areas, and going deep, I think we'll all be better served by that.

624
01:59:41.120 --> 01:59:55.680
Boardroom: And then at the same time, being able to triage some of those personnel complaints, whether it's the vexatious complainant policy or what have you, again, just in the spirit of, finding a way to make, effective use of limited resources.

625
01:59:55.680 --> 02:00:12.750

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Boardroom: Both on your side as well as the BBD's side and the officers' time. So, I think those are my three comments, but, you know, again, thank you for participation. And with that, I'd like to move that we accept and certify the presentation of the report with our thanks. Second.

626
02:00:13.620 --> 02:00:33.000
Boardroom: This is justâ€¦ we don't need a motion for this. We're notâ€¦ we don't need to vote to accept it, we're giving a presentation, but thank you for your motion. I withdraw my motion. Okay, thank you. Alright, Councilmember Traja. And folks, I know there's some talking going on, if you all could take your conversation outside, please?

627
02:00:33.000 --> 02:00:33.850
Boardroom: Thank you.

628
02:00:34.000 --> 02:00:46.750
Boardroom: Thank you, Madam Mayor. I wanted to echo my gratitude to, the chair, the director, and, staff that,

629
02:00:46.930 --> 02:01:00.500
Boardroom: presented on this report and prepared this report. I'mâ€¦ I'm going to echo, some of the comments. Iâ€¦ I will add, a couple of my own. But, Iâ€¦

630
02:01:00.670 --> 02:01:15.270
Boardroom: I agree that, with those who have said, it, it would serve, I think the Council a little more, if there was one single integrated report.

631
02:01:15.460 --> 02:01:24.359
Boardroom: And if there are differences around language and, you know, charter-mandated limitations, perhaps

632
02:01:24.730 --> 02:01:38.779
Boardroom: The PAB could do an addendum to that report, from the PAB, but it would be great to get it at a predictable, time of year, every year going forward.

633
02:01:40.020 --> 02:01:52.990
Boardroom: I also wish to echo the comment on, my desire to see, you focus on upcoming issues of high interest,

634

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02:01:53.090 --> 02:01:56.139
Boardroom: Which could be high priority,

635
02:01:56.360 --> 02:02:07.230
Boardroom: for you, for what's going on in the community, but also some of the matters that the Council is taking up, where we could really benefit from your input.

636
02:02:07.990 --> 02:02:20.760
Boardroom: On recommendations, I really appreciated, the ones in this report, as maybe just a suggestion going forward. We justâ€¦

637
02:02:20.870 --> 02:02:40.289
Boardroom: We benefit the most from recommendations that are specific and actionable, and where, ongoing work is already being done, to also recognize, so that we can look at the gap in the spirit of continuous improvement.

638
02:02:41.020 --> 02:02:44.850
Boardroom: Lastly, Iâ€¦

639
02:02:44.930 --> 02:03:05.260
Boardroom: I appreciated the comment made by Commissioner, Wilson and others about, looking at someâ€¦ maybe developing some joint metrics, and I understand that some of this may be a policy conversation for us as well, and I look forward to having that conversation on this dice.

640
02:03:05.260 --> 02:03:21.830
Boardroom: And I'm very interested in, and will be digging into the report on use of AI, when you're ready to bring it to the Council, since, as I mentioned, we do have a pending item on AI regulations. Thank you so much.

641
02:03:22.560 --> 02:03:26.750
Boardroom: Thank you. Other comments from Councilmembers? Yes, Councilmember Kesarwani.

642
02:03:28.090 --> 02:03:35.600
Boardroom: Thank you very much, Madam Mayor. I just want to thank you for your presentation, and, I don't have any further questions. Thank you.

643
02:03:36.240 --> 02:03:37.879
Boardroom: Thank you. Anyone else?

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644
02:03:38.060 --> 02:03:38.750
Boardroom: Nope.

645
02:03:39.600 --> 02:03:50.249
Boardroom: I know youâ€¦ yeah, go ahead, Councilmember Humbert. Yeah, I just want to thank you again for theâ€¦ for the report. A lot of work went into that. Much appreciated, and thank you for your presentation here tonight.

646
02:03:50.510 --> 02:03:57.539
Boardroom: Thank you, Councilmember Lunapara. I realize I didn't do this earlier, so thank you very, very much for this presentation, and for being here.

647
02:03:58.690 --> 02:04:23.479
Boardroom: Okay, yes, I'm going to add my thanks as well, but also just take a moment, because I think it's important to recognize the importance, generally, of PAB and ODPA. It's crucial that we have transparency in government, including our police department, and collectively, you all, are a tool to promote that type of transparency, so I really want to appreciate the work that you're doing. I know, thisâ€¦ this is a lot of work to do a report like this.

648
02:04:23.630 --> 02:04:28.180
Boardroom: And also a lot of unpaid work, so I just want to acknowledge that,

649
02:04:28.920 --> 02:04:52.649
Boardroom: On, reading the Charter, and, you know, based on some of the comments that were given today, there really is no ambiguity in my perspective on the process of how the report is created. The Charter tells us that the ODPA is to create the report for the PAB to approve, and the PAB has the discretion to approve or not approve what's put in front of them, so I don't see the need either for a bifurcated report, given that the Charter

650
02:04:52.650 --> 02:05:07.760
Boardroom: outlines the requirements and the process for approval. And in terms of the editing piece, the separate piece, I'm hoping that you all are able to figure that out, you know, moving forward, because I feel like those kinds of disagreements, they shouldn't be major things, right?

651
02:05:07.760 --> 02:05:16.759

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Boardroom: Something that I'd love to see, to give you some more feedback for how those reports might look in the future, is around metrics.

652
02:05:16.910 --> 02:05:41.520
Boardroom: I noticed that there was a strategic planning, session that happened in 2023. I'm not sure if there's been one since then, but I think having an overarching strategy would kind of help provide that structure, and maybe more of a lens that might be useful, and I'm particularly interested in metrics surrounding community engagement. I think that's a really important part of the work, and I want to know, you know, how you're reaching the community.

653
02:05:41.520 --> 02:05:46.709
Boardroom: How many folks were reached, you know, what was the impact of that?

654
02:05:46.890 --> 02:05:54.779
Boardroom: Just having more metrics and quantitative measurements, I think, in that area would be really helpful to see.

655
02:05:54.780 --> 02:06:17.780
Boardroom: And, I was glad to hear that finishing the regulations is a top priority, thank you for bringing that up. I know we've already asked those involved in the internal negotiations about their availability and are polling council now, so I really want to encourage my council members, all of youâ€¦ oh no, my laptop just died. I want to encourage all of the council members, if you haven't already.

656
02:06:17.780 --> 02:06:21.750
Boardroom: Filled out, the,

657
02:06:22.330 --> 02:06:39.390
Boardroom: the poll for that, please make sure that you, you do that. I'm gonna try to pull this up on my phone. Thank you. No good deed goes unpunished. Lend my charger! My laptop dies. Okay, and let's seeâ€¦

658
02:06:40.230 --> 02:06:44.570
Boardroom: And finallyâ€¦ Oh my gosh.

659
02:06:44.860 --> 02:07:09.329
Boardroom: Yeah, a couple things. Two more things. So one, I was really shocked to hear about this issue with the laptops, that this is something that's still going on. The first time I heard about it was in this report, and so definitely please reach out to my office. I'd love to

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figure out how we can move that forward. That was very surprising. And just generally, I wanted to comment that I'd love to see more community engagement from PAB and ODPA.

660
02:07:09.330 --> 02:07:19.009
Boardroom: it's super important to get out into the community beyond just tabling and career events. I know there were some ideas that were given earlier about, like, kind of deeper,

661
02:07:19.010 --> 02:07:31.280
Boardroom: deeper, engagement. And, I really want to appreciate the work you've all done, especially around the use of force forms forums, but there's definitely, like, opportunities to do more work here.

662
02:07:31.680 --> 02:07:56.569
Boardroom: And I know that in the report, one of the operational challenges touches on your desire to expand equitable community engagement, and I really want to encourage you all to do that. So, thank you all so much for your presentation, for taking all the time, answering all of our questions, and just being here this evening. Thank you for your work, and to my colleagues for your good questions as well, and since we don't need an actual vote on this, I will see if there's a motion to adjourn.

663
02:07:56.570 --> 02:07:57.260
Boardroom: the boobs.

664
02:07:57.260 --> 02:08:01.030
Boardroom: Second. Okay, is there any opposition to us adjourning this evening?

665
02:08:01.150 --> 02:08:09.510
Boardroom: Okay, meeting is adjourned. Thank you all. Thank you all. It is 610, we are supposed to start our meeting at 6 o'clock, but we willâ€¦

666
02:08:09.620 --> 02:08:16.560
Boardroom: Yeah. Successor agency meeting? Yeah, right, exactly, the jointâ€¦ yeah. Soâ€¦ Yes.

667
02:08:17.020 --> 02:08:25.859
Boardroom: So let's just take care of that, and then we'll come back. We'll have a break, and then come back to the original. Sorry, my laptop is dead, so I don't have that.

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668
02:08:29.990 --> 02:08:40.779
Boardroom: Yeah, it's just another meeting of another legislative body. You gotta take role, and all that.

669
02:08:46.250 --> 02:08:47.170
Boardroom: Oops, sorry.

670
02:08:56.480 --> 02:09:10.650
Boardroom: Do you have the agenda somewhere that I couldâ€¦ It's not on the agenda. It's on theâ€¦ it's on the page for this legislative body.

671
02:09:38.610 --> 02:09:38.955
Boardroom: Understanding

672
02:09:47.750 --> 02:09:58.180
Boardroom: Oh, really?

673
02:10:00.250 --> 02:10:04.470
Boardroom: Yummy.

674
02:10:05.600 --> 02:10:06.405
Boardroom: Fools.

675
02:10:07.840 --> 02:10:09.340
Boardroom: No, not us!

676
02:10:09.850 --> 02:10:10.820
Boardroom: We're ready.

677
02:10:12.050 --> 02:10:18.289
Boardroom: We're comfortable. Okay, sorry, so I'm gonna call to order the special,

678
02:10:18.420 --> 02:10:28.800
Boardroom: I'm going to call the successor agency to the Berkeley Redevelopment Agency Special Meeting. Today is Tuesday, November 18th, 2025. And, Clerk, can you please take the roll?

679
02:10:28.890 --> 02:10:48.000

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Boardroom: Okay. Agency Member Kesarwani? Here. Taplin? Present. Bartlett? Here. Tregeb? Present. O'Keefe? Here. Blackaby? Here. Lunapara? Here. Humbert? Here. And Presiding Officer Ishii?

680
02:10:49.080 --> 02:10:56.600
Boardroom: Here. Okay. Okay, so first we have our consent calendar,

681
02:10:57.660 --> 02:11:12.260
Boardroom: I'm going to ask if any council members have any comments on this. Consent calendar? No. No. Okay. Is there any public comment on consent calendar and information items only? This is just for minutes for approval for our special meeting.

682
02:11:13.430 --> 02:11:24.360
Boardroom: On seeing none? Nope. None online? I will see if there's a motion to approve our consent calendar. So moved. Second? Sorry.

683
02:11:24.860 --> 02:11:31.199
Boardroom: Okay, are, is anyone opposed toâ€¦ Approving this consent calendar?

684
02:11:32.170 --> 02:11:47.960
Boardroom: Okay, we have approved the consent calendar. Moving on to our action calendar, the only item here is the dissolution of the successâ€¦ successor agency to the former Berkeley Redevelopment Agency. And I think we have some folks we're going to present.

685
02:11:48.150 --> 02:11:49.650
Boardroom: Passing it over.

686
02:11:49.650 --> 02:12:13.160
Boardroom: Good evening, Mayor and Councilmembers. I'm Aileen Pearson, the Deputy Director of the Planning Department. I'm joined here at the staff table with my colleague, Mike Hubertte from Health, Housing, and Community Services, and tonight we're requesting that you adopt a resolution authorizing staff to submit a formal request to the Alameda County Oversight Board to dissolve the successor agency to Berkeley's former redevelopment agency.

687
02:12:14.330 --> 02:12:19.430
Boardroom: I want to begin by providing a brief background on redevelopment agencies.

688

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02:12:19.480 --> 02:12:38.440
Boardroom: The California Redevelopment Act and the California Redevelopment Law, adopted in the mid-20th century, allowed cities to create redevelopment agencies to tackle blight and invest in community development. These agencies funded a wide range of projects, including affordable housing, infrastructure, and commercial revitalization.

689
02:12:38.680 --> 02:12:44.279
Boardroom: The photos in this presentation tonight highlight Berkeley projects that were supported by redevelopment.

690
02:12:44.810 --> 02:12:56.810
Boardroom: Redevelopment agencies issued bonds to pay for projects, and these bonds were repaid with the increase in property tax revenue generated in project areas. Fast forward to 2011,

691
02:12:56.810 --> 02:13:06.400
Boardroom: Due to statewide budget concerns and concerns about the misuse of redevelopment funds, the state dissolved all redevelopment agencies through Assembly Bill

692
02:13:06.400 --> 02:13:10.370
Boardroom: X126, which became effective in 2012.

693
02:13:10.570 --> 02:13:16.709
Boardroom: Under this legislation, each city was required to establish a successor agency to wind down

694
02:13:16.740 --> 02:13:31.770
Boardroom: the former agency's financial and legal obligations. In Berkeley, the City Council was designated as the governing board to the successor agency of Berkeley's former redevelopment agency. There are a lot of words there.

695
02:13:32.800 --> 02:13:49.159
Boardroom: Since 2012, Berkeley's successor agency has carried out all of their required winding down activities, which are summarized on this slide. Staff has determined and documented in the staff report that all enforceable financial obligations have been fully paid off.

696
02:13:49.160 --> 02:13:58.500
Boardroom: All former redevelopment agency properties have been disposed of in accordance with state law, and all related litigation has been resolved.

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697
02:13:58.680 --> 02:14:09.009
Boardroom: With these steps completed, the successor agency now meets the criteria for dissolution, and is required to request dissolution under California's health and safety code.

698
02:14:12.190 --> 02:14:31.819
Boardroom: As such, staff recommends that the City Council, acting as a governing board of the successor agency, approve submitting a formal request for dissolution to the Alameda County Oversight Board. If the Oversight Board approves, the request will then be transmitted to the State Department of Finance, which grants final approval.

699
02:14:31.860 --> 02:14:44.010
Boardroom: Tonight's resolution does three things. It finds that based on substantial evidence, the successor agency has completed all required obligations under Health and Safety Code 34187B,

700
02:14:44.130 --> 02:14:51.999
Boardroom: Including payment of all enforceable obligations, disposition of all real property, and resolution of all litigation.

701
02:14:52.110 --> 02:15:15.369
Boardroom: Number two, it approves submitting a formal request to dissolve the successor agency to the Alameda County Oversight Board and transmitting the required materials to the County Auditor Controller. And finally, it authorizes the City Manager as Executive Director of the successor agency to take any additional actions required by the Oversight Board or the State Department of Finance to complete the

702
02:15:15.460 --> 02:15:17.440
Boardroom: the dissolution process.

703
02:15:17.600 --> 02:15:21.889
Boardroom: This action represents an important administrative milestone for Berkeley.

704
02:15:22.100 --> 02:15:31.109
Boardroom: and positions the city to close out this final phase of the redevelopment wind-down process. That concludes my report, and I'm happy to answer any questions.

705
02:15:31.560 --> 02:15:34.629

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Boardroom: Thank you very much. Are there any questions from Councilmembers?

706
02:15:35.430 --> 02:15:36.660
Boardroom: Okay.

707
02:15:36.780 --> 02:15:39.229
Boardroom: Is there any public comment on this item?

708
02:15:41.180 --> 02:15:43.830
Boardroom: Oh, my Okay.

709
02:15:44.220 --> 02:15:46.779
Boardroom: Very good. Any comments from anyone?

710
02:15:48.060 --> 02:15:50.590
Boardroom: Is there a motion? I move.

711
02:15:51.070 --> 02:15:56.249
Boardroom: I move the staff recommendation. I second.

712
02:15:56.670 --> 02:15:59.390
Boardroom: Okay, very good. Is there any opposition to this?

713
02:15:59.560 --> 02:16:00.630
Boardroom: Motion.

714
02:16:01.330 --> 02:16:03.569
Boardroom: Okay, motion is approved.

715
02:16:04.100 --> 02:16:14.890
Boardroom: We have approved the dissolution of the successor agency to the former Berkeley Redevelopment Agency. Thank you both for your presentation, and I will ask if there is a motion to adjourn. Second.

716
02:16:15.300 --> 02:16:17.280
Boardroom: Any opposition to adjournment?

717
02:16:17.900 --> 02:16:33.799

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Boardroom: Meeting is adjourned. Very good. Thank you all. So, for our regular meeting, I know we're now starting quite late, I think we need 15 minutes, so it is 618, so, like, 6.20â€¦ 6.35. We'll see you all soon.

718
02:16:56.209 --> 02:16:59.549
Boardroom: Okay, we can begin when you're ready, Mayor.

719
02:16:59.549 --> 02:17:18.000
Boardroom: Okay, hi everyone. Thank you so much for your patience. It's 6.43, and we had, special meetings that ran late, so apologies for that. I'm calling to order the Berkeley City Council meeting. Today is Tuesday, November 18th, 2025. Clerk, could you please take the roll?

720
02:17:18.260 --> 02:17:29.259
Boardroom: Okay, Councilmember Kessarwani? Here. Taplin? Present. Bartlett? Present. Tragov? Tasen. O'Keefe? Here. Blackaby? Here.

721
02:17:29.260 --> 02:17:33.840
Boardroom: Unapara? Here. Humbert? Present. And Mayor Ishii? Here.

722
02:17:33.840 --> 02:17:49.670
Boardroom: Okay, quorum is present. Alright, we have no ceremonial items this evening, so I will move over to City Manager comments. Also, no City Manager comments this evening, thank you. Very good. I think our city auditor is here and has some comments, so I will call her up.

723
02:18:03.139 --> 02:18:06.229
Boardroom: Alright, good evening.

724
02:18:08.600 --> 02:18:25.600
Boardroom: So, I wanted to share tonight, a few items on the Council agenda. The 2025 Audit Recommendation Follow-up report that my office released in October, and the results of an independent third-party audit we initiated of our payroll audit division.

725
02:18:25.600 --> 02:18:32.119
Boardroom: Before I do that, I just wanted to make, quick comments on Item 8, the Annual Appropriations Ordinance.

726
02:18:32.120 --> 02:18:44.190
Boardroom: As you know, the city has a very large $28 million deficit, and during the budget process in June, my office offered $200,000 in salary savings to help with that.

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727
02:18:44.250 --> 02:18:58.970
Boardroom: And while the BMC exempts the auditor from the same salary savings as other departments, I do want to share tonight that, thanks to information from our budget office, we do have about another $30,000.

728
02:18:58.969 --> 02:19:09.360
Boardroom: In savings, and so we'll be able to contribute some of that, actually most of that into the general fund. So, just happy that we can contribute in that way.

729
02:19:09.500 --> 02:19:23.729
Boardroom: So next, I wanted to share highlights from our 2025, follow-up report. Our annual report provides a comprehensive overview where the city stands in implementing audit recommendations, and what risks still exist.

730
02:19:23.730 --> 02:19:32.149
Boardroom: From November 2024 to September 2025, city departments implemented 23 open audit recommendations.

731
02:19:32.230 --> 02:19:51.309
Boardroom: As of this update, the departments have implemented 48%, or 45 of the 94 total audit recommendations released since 2020. And I just wanted to say that compared to the last follow-up period, the implementation rate has gone up 11 percentage points. That's a really great accomplishment.

732
02:19:51.680 --> 02:19:59.540
Boardroom: I'd like to thank the city manager, department heads, staff, for their efforts in closing these recommendations.

733
02:20:02.460 --> 02:20:12.489
Boardroom: But there's still more work to be done, so there's 48 audit recommendations remain, and you can learn more about these open audit recommendations on our public dashboard.

734
02:20:13.290 --> 02:20:19.519
Boardroom: Next, I wanted to share the results of an independent, third-party audit we initiated of our payroll audit division.

735
02:20:19.730 --> 02:20:24.920

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Boardroom: The City of Berkeley's Payroll Audit Division organizationally sits within our office.

736
02:20:25.070 --> 02:20:31.619
Boardroom: While the Payroll Audit Division is one of the smaller divisions in terms of staff, it is one of theâ€¦ has one of the largest jobs.

737
02:20:31.660 --> 02:20:45.250
Boardroom: reviewing and processing biweekly payroll for approximately 1,800 city employees. In fiscal year 2025, the division processed approximately 47,000 checks and direct deposits.

738
02:20:46.060 --> 02:20:56.889
Boardroom: It's important to ensure that all those payments are processed correctly, because personnel costs represent about 65% of the city's general fund, in fiscal year 2025.

739
02:20:56.960 --> 02:21:13.609
Boardroom: I want to first recognize all of the payroll clerks, in each department. These are the workers that make sure that all of that information gets entered, as well as the payroll auditors on my team who ensure that these paychecks go out accurately every two weeks.

740
02:21:13.710 --> 02:21:30.929
Boardroom: It's no small feat, and during COVID, my team, they divided themselves into two teams without contact, so if someone got COVID, there would always be a healthy team, up andâ€¦ up and willing and being able to process the payroll so that all employees would get their paychecks.

741
02:21:31.280 --> 02:21:50.000
Boardroom: So, what we do is, within this unit, we periodically will initiate an independent third-party audit, to look at the division's internal controls, ensure there's sufficient safeguards against fraud, waste, and abuse, and ensure that payroll is accurate and complies with policies and regulations.

742
02:21:50.000 --> 02:21:58.170
Boardroom: To safeguard our office's independence, we had to contract this out, and GPP Analytics was the one that conducted this audit.

743
02:21:58.690 --> 02:22:08.500

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Boardroom: The external audit found that payroll audits procedures ensured city employees received accurate pay and benefits in the sample they tested.

744
02:22:08.600 --> 02:22:15.439
Boardroom: So, let me just say that this is really amazing, for them to say that

745
02:22:15.470 --> 02:22:29.569
Boardroom: there were no payroll, corrections that needed to be done within the sample that they tested. It means that the system is set up to catch incorrect pay, before pay goes out.

746
02:22:29.890 --> 02:22:41.230
Boardroom: The external auditors also found that the staff in this unit, demonstrated detailed command of critical payroll elements within theirâ€¦ within a very complex operating environment.

747
02:22:41.500 --> 02:22:56.779
Boardroom: They also pointed out a few ways we can strengthen our controls to reduce risk going forward, including working with city management to update the payroll policy and procedure manual, as well as prioritizing the implementation of an electronic timekeeping system.

748
02:22:57.220 --> 02:23:08.750
Boardroom: My office is committed to working with city staff to implement these recommendations, obviously, based on, staffing and resources.

749
02:23:08.980 --> 02:23:12.420
Boardroom: So, in conclusion, I just wanted to thank,

750
02:23:13.400 --> 02:23:22.609
Boardroom: City Council for your commitment to accountability, providing this forum to share the results of these two important reports, and I want to thank,

751
02:23:23.020 --> 02:23:35.759
Boardroom: my team of staff auditors for supporting this work. They're really the ones that power this work, and I'm really grateful, to them for their dedication to the city. Thank you very much.

752
02:23:36.430 --> 02:23:49.469

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Boardroom: Thank you very much, Madam Auditor, and, I just want to say I really appreciate your proactiveness in, finding funds that you can give over to the General Fund. We are really in,

753
02:23:49.470 --> 02:24:01.279
Boardroom: a scary budget time, and I really appreciate you taking the time to, you know, to do that, to figure out what funds could go over, so thank you very much. And also, just to your team, I know they're working really hard, so thank you.

754
02:24:01.790 --> 02:24:08.370
Boardroom: Okay, so, we will now move on to public comment on non-agenda matters.

755
02:24:31.660 --> 02:24:40.019
Boardroom: Okay, we have 5â€¦ speakers, and you can come up in any order. You'll each have one minute.

756
02:24:40.550 --> 02:24:44.100
Boardroom: a piece. First is Steven Alpert.

757
02:24:44.690 --> 02:24:49.200
Boardroom: thenâ€¦ Chris Boy Siri.

758
02:24:50.320 --> 02:24:56.700
Boardroom: Ed Iskanderâ€¦ Alex Marenkov.

759
02:24:57.120 --> 02:24:59.169
Boardroom: And Carol Morasovic.

760
02:25:00.860 --> 02:25:02.429
Boardroom: In any order.

761
02:25:09.780 --> 02:25:12.780
Boardroom: Yep. Come on up, folks.

762
02:25:20.820 --> 02:25:23.840
Boardroom: If your name is called, please come up!

763
02:25:24.650 --> 02:25:26.400
Boardroom: Thank you!

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764
02:25:28.080 --> 02:25:32.129
Boardroom: There's an echo, does someone haveâ€¦ This isâ€¦

765
02:25:33.640 --> 02:25:37.699
Boardroom: Carol, please, please come up. We've gotta go!

766
02:25:38.510 --> 02:25:58.409
Boardroom: Okay, so I returned to the, Rockridge, business owner on College Avenue, who has been in the same location for 27 years, and after the upzoning there, she was only offered a 3-year lease, as were the other businesses there.

767
02:25:58.640 --> 02:26:16.729
Boardroom: I asked her if I got everything right that I had said, and she said yes, and she told me that not only did the property owner only provide short leases to all the businesses there, but he doubled the rent and told the businesses he wanted to keep his options open.

768
02:26:16.890 --> 02:26:19.090
Boardroom: How secure would you feel

769
02:26:19.090 --> 02:26:42.299
Boardroom: If your spouse or partner said to you, keep doing what you're doing, but I'm gonna raise the bar, double my expectations, because I want to keep my options open. And we really need to take care of our small businesses. They're the heart of our community, they provide character, and they provide revenue. Thank you. Thank you.

770
02:26:52.210 --> 02:26:59.389
Boardroom: My name's Alex Marinkov, Chris Boisberg is gonna be yielding his time to me. Does he need to come up here and say that he's doing that, orâ€¦

771
02:27:01.790 --> 02:27:03.969
Boardroom: Where ago? Okay.

772
02:27:04.430 --> 02:27:18.019
Boardroom: Sorry, so you were saying that he's gonna giveâ€¦ Yeah, I'm Alex, and then he's yielding his time to me. Okay. Who's yielding? Chris is yielding to Alex. Chris is yielding to Alex, so you have 2 minutes. Okay, okay, go ahead.

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773
02:27:22.130 --> 02:27:24.090
Boardroom: Ready? Okay.

774
02:27:24.340 --> 02:27:48.909
Boardroom: My name is Alex Marinkov, I'm a disabled, low-income, below-market-rate tenant at K Street Flats, and after I reported health and safety issues in my unit to the city's Environmental Health Department this summer, management retaliated. They canceled my confirmed renovation, refused to schedule me for months, ignored my doctor's disability accommodation request, and kept scheduling other tenants ahead of me, even people who

775
02:27:48.910 --> 02:27:51.759
Boardroom: Never asked for renovation whatsoever.

776
02:27:52.450 --> 02:27:55.000
Boardroom: The renovation wasn't just delayed.

777
02:27:55.110 --> 02:28:02.429
Boardroom: It was with health in a way that left me feeling singled out and pushed out of my home. My BMR unit has lacked parity.

778
02:28:02.530 --> 02:28:07.899
Boardroom: stability, and I was cut off from all communication from the landlord regarding my housing needs.

779
02:28:08.490 --> 02:28:14.319
Boardroom: I have now filed a complaint with California's Civil Rights Department, and I'm not the only tenant to do so.

780
02:28:14.740 --> 02:28:16.030
Boardroom: In this building.

781
02:28:16.280 --> 02:28:40.269
Boardroom: This is happening inside a city-monitored BMR program where disabled and low-income tenants should be protected, not excluded. I'm asking Council and Health, Housing, and Community Services to strengthen oversight of CalCHA and FPI management, and to ensure disabled BMR tenants receive equal treatment, timely repairs, and real accountability in our city. Thank you.

782
02:28:40.740 --> 02:28:42.710

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Boardroom: Thank you.

783
02:28:48.120 --> 02:28:50.399
Boardroom: Okay, folks, if your name got called, please come up!

784
02:28:51.950 --> 02:28:54.020
Boardroom: Yeah, go ahead.

785
02:28:57.020 --> 02:29:01.799
Boardroom: Hi guys, just really briefly, I was on my way home and thought I'd stop by.

786
02:29:01.800 --> 02:29:18.089
Boardroom: I write the Substack Marin County Confidential, at marincountyconfidential.substack.com, and I've been covering a lot of, the Israel Lobby's activities, in the Bay Area, Northern California, including Berkeley.

787
02:29:18.090 --> 02:29:21.269
Boardroom: Did just want to let you know I have some video coming up,

788
02:29:21.770 --> 02:29:33.920
Boardroom: I went to the, presentation at UC Berkeley, Law Building today. It was, John Torture Memo U, speaking on how Israel won.

789
02:29:34.100 --> 02:29:52.209
Boardroom: And it wasâ€¦ I wanted to make sure that I went. It's aâ€¦ it's definitely a historic moment, a terrifying moment. John Yu did, absolutely lived up to his reputation as a war criminal, and I will be releasing that video, my brief interview with him after the event. Just want to let people know, becauseâ€¦

790
02:29:52.230 --> 02:29:59.379
Boardroom: Berkeley used to care about war and peace, and hopefully some people still do. Thank you. Thank you.

791
02:30:08.300 --> 02:30:16.309
Boardroom: It's very nice. My name is Ed. It's so nice to hear someone talking about, pressing issues so many tens of thousands of miles away.

792
02:30:16.350 --> 02:30:30.939

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Boardroom: But I would like to attend to something which was much more, localized, if you will, as I, you know, I don't want to sound like a broken record here, but this is the first, it's only the second time in my life, that I've felt absolutely compelled before.

793
02:30:30.940 --> 02:30:54.530
Boardroom: come before the Berkeley City Council, although I've either lived or studied here for decades. I'm a little disappointed that our friend here, Igor Traguub, has not been responding to me as well as the mayor's office. Sorry, so you're not supposed to call out specific people, you have to make your comments to the council as a whole. Yeah, go ahead. You know something, this matter's not going to go away. Something very serious had transpired a few months ago, three months ago, almost to the day

794
02:30:54.530 --> 02:31:14.209
Boardroom: Right on the corner of Kittredge and Shattuck, which falls into District Number 4, and I have been trying to make contact with both the Mayor's office as well as the council member's office, to no avail, and this matter's not going to go away. I made a special point to come here. I drove many, many miles to come down here to talk to you, to address you in person.

795
02:31:16.520 --> 02:31:23.270
Boardroom: Thank you for your comment. Is Steven Alpert here?

796
02:31:23.870 --> 02:31:24.940
Boardroom: Pardon?

797
02:31:25.150 --> 02:31:26.870
Boardroom: We have two beds in that presentation.

798
02:31:30.520 --> 02:31:37.870
Boardroom: I'm sorry, whose name? This is for non-agenda public comment.

799
02:31:38.290 --> 02:31:45.580
Boardroom: This is the end. You only have one in-person minute. Are you waiting till the end of the night?

800
02:31:46.100 --> 02:31:47.700
Boardroom: You want the two of us speak?

801
02:31:47.840 --> 02:31:49.670

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Boardroom: You have one minute to share.

802
02:31:49.910 --> 02:32:00.500
Boardroom: Okay. Okay. It's up to you. Alright then, are there, there may beâ€¦ well, there'sâ€¦ Public com- is there public comment online? Yeah, so thereâ€¦

803
02:32:01.370 --> 02:32:04.390
Boardroom: This is for non-agenda public comment.

804
02:32:04.610 --> 02:32:10.039
Boardroom: We'll take the first 5 hands raised on Zoom.

805
02:32:10.370 --> 02:32:12.449
Boardroom: And there are 5 hands raised.

806
02:32:12.740 --> 02:32:16.730
Boardroom: First is a phone number ending in 000.

807
02:32:27.120 --> 02:32:29.800
Boardroom: Press star 6 to unmute.

808
02:32:36.870 --> 02:32:40.239
Boardroom: Maybe we canâ€¦ Come back to them.

809
02:32:41.750 --> 02:32:45.320
Boardroom: Next is, Ken Bukowski.

810
02:32:50.120 --> 02:32:52.649
KEN BUKOWSKI: Yo, can you hear me?

811
02:32:53.730 --> 02:32:54.550
Boardroom: Yes.

812
02:32:54.780 --> 02:32:55.460
KEN BUKOWSKI: Hello?

813
02:32:55.710 --> 02:33:10.080
KEN BUKOWSKI: I just want to concur with the speaker who's described the upzoning of the commercial property, and how it threatens the small

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businesses. I think we should reconsider the upzoning procedures, because we're just pandering to the hands of the developers.

814
02:33:10.730 --> 02:33:11.280
KEN BUKOWSKI: Thank you.

815
02:33:12.080 --> 02:33:13.719
Boardroom: Okay, thank you. Thank you.

816
02:33:15.570 --> 02:33:18.090
Boardroom: Next is, David Scheer.

817
02:33:21.990 --> 02:33:28.559
David Shere: Hi, it'sâ€¦ it's really disturbing to hear some of these stories aboutâ€¦

818
02:33:28.830 --> 02:33:32.530
David Shere: Tenants being mistreated in 100%

819
02:33:32.630 --> 02:33:51.560
David Shere: affordable buildings. We spend millions and millions of dollars andâ€¦ on theseâ€¦ on these buildings and these projects, and they'reâ€¦ they're there toâ€¦ to help people. So, you know, I am hoping that this is something thatâ€¦ that we will be able to do this kind of oversight more closely.

820
02:33:51.780 --> 02:34:08.129
David Shere: And if anybody has, like, has this experience, it would beâ€¦ they should, email or reach out to or speak to the Housing Advisory Commission, because I know that members of, that commission definitely want to, definitely want to know about this stuff, so thank you.

821
02:34:09.450 --> 02:34:11.650
Boardroom: Thank you. Okay.

822
02:34:11.900 --> 02:34:15.150
Boardroom: Next isâ€¦ Della Luna.

823
02:34:17.570 --> 02:34:32.200
Della Luna (she/her) Huichun: Yes, thank you. I wanted to, second what I'm hearing, a request for increased oversight for the affordable housing projects, that the City of Berkeley is financing.

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824
02:34:32.750 --> 02:34:45.209
Della Luna (she/her) Huichun: A lotâ€¦ what I see is a lot of the projects, like, the organizations, they do things in order to check the box, but they don't actually engage in the full work that, is their mission.

825
02:34:45.390 --> 02:34:49.490
Della Luna (she/her) Huichun: And then secondly, I wanted to bring up something I mentioned before.

826
02:34:49.500 --> 02:35:07.700
Della Luna (she/her) Huichun: But I would like to see some sort of education for bikers about how cars drive on the road, and vice versa for drivers, about how bikers navigate the road. I feel like Berkeley puts in infrastructure for these bicycles in the vehicles.

827
02:35:07.700 --> 02:35:19.859
Della Luna (she/her) Huichun: Lanes, but there's no education about how those two bodies work together, and then with the tourism and the turnover with the student body, we need ongoing education, because the spaces are quite dangerous.

828
02:35:19.860 --> 02:35:20.900
Boardroom: Thank you.

829
02:35:23.150 --> 02:35:30.730
Boardroom: Okay, we have aâ€¦ Speaker with a phone number ending in 211.

830
02:35:32.250 --> 02:35:34.190
Boardroom: You should be able to unmute.

831
02:35:37.540 --> 02:35:38.350
Boardroom: There you go.

832
02:35:38.350 --> 02:35:45.330
1510****211: Hi, good evening. So, this is Ian. My assistant, again, delivered the demand for $1.2 million.

833
02:35:45.520 --> 02:35:46.860
1510****211: And alsoâ€¦

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834
02:35:47.270 --> 02:35:53.950
1510****211: In a celebration of one of the best city council persons, Rich Harrison, she quit because of us.

835
02:35:54.320 --> 02:35:57.700
1510****211: By the way, this horrible, that's Mayor Aragon.

836
02:35:57.730 --> 02:35:59.149
Boardroom: How can this work?

837
02:35:59.320 --> 02:36:00.690
1510****211: Got an overpay.

838
02:36:00.690 --> 02:36:03.259
Boardroom: An employee, she had noâ€¦

839
02:36:03.260 --> 02:36:05.680
1510****211: Just hired. A month ago.

840
02:36:05.930 --> 02:36:08.319
1510****211: The damage caused our business.

841
02:36:09.190 --> 02:36:10.330
Boardroom: Oh, goodness.

842
02:36:10.330 --> 02:36:17.280
1510****211: Our family, employees, hundreds of thousands of Bay Area consumers. I have nowhere else to get

843
02:36:18.190 --> 02:36:23.159
1510****211: High-quality product, sensitive product, a product, and also low prices.

844
02:36:23.260 --> 02:36:30.969
1510****211: Shame! Shame, shame. And he just came, and he flogged him. I left you a message, Mayor, a week ago, to call me. He never did.

845
02:36:32.060 --> 02:36:32.810
1510****211: What happened?

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846
02:36:33.980 --> 02:36:37.099
1510****211: No, let's solve this thing in a peaceful way, and

847
02:36:37.200 --> 02:36:39.220
1510****211: Anthony, we need to help our customers.

848
02:36:39.220 --> 02:36:39.710
Boardroom: We're doing.

849
02:36:41.010 --> 02:36:43.810
1510****211: Thank you. Thank you.

850
02:36:43.810 --> 02:36:51.509
Boardroom: And, last is aâ€¦ Speaker with a phone number ending in 000.

851
02:37:00.210 --> 02:37:02.680
Boardroom: Notâ€¦ Not there.

852
02:37:04.940 --> 02:37:11.869
Boardroom: Okay. Well, we can pick one more card. There's been 9 speakers, so we can pick one more card.

853
02:37:13.760 --> 02:37:15.139
Boardroom: Oh, Eva spoke.

854
02:37:17.110 --> 02:37:19.440
Boardroom: Celeste Marks.

855
02:37:22.390 --> 02:37:24.400
Boardroom: You know, two of us as well.

856
02:37:25.040 --> 02:37:29.469
Boardroom: Well, your card was still chosen, Mr. Alpert, so it's up to you.

857
02:37:45.440 --> 02:37:57.420
Boardroom: Good evening. My wife and I have previously expressed our concerns regarding the middle housing ordinance and the proposed upzoning of College, North Shattuck, and Solano Avenues.

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858
02:37:57.610 --> 02:38:14.479
Boardroom: Council members most likely assume we are opposed to all new housing, also new residents. That is not true. We object to theâ€¦ we do not object to reasonable-sized structures which do not overwhelming adjacent buildings or dramatically alter the existing neighborhood character.

859
02:38:14.780 --> 02:38:29.020
Boardroom: Regarding middle housing, if by law a three-story apartment is to be built next to our 1912 Craftsman, I and others on my street with century-old homes should have some input into the design of that structure to ensure it is compatible with the neighborhood.

860
02:38:29.110 --> 02:38:36.129
Boardroom: Middle housing allows for a glass-sided or concrete brutalis structure within 5 feet of our property.

861
02:38:42.010 --> 02:38:58.020
Boardroom: Thank you. Regarding three up zoning corridors, this city needs workshop presentations depicting 8 to 12 story structures were utterly disingenuous. The majority of these units will be market rate, but few will be

862
02:38:58.440 --> 02:39:13.740
Boardroom: affordable. We reside just 500 feet from the cooperative appointments at 1685 Solano Avenue. We are delighted to see this 13-unit building was renovated by Bay Area Community Land Trust.

863
02:39:13.740 --> 02:39:31.399
Boardroom: With 7 units designated for those earning at or below 80% of area median income, and 3 units for those earning less than 50%. Unlike the 8-story, 50% density bonus structures displayed on Solano Avenue Corridor Workshop.

864
02:39:31.450 --> 02:39:46.680
Boardroom: And the clear omission of 11-story structures permitted with 100% density bonus. This 5-story building is set back from the satellite, provides one ground-level parking for each unit, and does not overwhelm the neighborhood.

865
02:39:47.360 --> 02:39:51.579
Boardroom: New construction on this similar scale is most welcome.

866

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02:39:52.330 --> 02:39:53.570
Boardroom: No objection.

867
02:39:54.120 --> 02:39:56.410
Boardroom: Thank you.

868
02:39:58.770 --> 02:40:17.509
Boardroom: Okay, that finishes public comment on non-agenda matters. Just a couple of comments really quickly. Someone mentioned biking and lessons for biking and bikers and drivers, and Bikey Spay actually does do some of that, so please look into it. And then in terms of the person who spoke earlier about their below-market

869
02:40:17.510 --> 02:40:22.620
Boardroom: Great unit, definitely interested in following up. I think that they've left already, butâ€¦

870
02:40:22.620 --> 02:40:32.229
Boardroom: Hopefully they'll reach out and let us know what's going on so we can provide some support. Okay, so moving on to our consent calendar, do council members have comments?

871
02:40:37.530 --> 02:40:39.010
Boardroom: Councilmember Blackaby?

872
02:40:39.020 --> 02:40:51.699
Boardroom: Thanks, Madam Mayor. Just a few comments. First, on item 3, I ask that the clerk mark me as a no on item 3 on consent. Again, I support the policy on the transfer tax rebate for wildfire hardening, but

873
02:40:51.700 --> 02:41:04.339
Boardroom: don't support the hard cliff that we amended it to. Now we've got a seismic program and a home hardening program. They're out of sync, so I look forward to bringing some amendments next year that hopefully

874
02:41:04.340 --> 02:41:23.570
Boardroom: would be something I could support and the rest of the Council could support, but I'm a no on it for now. I want to thank the City Manager on item 4, for providing some, amendments to the coordinated pricing algorithm item that we passed earlier this year, and I'm hopeful that will help, kind of help us move forward in an effective way with that policy.

875

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02:41:23.570 --> 02:41:30.760
Boardroom: On item 8, which is the, annual appropriations ordinance, the Budget Committee spent a couple of meetings,

876
02:41:30.760 --> 02:41:41.679
Boardroom: reviewing this proposal, I just want to thank the City Manager and his team, the Budget Manager, Mari Carr, my colleagues on the Budget Committee for a pretty thorough, review of what's been proposed here.

877
02:41:41.680 --> 02:42:04.630
Boardroom: And also look forward to future budget processes where some of the carryover and some of the big items that end up here in this AAO will be considered as part of the regular budget process, and I think will just help streamline it and give us all visibility into the next year in a more comprehensive way, so I really appreciate that, the budget team is already thinking about that, and I look forward to working with them on that process.

878
02:42:04.900 --> 02:42:29.749
Boardroom: On item 18, to, Scott Gilman and the parks team, I know this is a license agreement for the temporary parking piece for the Regional Sports Complex, but this is also a great sign that we're about to embark on the new construction, at Tom Bates, which will be an additional restroom, additional soccer fields, 6 pickleball courts, a meeting facility, but really enhancing what we have there and making it more usable for the community, so it's

879
02:42:29.750 --> 02:42:32.809
Boardroom: a great step, and I'm looking forward to what comes next.

880
02:42:33.120 --> 02:42:49.239
Boardroom: I want to thank my Council colleague, Terry Taplin, for item 26. Again, it's kind of a budgetary item, but it's helping us. We already, you know, do a good job at thinking about our bond capacity, but continuing to plan ahead and being strategic about.

881
02:42:49.240 --> 02:43:07.980
Boardroom: What kind of bond, program do we need to embark upon? How are we making progress towards, our overall infrastructure needs? We're just, again, looking to the long term and being thoughtful as we do that planning, and so I just want to thank Councilmember Taplin for putting this out there and helping us embark on that process.

882
02:43:08.140 --> 02:43:25.279

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Boardroom: And you'll see, by the way, in that item, there was a fair amount of work also with the Budget Committee to tweak it, refine it, and make sure that the finance team, the City Manager's office, and our committee were all aligned with Councilmember Taplin, and you'll see all those edits listed in the packet.

883
02:43:25.280 --> 02:43:48.089
Boardroom: Then the last item, item 27, I was proud to be a co-sponsor of this item that Councilmember Lunapara authored, so thank you for letting me join that item. This item updates protections for our residents' personal data and ensures that city contractors aren't assisting federal immigration enforcement. Really updates our existing policy with the new sanctuary City Ordinance.

884
02:43:48.090 --> 02:43:57.000
Boardroom: And we shorten the cure period, to make sure that if we find, a partner that is out of compliance, that we address it, much sooner.

885
02:43:57.040 --> 02:44:06.200
Boardroom: working with the city manager and team to make sure that we can implement that in a way that makes sense. So I think that's it. Thank you. Thank you, Councilmember. Councilmember Lunapara.

886
02:44:07.080 --> 02:44:21.210
Boardroom: Thank you. I am very proud of the community work and, by Council colleagues' support of the Sanctuary City Contracting Ordinance. This item updates the contracting ordinance to align with our newly passed Sanctuary City Ordinance.

887
02:44:21.210 --> 02:44:38.800
Boardroom: I'm also very grateful for the work that the City Attorney's Office and City Manager's Office have done to ensure that this ordinance is feasible for staff to implement. And I also really wanted to thank City Auditor Jenny Wong, and her team for producing a really outstanding audit of our payroll services.

888
02:44:38.800 --> 02:44:42.890
Boardroom: This is some of the most important work that our city

889
02:44:42.890 --> 02:44:47.300
Boardroom: takes on. We need to be able to implement

890
02:44:47.300 --> 02:44:56.910

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Boardroom: legislation properly and receive updates about its effectiveness, so thank you very much for taking that on. And congratulations on those items. Thank you.

891
02:44:57.130 --> 02:45:02.100
Boardroom: Councilmember Lunapar, just a clarifying question. Do weâ€¦

892
02:45:02.670 --> 02:45:14.309
Boardroom: We're just adopting the version that's in Sub 2? Yes, correct. And it also includes the amendments that were in subâ€¦ the changes in Sub 4, so just sub 2. Yeah, it's a cumulative. Okay, great, thank you. Thanks.

893
02:45:14.790 --> 02:45:16.809
Boardroom: Thank you. Councilmember Treykup?

894
02:45:17.390 --> 02:45:28.359
Boardroom: Thank you, continuing on with the round of thanks. Thank you to Madam City Attorney for her continued

895
02:45:28.630 --> 02:45:36.780
Boardroom: Impressive work, and thank you to everyone on your team. We're so fortunate in the city to have

896
02:45:36.890 --> 02:45:45.369
Boardroom: such a wonderful team of auditors. Really appreciate your efforts.

897
02:45:45.610 --> 02:46:04.999
Boardroom: On item 4, amendments to the ordinance prohibiting the useâ€¦ the sale or use of coordinated pricing algorithms. I am very grateful to, many, but in particular, City Attorney Brown and her team

898
02:46:05.000 --> 02:46:08.610
Boardroom: For helping us, land this.

899
02:46:08.690 --> 02:46:15.209
Boardroom: I believe that even with all the changes, it still is one of the strongest

900
02:46:15.340 --> 02:46:18.969
Boardroom: Ordinances in the nation of this kind.

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901
02:46:19.230 --> 02:46:28.780
Boardroom: Item 7, I want to, appreciate, our city manager and the,

902
02:46:29.210 --> 02:46:45.379
Boardroom: Kerry Arredondo and, everyone on the team, for this important step forward, to launch a transitional housing and wraparound services program by January 1st, 2026.

903
02:46:45.380 --> 02:46:52.629
Boardroom: That will provide trauma-informed, culturally responsive case management, treatment connections, supportive services.

904
02:46:52.710 --> 02:46:54.309
Boardroom: And so much more.

905
02:46:55.440 --> 02:47:01.870
Boardroom: And thenâ€¦ Last, but not least, I would like to thankâ€¦

906
02:47:01.980 --> 02:47:18.619
Boardroom: Councilmember Taplin for his item 26 to help us, when we think about budgeting in the future, and, looking at our investments to do it in a more predictable fashion.

907
02:47:18.900 --> 02:47:22.810
Boardroom: And on item 27,

908
02:47:22.860 --> 02:47:40.339
Boardroom: I, am very grateful to Councilmember Lunapwara, for authoring this item, and to the co-sponsors, and I am, elated to be able to vote yes on updates to the Sanctuary City Contracting Ordinance. Thank you.

909
02:47:40.750 --> 02:47:43.399
Boardroom: Thank you. Other comments from my Council colleagues?

910
02:47:44.850 --> 02:47:59.290
Boardroom: Yes. Councilmember Humbert. Yes. Excuse me. Thank you, Madam Mayor. I just want to appreciate being added as a co-sponsor to the important item number 27, Sanctuary City Contracting Ordinance Updates.

911
02:47:59.290 --> 02:48:07.139

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Boardroom: Which will bring our contracting ordinance into, you know, intoâ€¦ A lot, you know.

912
02:48:07.740 --> 02:48:20.909
Boardroom: I'm missing the word. It will mirror, it will allow it to mirror key definitions with the language in our new sanctuary City Ordinance. Important, a very important item. Thank you.

913
02:48:21.580 --> 02:48:23.890
Boardroom: Thank you very much. Anyone else?

914
02:48:24.380 --> 02:48:42.390
Boardroom: Okay, I want to just add, I'm very happy to be approving the contract for Options Recovery to administer the CareBridge program, and look forward to getting this program off the ground. Big thank you again, Carrie. I'd like to thank the City Manager's Office, the Budget Manager, and all the departments for

915
02:48:42.390 --> 02:48:57.940
Boardroom: scouring their budgets and looking for, what are necessary expenditures and carryover for the AA01. We had a thorough discussion in budget and finance, and I'm glad that we're able to move forward this recommendation. So thank you all so much for your work. I know that was a lot.

916
02:48:57.940 --> 02:49:19.020
Boardroom: And for 27, I want to thank Councilmember Linopara for working with staff to update and improve the sanctuary Contracting Ordinance so that we can better provide safeguards to our immigrant community. I'm really happy to co-sponsor this important item, and really want to thank staff, because I think this was a good example of us working together to figure out, you know, how to get to yes.

917
02:49:19.020 --> 02:49:28.839
Boardroom: So thank you all very much for that. Next, is there any comment on consent calendar or information items only?

918
02:49:32.580 --> 02:49:33.520
Boardroom: Come on up!

919
02:49:35.240 --> 02:49:38.740
Boardroom: And folks online, just to get yourselves ready.

920

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02:49:39.050 --> 02:49:44.430
Boardroom: We are taking consent, comments on consent and information items only.

921
02:49:54.200 --> 02:49:57.990
Boardroom: Okay, let's seeâ€¦

922
02:49:58.150 --> 02:50:10.499
Boardroom: First, thanks so much. I'm really looking forward to, on number 7, as the CareBridge program, moves forward. Options is absolutely the provider that

923
02:50:10.640 --> 02:50:18.310
Boardroom: Is experienced, and will do an excellent job, and is collaborative on every level in making things happen.

924
02:50:18.310 --> 02:50:37.559
Boardroom: And this is a clear need. It'll, be interesting to see, how the Golden Bear Homes partnership transfer evolves. That's not really clear. I, do want to say that, the, I'm pleased to see that Council and the City Manager's Office continues

925
02:50:37.560 --> 02:50:45.950
Boardroom: To develop the various nuances, that areâ€¦ isâ€¦ that are constantly evolving with the Sanctuary City contracting.

926
02:50:46.050 --> 02:51:03.789
Boardroom: This is not only undocumented immigrants, actually permanent residents are, in jeopardy, too. There are permanent residents that are being deported, for such, quote, offenses such as marijuana and other, and having,

927
02:51:03.950 --> 02:51:07.270
Boardroom: Had drug offenses against them.

928
02:51:07.730 --> 02:51:16.269
Boardroom: There was a recent case where someone who has been here since he's 8 years old and is now 35,

929
02:51:16.420 --> 02:51:29.490
Boardroom: Even though the judge upheld him being able to stay here, because they said he had not sufficiently showed, rehabilitation for his drug offenses.

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930
02:51:29.640 --> 02:51:38.819
Boardroom: was deported back to the Bahamas, and he's a permanent resident since he was 8 years old. Same thing with a woman,

931
02:51:39.160 --> 02:51:43.649
Boardroom: who is Canadian, who is 5-year, been here since she's 5.

932
02:51:43.810 --> 02:52:02.300
Boardroom: a permanent resident, so it's not only touching the undocumented immigrants. And of course, we know what's happening in North Carolina now, and as we see that list of these dangerous offenders, it starts out with gang violence and kidnapping, and then goes to shoplifting. Thanks, Carol. Thanks. Shoplifting.

933
02:52:05.250 --> 02:52:06.029
Boardroom: Go ahead.

934
02:52:07.920 --> 02:52:21.369
Boardroom: Hi, I'm, Mike Thomas, the Senior Director of Programs from Options Recovery Services, and I'd like to thank the City Council, the Mayor, the City Managers, the Patel family, Carrie, Arredondo.

935
02:52:21.370 --> 02:52:31.730
Boardroom: And, the whole city for giving us the opportunity to, do the new, CareBridge, program. I'm really excited. I've, I've, oversaw many programs.

936
02:52:31.730 --> 02:52:47.450
Boardroom: partnered with the city, and I'm very, very excited about this one, because I think we're addressing a huge need in a very innovative way, and I'm really excited to see you all again to report the great outcomes that I anticipate.

937
02:52:47.460 --> 02:52:54.929
Boardroom: And, again, thank you very much for the opportunity, and, yeah, thank you.

938
02:52:55.720 --> 02:52:56.890
Boardroom: Thank you.

939
02:52:58.890 --> 02:53:09.279

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Boardroom: Good evening to you all. Really grateful to be here. Thank you all for this opportunity. You know, when I was a boy, my grandmother used to tell us it takes a village. I didn't understand that until things like this take place.

940
02:53:09.280 --> 02:53:32.269
Boardroom: So, as well, I echo what he says, what Mike says, my name is George Smith, I'm a Director of Reentry and Violence Prevention for Options Recovery Services, and I have the privilege of being able to help build out this program, and I really look forward to being able to house these folks, get them what they need, get that safety, and also really align folks with the resources that they need. You talked about the trauma-informed care, the life skills, and things of that nature. We know that safety

941
02:53:32.270 --> 02:53:57.229
Boardroom: Housing is so important to folks, you know, it's one of the foundations of Mislo's hierarchy. So, again, thanks to Dr. Carey, thank you, Madam Mayor, thank you to the Patel family, thank you for Options Recovery Services. 26 years ago, Dr. Davida Cody founded this company with the hope that anybody, anywhere, without funds, without resources, can have the treatment that they need. And to see this thing come to fruition today, in 2025 and

942
02:53:57.230 --> 02:54:08.029
Boardroom: 2026, my heart is just blessed to experience it, so thank you all again, and I'll give you back your time. Enjoy the rest of your evening. Thank you so much. This is the family that owns the hotel?

943
02:54:08.030 --> 02:54:22.810
Boardroom: Is that right? Okay. Well, thank you alsoâ€¦ I was curious which item you were here for. Thank you very much, I appreciate it. It'sâ€¦ it's not often that we get to see people come who are really impacted in this way, and so I just really want to thank you all so much for being here, too.

944
02:54:22.810 --> 02:54:29.449
Boardroom: For me, it's very special. It helps to bring some of these things to life that we're working on, so thank you all so much.

945
02:54:29.550 --> 02:54:35.539
Boardroom: Okay, any other comments online for consent calendar information items only?

946
02:54:35.870 --> 02:54:42.030

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Boardroom: One speaker with a phone number endingâ€¦ oh, two speakersâ€¦ phone number ending in 000.

947
02:54:44.110 --> 02:54:46.110
Boardroom: Public comment on consent.

948
02:54:51.800 --> 02:54:53.119
Boardroom: No. Okay.

949
02:54:56.720 --> 02:55:00.470
Boardroom: Next speaker is Theo Gordon.

950
02:55:03.280 --> 02:55:16.240
Theo Gordon: Hello, Councilmembers. My name's Theo Gordon. I'm asking you to pull item 19 from the consent calendar and take it up independently. This is a tax giveaway to one

951
02:55:16.240 --> 02:55:25.479
Theo Gordon: property owner in the city, because the Baja and LPC have decided this property is more special than the rest of all of the other 19â€¦

952
02:55:25.480 --> 02:55:40.770
Theo Gordon: 15 properties in the city. As a homeowner in Berkeley who owns a very old, property that is on Berkeley walking tours, I don't get any special tax treatment from the city to maintain my own property, and I don't think that we, in this budgetary environment, we should be handing out tax breaks.

953
02:55:40.770 --> 02:55:44.750
Theo Gordon: willy-nilly. This should be taken up by the full council. Thank you.

954
02:55:46.220 --> 02:55:47.389
Boardroom: Thank you, Theo.

955
02:55:48.900 --> 02:55:50.960
Boardroom: Okay, that's it, no other speakers.

956
02:55:51.240 --> 02:55:59.109
Boardroom: Okay, very good. Folks, is there, a motion to approve the consent calendar?

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957
02:56:00.830 --> 02:56:02.420
Boardroom: So moved.

958
02:56:02.670 --> 02:56:12.569
Boardroom: Okay, second from Councilmember Trey Gub, and, is there any opposition besides the noted no from Councilmember Blackaby?

959
02:56:14.030 --> 02:56:20.289
Boardroom: Okay, then our consent calendar has been approved. Thank you all so much, thank you all for coming.

960
02:56:20.680 --> 02:56:25.449
Boardroom: Okay, so we are moving down to our action calendar.

961
02:56:27.430 --> 02:56:40.079
Boardroom: Excuse me. Okay, moving on to item 28, adoption of Berkeley Building Codes, including local amendments to California Building Standards Code. And I'll give you all a minute to get all set up. Thank you.

962
02:56:46.600 --> 02:56:59.500
Boardroom: Thank you, Mayor. Good evening, Council Members. Jordan Klein, Director of Planning and Development. I'm joined at the staff table by the Berkeley Building Official, David Lopez, and the Assistant Building Official, Jeff Jensen.

963
02:57:00.180 --> 02:57:12.670
Boardroom: So, every, 3 years, the California Building Standards Codes are updated to reflect the latest advances in technology, energy efficiency, safety, sustainability.

964
02:57:13.540 --> 02:57:23.239
Boardroom: And then local municipalities, adopt those codes by reference, including any local amendments to reflect local conditions.

965
02:57:23.270 --> 02:57:35.719
Boardroom: And so that's the action before you tonight, second reading, which is required to be a public hearing. We are carrying forward all of the previous local amendments. The action doesn't include any new local amendments.

966

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02:57:35.720 --> 02:57:47.069
Boardroom: There is work underway to consider new local amendments, but that's not part of this action at this time. We're hoping to bring to you some consideration of new local reach codes at some point in 2026.

967
02:57:47.410 --> 02:57:52.700
Boardroom: So, that concludes the staff presentation, and we're available to answer any questions.

968
02:57:53.270 --> 02:57:58.960
Boardroom: Thank you for that long, complex presentation. Are there any questions for anyone?

969
02:57:59.380 --> 02:58:24.330
Boardroom: Okay. Yeah, I do have a question. Oh, you do have a question. Go ahead. Thank you, Director Klein. That was helpful to know. So, so you're not proposing anything new here, soâ€¦ because Iâ€¦ because Iâ€¦ I looked at the bullets at the beginning, and I see someâ€¦ whatâ€¦ soâ€¦ so my perspective on this, and I, I thinkâ€¦ I don't know if you were watching, you know, with the fire code updates, you know, what Iâ€¦ what I want to make sure we're sensitive to is

970
02:58:24.330 --> 02:58:39.179
Boardroom: increasing the cost of housing and considering the trade-offs. You know, oftentimes, you know, I appreciate what the code is trying to do. Obviously, we need safe buildings that are sustainable. So I did just want to pause for a moment. Can you help me understand

971
02:58:39.180 --> 02:58:53.710
Boardroom: The bullet on the top of page 2, it talks about retaining Berkeley's more stringent requirements for technical structural standards, climatic and geographic design criteria, and re-adopting these appendices.

972
02:58:54.940 --> 02:58:59.819
Boardroom: Are you able to explain that a little bit more, what those are about?

973
02:59:01.410 --> 02:59:08.800
Boardroom: Well, the technical structural standards? Yeah, the technical structural standards and the climatic and geographic design criteria.

974
02:59:09.120 --> 02:59:16.999

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Boardroom: Okay, so the structural standards, well, being in a seismic zone that we areâ€¦ Okay. The standards that we have areâ€¦

975
02:59:17.450 --> 02:59:21.390
Boardroom: We don't allow certain, shear walls, like.

976
02:59:21.630 --> 02:59:26.380
Boardroom: drywall. We don't allow drywall to be a shear wall in Berkeley.

977
02:59:26.500 --> 02:59:34.770
Boardroom: We also don't allow just plain concrete in certain instances. I believe we only allow plain concrete in one instance now.

978
02:59:34.940 --> 02:59:37.409
Boardroom: Where the code allows it in a lot of different places.

979
02:59:37.730 --> 02:59:41.770
Boardroom: The other standard that we have is for existing buildings.

980
02:59:42.000 --> 02:59:49.349
Boardroom: So, for soft story or URM renovations, which are mandatory programs in our city.

981
02:59:49.650 --> 02:59:54.149
Boardroom: Those are structural standards that we have that are more stringent thanâ€¦ The model codes.

982
02:59:54.530 --> 03:00:10.259
Boardroom: Okay, thank you for that. And then the other one, I just want to note, so we have more stringent electrical vehicle charging requirements in all building types, and, you know, anecdotally, I am seeing, you know, folks who have

983
03:00:10.300 --> 03:00:25.950
Boardroom: purchased an electric vehicle, they don't have a parkingâ€¦ an off-street parking space, and they're doing the wires, you know, on the sidewalk. Can you just briefly describe that requirement? Well, the state actually now requires all dwellingâ€¦ new dwelling units.

984
03:00:26.100 --> 03:00:31.080
Boardroom: to have a capable EV charging infrastructure.

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985
03:00:31.330 --> 03:00:33.400
Boardroom: So, the state's actuallyâ€¦

986
03:00:33.870 --> 03:00:44.900
Boardroom: Oh, so it's not more stringent in this case. It's not really more stringent, it's justâ€¦ Oh, that's for new dwellings. New dwellings, right. We don't have anything for existing. The reason the amendments are written the way they are is that our previous adopted

987
03:00:45.200 --> 03:00:51.330
Boardroom: ordinance, those amendments, We're written under the mid-cycle code

988
03:00:51.470 --> 03:00:54.660
Boardroom: Text, and so we had to rewrite them to the new

989
03:00:55.490 --> 03:01:12.249
Boardroom: code text, and they changedâ€¦ the state changed it around, and that's why you see such a breakdown as, single-family dwellings, multi-story with assigned parking, multiâ€¦ I mean, multi-dwelling with assigned parking, multi-dwelling with unassigned parking.

990
03:01:13.380 --> 03:01:17.820
Boardroom: There's new requirements for office and retail.

991
03:01:18.010 --> 03:01:28.539
Boardroom: And also for non, you know, for non-residential, other than office and retail. And also, amendments were done by the state for existing parking.

992
03:01:28.950 --> 03:01:48.909
Boardroom: facilities. Okay, and so adding the electric vehicle charging requirements for these various types of, uses. So, I don't want to go off on a tangent on this, but, so with a single-family home, doesâ€¦ can you remind me, does our code say where you're required to have an off-street parking spot?

993
03:01:49.440 --> 03:01:56.410
Boardroom: It does not. That's notâ€¦ that's a zoning, yeah. Yeah, that's a zoning thing, but the reason why I'm asking is, so if somebody wants to remodelâ€¦

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994
03:01:56.410 --> 03:02:16.209
Boardroom: their home, and they come with a permit seeking a remodel, are you looking at that to see that they're adding this requirement for the electric vehicle charging, or is that only going to be for new units? That's only for new single-family dwellings. Okay, and it isâ€¦ if somebody has an accessory dwelling unit, they're not required to have parking in the city, but if they choose

995
03:02:16.300 --> 03:02:18.320
Boardroom: To have off-street parking.

996
03:02:18.510 --> 03:02:30.169
Boardroom: This is saying you do have to have electric vehicle charging for that ADU parking spot, correct? It's a brand new one, yes. It's a brand new. Okay, so, alright, I'll just leave it at that. Thank you very much.

997
03:02:31.400 --> 03:02:42.209
Boardroom: Thank you for your question. Are there, anyâ€¦ is there any public comment on item 28? This is the adoption of Berkeley Building Codes, including local amendments to California Building Standards Code.

998
03:02:42.840 --> 03:02:45.850
Boardroom: Any public comment online?

999
03:02:46.460 --> 03:02:51.650
Boardroom: Nope. Okay. Any comments from my Council colleagues?

1000
03:02:53.780 --> 03:02:59.750
Boardroom: Okay. Is there a motion? To close the public hearing. To close the public hearing? I so move.

1001
03:03:00.900 --> 03:03:01.730
Boardroom: Second.

1002
03:03:02.260 --> 03:03:05.500
Boardroom: Is there any objection to closing the public hearing?

1003
03:03:06.130 --> 03:03:08.200
Boardroom: Okay, the public hearing is closed.

1004

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03:03:08.710 --> 03:03:12.090
Boardroom: I will entertain other motions.

1005
03:03:13.190 --> 03:03:14.520
Boardroom: So moved.

1006
03:03:14.840 --> 03:03:22.789
Boardroom: Second. Okay. And, any objection to the motion, which is the adoption of the building codes, Berkeley building codes?

1007
03:03:24.060 --> 03:03:41.899
Boardroom: Nope. Okay. Motion is passed. Thank you very much. Moving on to item 29, which is the zoning Ordinance Amendments. Thank you all so much for coming, by the way, apologies. Zoning Ordinance Amendments to Title 23 of the Berkeley Municipal Code for Consistency with State Law and Technical Edits.

1008
03:03:41.900 --> 03:03:44.940
Boardroom: S-L-T-E2025.

1009
03:03:47.610 --> 03:03:52.529
Boardroom: Good evening. Hello. Robert Rivera is here to present for staff. Take it away, Robert.

1010
03:03:53.620 --> 03:03:55.310
Boardroom: Alright, good evening, Commission.

1011
03:03:55.430 --> 03:04:12.850
Boardroom: No, sorry, Council. Staff is bringing forward, state law technical edits, which are routine non-substantive technical amendments to the zoning ordinance to correct errors, update references, and clarify existing practice in order to maintain consistency.

1012
03:04:12.850 --> 03:04:21.550
Boardroom: and integrity as directed by Council in 2021. Staff recommends the City Council approve the proposed ordinance amendments, and we're available for any questions.

1013
03:04:22.920 --> 03:04:25.020
Boardroom: Okay, any questions?

1014
03:04:27.630 --> 03:04:41.829

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Boardroom: Thank you, Madam Mayor. Oh! Thank you, Madam Mayor. Is this the process that was started under, as part of theâ€¦

1015
03:04:42.070 --> 03:04:44.850
Boardroom: Committee process.

1016
03:04:45.050 --> 03:04:52.030
Boardroom: Known as ZORP, my second least favorite acronym of all time.

1017
03:04:52.540 --> 03:05:00.499
Boardroom: Correct. It was the process started to, update the zoning ordinance and correct those typos and errors.

1018
03:05:01.430 --> 03:05:12.129
Boardroom: sort the zoning ordinance. Great. That was my only question, thank you. Okay, thank you very much. Is thereâ€¦ are there any other questions?

1019
03:05:12.250 --> 03:05:21.269
Boardroom: Okay. Is there any public comment on item 29, the zoning ordinance amendments to Title 23 of the Berkeley Municipal Code, for consistency with state law and technical edits?

1020
03:05:22.350 --> 03:05:26.440
Boardroom: Okay, very good. Is there a motion to close the public hearing?

1021
03:05:26.830 --> 03:05:27.900
Boardroom: So moved.

1022
03:05:28.860 --> 03:05:29.680
Boardroom: Second.

1023
03:05:30.570 --> 03:05:34.219
Boardroom: Okay. Is there any opposition to closing the public hearing?

1024
03:05:35.390 --> 03:05:40.799
Boardroom: Alright, the public hearing is closed, and I will entertain other motions.

1025
03:05:40.900 --> 03:06:01.549

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Boardroom: I'm so moved, and just with appreciation to staff to continuing this process. I used to serve on this committee along with Councilmember O'Keefe. Oh, you were not on there. Okay. Alright, very good. Is there a second? I second. I also wasn't on the subcommittee either. Okay.

1026
03:06:01.990 --> 03:06:11.519
Boardroom: Alright then, is there any opposition to approving the motion? Okay, then motion is passed. Thank you all very much for being here.

1027
03:06:12.060 --> 03:06:28.360
Boardroom: All right, moving on to item number 30, pausing City of Berkeley authorization for Mills Act agreements from, well, from all of our names. Councilmember Humbert, author Mayor Ishii, co-sponsor, Councilmember Kesarwani, co-sponsor, Councilmember Lunopara, co-sponsor.

1028
03:06:30.180 --> 03:06:33.590
Boardroom: I'm just reading.

1029
03:06:36.680 --> 03:06:53.530
Boardroom: Did you want to make a presentation, or didâ€¦ Sure, Madam Mayor, I'd be happy to make a short presentation. But before I do, I want to read into the record, inserting into the item under the Environmental Sustainability and Climate Impacts section.

1030
03:06:53.620 --> 03:07:01.780
Boardroom: That, quote, the city finds that this resolution does not constitute a, quote, project, end quote.

1031
03:07:01.930 --> 03:07:15.979
Boardroom: within the meaning of the California Environmental Quality Act, paren, quote, CEQA, end quote, in paren, pursuant to CEQA guidelines section 15378. Thanks.

1032
03:07:16.170 --> 03:07:24.549
Boardroom: I want to thank all members of the Landmarks Preservation Commission for their prior work reviewing these applications.

1033
03:07:24.860 --> 03:07:34.080
Boardroom: and District 8 LPC Commissioner Denise Hall Montgomery for her work, and for discussing the Mills Act considerations with me and helping inform this item.

1034

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03:07:34.230 --> 03:07:54.160
Boardroom: I want to emphasize that this item is not about devaluing landmark preservation in general, or whether any particular landmark is worthy of preservation. This is about our budget, which is constrained at this point. Our priorities and whether this program is achieving preservation and equity goals.

1035
03:07:54.600 --> 03:08:08.140
Boardroom: Given our current budget crisis, the lack of strong evidence that relinquished tax dollars are cost-effectively helping preserve landmarks, and the equity implications of this program, I think that pausing is the only responsible course.

1036
03:08:08.800 --> 03:08:28.019
Boardroom: The Mills Act was passed at a time when California homes and commercial properties, especially those which were historic but distressed, were much more affordable. In that context, it made sense to create a program that would provide relief to cash-strapped families and small businesses that wanted to purchase these properties and fix them up.

1037
03:08:28.330 --> 03:08:38.840
Boardroom: But this is no longer the case. Even our most distressed properties now go for prices that tend to lock out all but the most affluent, and that's certainly true here in Berkeley.

1038
03:08:38.910 --> 03:08:52.180
Boardroom: And those folks, by and large, do not need these tax breaks. As it currently operates, the Mills Act program tends to remove funding from the city budget overall, and from the schools, and from the county.

1039
03:08:52.510 --> 03:09:03.190
Boardroom: Andâ€¦ but the city budget, which provides services for everyone to create a tax break for those toward the upper end of the income spectrum. And this is a regressive policy.

1040
03:09:03.240 --> 03:09:20.309
Boardroom: There may be ways in the future to adjust this program so that we're ensuring the benefits are more equitably distributed in terms of geography and income, but again, given our budget crunch, I just can't justify calling for the funding and staff time this would require at this point.

1041
03:09:20.470 --> 03:09:25.339

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Boardroom: And until we have the resources to undertake this, I think that a pause is appropriate.

1042
03:09:25.570 --> 03:09:41.229
Boardroom: So again, I want to thank everyone, my co-sponsors, the planning staff, and our Landmarks Preservation Commission for their previous work to review and administer these contracts, and I look forward to taking this small but fiscally responsible step. Thank you.

1043
03:09:42.670 --> 03:09:47.990
Boardroom: Councilmember, is there anything you want to add in terms of any changes in language, orâ€¦

1044
03:09:48.400 --> 03:10:00.030
Boardroom: My one address. It was just that one item that I read into the record. And we did file a supplemental, so that I would bring attention to the supplemental, which changes some dates.

1045
03:10:00.470 --> 03:10:12.110
Boardroom: Do you want to speak more to that at all? No, would you like to, Madeline? Yeah, well, I just was thinking that maybe it might be good to, before, our public comment. Sure. Well, I can tell you that,

1046
03:10:12.520 --> 03:10:32.990
Boardroom: Let meâ€¦ let me call up the supplemental. What the supplemental doesâ€¦ there are 3 pending applications at this point. One, I think we just passed on theâ€¦ actually just passed on the consent calendar. This allows the two pending applications, one of which was approved by the Landmarks Commission, to go forward, but inserts a cutoff date.

1047
03:10:32.990 --> 03:10:35.590
Boardroom: Of, I think, the end of this month.

1048
03:10:36.070 --> 03:10:45.149
Boardroom: Tomorrow. Tomorrow, 19th. Thanks. Thank you, I appreciate that. Yeah. Okay, great. Any questions forâ€¦

1049
03:10:45.980 --> 03:10:48.180
Boardroom: Alright, public comment on this item?

1050
03:10:50.800 --> 03:10:53.960

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Boardroom: Oh, come on up if you want publicâ€¦ if you have public comment.

1051
03:11:01.360 --> 03:11:08.350
Boardroom: So this is public onâ€¦ public comment on number 30, pausing City of Berkeley authorization for Mills Act agreements.

1052
03:11:08.600 --> 03:11:19.719
Boardroom: My name is Julie Noctuy, and I've lived in Berkeley since 1980, and Mark is, I understand you both have studied the Mills Act and the financial appâ€¦

1053
03:11:19.720 --> 03:11:32.170
Boardroom: involvement with the budget. But I think that there's a lot of points that have been made by Baja, and they presented a document to you, which outlined a lot more factual data.

1054
03:11:32.170 --> 03:11:38.640
Boardroom: aboutâ€¦ Why these 360 buildings that have been landmarked

1055
03:11:38.820 --> 03:11:46.470
Boardroom: are contributing to the architectural heritage of our state and of our city, and that they are

1056
03:11:46.710 --> 03:11:56.140
Boardroom: They generate income by the permits that are required, and by the contractors and architects who work on them to maintain them, and by theâ€¦

1057
03:11:56.230 --> 03:12:18.420
Boardroom: house tours and visitors who come to Berkeley to see the architectural heritage, which is unique. So I think you should consider taking a little bit more time before you decide to pause the program, and look at what Leela March had outlined in her program, and her details of facts about the Mills Act, because it is the single most

1058
03:12:18.420 --> 03:12:25.300
Boardroom: incentive program for architectural heritage and restoration in the state of California.

1059
03:12:26.900 --> 03:12:28.960
Boardroom: That's all. Thank you, Julie.

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1060
03:12:37.780 --> 03:12:42.620
Boardroom: Hello, my name's Jeff Baker, and first I want to thank you for

1061
03:12:42.850 --> 03:12:48.670
Boardroom: bringing this very common sense reform forward with alacrity thatâ€¦

1062
03:12:49.090 --> 03:12:53.430
Boardroom: Suits the, kind of, budget and fiscal situation of the city.

1063
03:12:53.740 --> 03:13:07.719
Boardroom: There is only one thing that I would like to add, that I think that the language of the recommendation could be, slightly improved, and that would be in terms of these contracts are not self-canceling.

1064
03:13:08.070 --> 03:13:11.480
Boardroom: And that they will not, not be renewed

1065
03:13:11.680 --> 03:13:14.340
Boardroom: In the absence of action to cancel them.

1066
03:13:14.630 --> 03:13:20.700
Boardroom: So, to me, having studied the matter, that didn't jump out in the recommendation.

1067
03:13:20.920 --> 03:13:36.560
Boardroom: If you direct the city to not renew them, that's not really an event that happens by itself. So I might suggest, if you wish to amend it, that you would direct the city to affirmatively cancel the contracts at their first opportunity. Thank you.

1068
03:13:36.700 --> 03:13:37.880
Boardroom: Thank you.

1069
03:13:38.120 --> 03:13:41.819
Boardroom: Is there, any other public comment here in person?

1070
03:13:42.500 --> 03:13:44.020
Boardroom: Okay, or anyone online?

1071

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03:13:45.330 --> 03:13:49.989
Boardroom: Yes, there areâ€¦ Five hands raised online.

1072
03:13:50.300 --> 03:13:56.170
Boardroom: First, speaker is John Bernstein.

1073
03:14:02.490 --> 03:14:04.939
John Bernstein: Hello, everyone, I hope you can hear me okay.

1074
03:14:05.350 --> 03:14:06.140
Boardroom: Yes.

1075
03:14:06.640 --> 03:14:08.899
John Bernstein: Great, thanks so much.

1076
03:14:09.240 --> 03:14:19.390
John Bernstein: I'm a Berkeley neighbor, my background is in land use and GIS mapping and mathematics. I got interested in the evidence that is presented to justify

1077
03:14:19.550 --> 03:14:22.870
John Bernstein: stopping, pausing the Mills Act, andâ€¦

1078
03:14:23.060 --> 03:14:31.000
John Bernstein: I looked at the spreadsheet that formed the primary evidence for Councilmember Humbert's proposal.

1079
03:14:31.420 --> 03:14:37.620
John Bernstein: And I want to thank Councilmember Humbert, sincerely, because

1080
03:14:37.990 --> 03:14:40.190
John Bernstein: In fact, he accepted the fact

1081
03:14:40.570 --> 03:14:54.979
John Bernstein: is that there were some major flaws in it. The major flaw is that the cost of the program is not $600,000 a year. The cost is actually much lower because of math errors, which were created in the performance of the spreadsheet. In fact.

1082
03:14:55.370 --> 03:15:02.289

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John Bernstein: In fact, the program costs about $186,000 a year, which is a tiny percentage of the city budget.

1083
03:15:03.090 --> 03:15:04.529
Boardroom: Having said that.

1084
03:15:04.530 --> 03:15:12.390
John Bernstein: I realize that there is a budget deficit, but this thing is just about .002% of the city budget. It's a tiny amount.

1085
03:15:13.010 --> 03:15:17.279
John Bernstein: But the spreadsheet also leaves out a bunch of other important facts.

1086
03:15:17.520 --> 03:15:24.580
John Bernstein: First of all, the city charges major fees to enter the program, and those now total about $500,000.

1087
03:15:25.250 --> 03:15:27.859
John Bernstein: Second of all, from the permits.

1088
03:15:28.060 --> 03:15:30.890
John Bernstein: That were granted for this, which are online.

1089
03:15:31.200 --> 03:15:38.139
John Bernstein: It's possible to estimate that the value of the work on all those Mills Act properties is over $5 million.

1090
03:15:38.890 --> 03:15:49.859
John Bernstein: So, I would say that the City Council is acting based on very faulty and erroneous information. I suggest that a referral to Council agencies to verify

1091
03:15:49.980 --> 03:15:56.190
John Bernstein: Some of our assertions and some of the proponents' assertions would be a very good idea.

1092
03:15:56.430 --> 03:15:57.529
John Bernstein: Thank you so much.

1093
03:15:59.010 --> 03:16:00.130

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Boardroom: Thank you.

1094
03:16:00.560 --> 03:16:03.189
Boardroom: Okay, next speaker is Mike.

1095
03:16:04.380 --> 03:16:06.399
Boardroom: Mike, you should be able to unmute.

1096
03:16:07.840 --> 03:16:20.740
Mike: Hi, I am, thank you for your time. I am one of the two applicants that I believe is kind of in the, the gray area right now for the Mills Act, for Berkeley.

1097
03:16:21.000 --> 03:16:25.710
Mike: Iâ€¦ I don't know where, kind of, all the things are gonna net out. Weâ€¦

1098
03:16:26.020 --> 03:16:34.930
Mike: Are one of the kind of folks who actually, of our own accord, raised our hand, tried to get our house looked at by a third party.

1099
03:16:34.930 --> 03:16:49.280
Mike: And rendered as a historical resource. In order to try to do the maintenance work on the exterior, it does not cover the cost of the maintenance work. It just helps to be able to defray some of the costs, so it's kind of aâ€¦

1100
03:16:49.430 --> 03:16:52.830
Mike: In a sense, a public-private partnership on trying to, kind of.

1101
03:16:53.090 --> 03:17:02.050
Mike: maintain the historical nature of the home. I don't know where the Council is going to kind of net out on this. There's a lot more, kind of, information around

1102
03:17:02.050 --> 03:17:17.289
Mike: the notion of why preservation pays back pretty quickly. The one thing I will say is that, similar to cities like Los Angeles, there needs to be an off-ramp for people that self-select if you're going to kind of take away the Mills Act.

1103
03:17:17.310 --> 03:17:26.849

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Mike: In other words, you shouldn't be kind of saying, yes, you know, here's the process by which you can potentially be available for,

1104
03:17:26.850 --> 03:17:44.789
Mike: This, this act, and then kind of, in a sense, pull the rug, and then have people have to maintain the cost of trying to do all the things that come with owning and trying to upkeep a historical property without being able to avail themselves of the statewide, considerations.

1105
03:17:47.300 --> 03:18:08.439
Boardroom: Okay, thank you. Thank you, and, just to clarify, because I think this is important, that in the earlier presentation by Councilmember Humbert, he mentioned that those, those, applications will still be considered, just noneâ€¦ the pause happens, essentially, for any applications that are submitted past

1106
03:18:08.610 --> 03:18:18.449
Boardroom: the November 19th date. Is that correct? That'sâ€¦ that's correct. Okay, just toâ€¦ because I think that person was unclear, so I just wanted to make sure we clarified that.

1107
03:18:19.260 --> 03:18:22.459
Boardroom: Okay, next is Kelly Hammergren.

1108
03:18:28.840 --> 03:18:30.520
kelly hammargren: Okay, can you hear me now?

1109
03:18:31.150 --> 03:18:32.100
Boardroom: Yes.

1110
03:18:32.100 --> 03:18:32.780
kelly hammargren: Okay.

1111
03:18:33.120 --> 03:18:41.970
kelly hammargren: Soâ€¦ I have been hearing that there are some, problems with the cost of this program.

1112
03:18:42.120 --> 03:18:48.889
kelly hammargren: Ohâ€¦ I would hope that you take a long, hard look at that.

1113
03:18:49.160 --> 03:18:58.060

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kelly hammargren: It's disappointing that the recommendations from the Landmarks Preservation Commission have not made it.

1114
03:18:58.520 --> 03:19:10.040
kelly hammargren: to City Council, because the Landmarks Preservation Commission put together recommendations for a better management of the Mills Act and limiting

1115
03:19:10.150 --> 03:19:13.980
kelly hammargren: The number of applications per year to 3.

1116
03:19:14.660 --> 03:19:21.199
kelly hammargren: Andâ€¦ to, end the automatic renewal of Mills Act.

1117
03:19:21.570 --> 03:19:23.570
kelly hammargren: of applications.

1118
03:19:23.800 --> 03:19:32.469
kelly hammargren: So that, they just don't continue forever, that there is an end. And also, reporting at the 5-year mark

1119
03:19:32.650 --> 03:19:39.850
kelly hammargren: on the Mills Act. And all of these recommendations from the Landmarks Preservation Commission, which I read from their minutes.

1120
03:19:41.710 --> 03:19:50.469
kelly hammargren: Sound, to me, to be far more reasonable than to just say, we're going to pause this for some indefinite period.

1121
03:19:50.650 --> 03:19:55.720
kelly hammargren: I do think that as we are,

1122
03:19:56.110 --> 03:20:03.770
kelly hammargren: remaking the city with new buildings, it also serves us to preserve our historical buildings.

1123
03:20:04.020 --> 03:20:06.610
kelly hammargren: And so, this is notâ€¦

1124
03:20:08.020 --> 03:20:21.679

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kelly hammargren: I evidence to be the great expense that has been purported to be, and it looks like there are many benefits that comeâ€¦ that would come from continuing it in a limited fashion. Thank you very much.

1125
03:20:22.550 --> 03:20:26.900
Boardroom: Thank you, Kelly. Okay, next is Theo Gordon.

1126
03:20:30.140 --> 03:20:43.830
Theo Gordon: Hello, council members. I actually want to echo one of the previous callers, I think John Bernstein, who was questioning the math and whether the math is clear or not, and I think that he might be right there, and that's exactly why we need to stop the program.

1127
03:20:43.830 --> 03:20:56.700
Theo Gordon: The idea that LPC and their friends at Baja are willy-nilly handing out tax breaks, and no one knows how many are out there, what they cost, and whether any work is being done, just shows that this program has been grossly mismanaged.

1128
03:20:56.700 --> 03:21:09.900
Theo Gordon: And the people defending the program today had plenty of opportunity to fix it. Maybe LPC wants to weigh in on how to fix it. They could have done that over the last 30 years, but they haven't until we started calling attention to it, because it was benefiting them and their friends.

1129
03:21:09.960 --> 03:21:27.469
Theo Gordon: I can tell you that there are several of these buildings in my neighborhood where no work has been done. This one in particular on Ashby is a derelict hazard and an eyesore. And I want to know why I am subsidizing, through my property tax dollars, this building that has had zero work done on it and looks like it's about to fall apart.

1130
03:21:27.640 --> 03:21:28.470
Theo Gordon: Thank you.

1131
03:21:30.990 --> 03:21:32.580
Boardroom: Thank you, Theo.

1132
03:21:33.020 --> 03:21:35.149
Boardroom: Next is David Scheer.

1133

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03:21:38.490 --> 03:21:57.000
David Shere: Hi, I support this pause tonight. I feel the same way about the Mills Act that I felt about the recent Landmarks referral. I appreciate that some people really care about architecture and really like the way that neighborhoods look today.

1134
03:21:57.110 --> 03:22:06.510
David Shere: We should not be spending tens or hundreds of thousands of dollars to finance what is truly an incredibly niche hobby.

1135
03:22:06.730 --> 03:22:22.929
David Shere: That some people have, which is fine. As far as cost is concerned, I don't know if the numbers that we're talking about include staff time for managing the Mills Act, following up on all these contracts, staffing the Landmarks Preservation Commission.

1136
03:22:22.930 --> 03:22:27.340
David Shere: So, you know, it'sâ€¦ there's, I would say, uncertainties on both sides.

1137
03:22:27.340 --> 03:22:44.170
David Shere: If this kind of preservation and landmarking and these Mills Act subsidies are important, we need to do it in a systematic way. The Landmarks Preservation Ordinance was passed, what, 40 years ago, 50 years ago? I don't understand how we're still discovering new landmarks, that

1138
03:22:44.170 --> 03:23:01.129
David Shere: there's something that's a landmark and historical today that was not so 10 years ago or 20 years ago. It seems like there's a real problem in this process if it's been 40 or 50 years, and we haveâ€¦ there are not that many buildings in Berkeley.

1139
03:23:01.180 --> 03:23:02.450
David Shere: Soâ€¦

1140
03:23:02.470 --> 03:23:10.739
David Shere: Yeah, I think that we need to hit the pause on all of this. We need to, I think, take, like, a first principles approach.

1141
03:23:10.740 --> 03:23:25.100
David Shere: what is the point ofâ€¦ of these policies? What is it that we want to accomplish? How much money are we willing to spend? What is the criteria for success or for failure? And what is the definition of done? Because it seemsâ€¦

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1142
03:23:25.140 --> 03:23:27.649
David Shere: Like, there is noâ€¦ it seems like thatâ€¦

1143
03:23:28.040 --> 03:23:32.540
David Shere: we don't have answers to any of these questions. And it seems like kind of the basics of

1144
03:23:32.730 --> 03:23:38.370
David Shere: Policy when we're talking about the kinds of dollars that we're talking about, soâ€¦ Thank you.

1145
03:23:38.650 --> 03:23:40.509
David Shere: Have a great night. Thank you.

1146
03:23:41.260 --> 03:23:46.500
Boardroom: Okay, two more speakers. We have, first, Sarah Bell.

1147
03:23:50.580 --> 03:23:53.730
Sarah Bell (she/her): Hi, thank you so much, Council, for recognizing me.

1148
03:23:53.830 --> 03:24:04.990
Sarah Bell (she/her): I'll be brief. I'm here to speak in favor of passing the Mills Act reform tonight, and pausing, any future applications. I think the data speaks for itself.

1149
03:24:05.020 --> 03:24:16.979
Sarah Bell (she/her): Many properties, that are receiving this benefit aren't even, having work done on them, aren't even, being actively preserved, and indeed, many are, derelict.

1150
03:24:17.250 --> 03:24:21.759
Sarah Bell (she/her): Even, however, if this system weren't so clearly being abused.

1151
03:24:21.810 --> 03:24:34.460
Sarah Bell (she/her): I think there are still many more important ways to spend our city's, right now, very constrained dollars. We could be spending that money on schools, affordable housing, street safety.

1152
03:24:34.460 --> 03:24:44.940

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Sarah Bell (she/her): Anyway, yeah, please, please pass this item, and thank you so much for doing the work to, reform our MILS Act implementation. Thank you.

1153
03:24:46.030 --> 03:24:47.830
Boardroom: Okay, thank you.

1154
03:24:47.990 --> 03:24:53.430
Boardroom: Thank you. Last hand raise is, Jeremy Butler.

1155
03:24:54.210 --> 03:24:55.120
Boardroom: Pinkham.

1156
03:24:58.540 --> 03:25:00.320
Jeremy Butler-Pinkham: Yes. Can everybody hear me?

1157
03:25:01.050 --> 03:25:03.670
Boardroom: It's a little bit faint, if you could speak up.

1158
03:25:03.900 --> 03:25:04.460
Jeremy Butler-Pinkham: Sure.

1159
03:25:05.940 --> 03:25:08.019
Jeremy Butler-Pinkham: I just wanted to, toâ€¦

1160
03:25:08.170 --> 03:25:16.319
Jeremy Butler-Pinkham: Kind of echo what some of the other callers mentioned about the data being presented, really lacking,

1161
03:25:17.370 --> 03:25:19.850
Jeremy Butler-Pinkham: And sort of painting the whole picture.

1162
03:25:21.520 --> 03:25:33.929
Jeremy Butler-Pinkham: I mean, I thinkâ€¦ I think somebody pointed out $600,000 sort of gross overestimation of what this isâ€¦ is costing the city. Obviously, there is staff time associated with these NLZAC contracts that needs to be factored in.

1163
03:25:34.270 --> 03:25:41.169
Jeremy Butler-Pinkham: But I think until we really have all the information and all the implications of what this

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1164
03:25:41.660 --> 03:25:45.390
Jeremy Butler-Pinkham: program really does cost the city, how can we be making an educated vote?

1165
03:25:45.620 --> 03:25:52.160
Jeremy Butler-Pinkham: On something that, is, at this point, really just sort of speculated by one one memorable.

1166
03:25:52.430 --> 03:25:58.800
Jeremy Butler-Pinkham: of the public. Let's see, I had another point. I think thatâ€¦

1167
03:25:59.840 --> 03:26:04.410
Jeremy Butler-Pinkham: You know, we're taking away, sort of, the one,

1168
03:26:04.940 --> 03:26:09.970
Jeremy Butler-Pinkham: The one incentive for homeowners toâ€¦ to really preserve properties and to.

1169
03:26:09.970 --> 03:26:10.510
Boardroom: wrong.

1170
03:26:10.510 --> 03:26:21.640
Jeremy Butler-Pinkham: self-certify their properties asâ€¦ as historic, through a pretty onerous process with the LPC and City Council that has to ultimately approve those applications.

1171
03:26:21.830 --> 03:26:24.759
Jeremy Butler-Pinkham: I also want to point out that the City of Berkeley.

1172
03:26:24.760 --> 03:26:25.650
Boardroom: Unlikeâ€¦

1173
03:26:25.670 --> 03:26:33.409
Jeremy Butler-Pinkham: many other four jurisdictions didn't do their own historic assessment and survey of their properties, and so

1174
03:26:33.590 --> 03:26:40.600

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Jeremy Butler-Pinkham: At this point, it'sâ€¦ the onus is now on the individual homeowners toâ€¦ This sort of,

1175
03:26:41.020 --> 03:26:43.290
Jeremy Butler-Pinkham: You know, take the step forward and,

1176
03:26:43.530 --> 03:26:50.330
Jeremy Butler-Pinkham: And, apply for these landmarks, andâ€¦ There isn't a sort ofâ€¦

1177
03:26:50.620 --> 03:26:54.239
Jeremy Butler-Pinkham: A ubiquitous survey that's been done of the city properties, soâ€¦

1178
03:26:56.420 --> 03:26:59.440
Jeremy Butler-Pinkham: It just seems like, we sort ofâ€¦

1179
03:26:59.550 --> 03:27:02.449
Jeremy Butler-Pinkham: missed that boat, Cisco Oprah, and othersâ€¦

1180
03:27:02.450 --> 03:27:05.539
Boardroom: Thank you. Thanks for your comment. Your time is up.

1181
03:27:05.710 --> 03:27:15.680
Boardroom: That's all. That's all the public comments. Okay, very good, thank you very much. Are there comments from my Council colleagues, starting with Councilmember Lunopara?

1182
03:27:16.040 --> 03:27:32.749
Boardroom: Thank you. I want to thankâ€¦ first, I want to thank Councilmember Humbert for leading the effort on this. Our city is facing a structural deficit, and we are inevitably going to have to cut programming, and none of that is without sacrifice.

1183
03:27:32.930 --> 03:27:44.799
Boardroom: Ultimately, I don't think that the city is able to retain these programs, programs such as this one, while we face our structural deficit. And weighing this program with so many of the other,

1184
03:27:44.850 --> 03:27:54.289

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Boardroom: programs that areâ€¦ and staff that our city has to maintain, I don't think it's worth to continue prioritizing this. So, I want to thank Councilmember Humbert for allowing me to co-sponsor this as well.

1185
03:27:54.510 --> 03:28:04.210
Boardroom: I also want to thank my LPC Commissioner for being such a strong thought partner in this process, and for advocating inâ€¦

1186
03:28:04.210 --> 03:28:15.360
Boardroom: Advocating for the critical importance of equitable and thoughtful landmark preservation, and I'm grateful to the Commission broadly. I want to kind of defend them a little bit and their work as well.

1187
03:28:15.400 --> 03:28:33.440
Boardroom: Even if this wasn't true before, the modern-day LPC is made up of a diverse group of residents with differing perspectives on landmarks and how to approach historic preservation and development, and I want to caution against painting the Commission in a negative light when they have been looking into how to amend the Mills Act in good faith.

1188
03:28:33.590 --> 03:28:36.630
Boardroom: And we did kind of leapfrog,

1189
03:28:37.230 --> 03:28:42.650
Boardroom: leapfrog them a little bit, but, I still appreciate their efforts, and I think thatâ€¦

1190
03:28:43.250 --> 03:28:46.609
Boardroom: they're working towards the same issue that we are. Thanks.

1191
03:28:48.160 --> 03:28:51.410
Boardroom: Thank you, Councilmemberâ€¦ oh, thank you, Councilmember Tregop?

1192
03:28:52.710 --> 03:29:03.490
Boardroom: Thank you. I have some questions, and then brief comments. My questions are, I actually, well, Iâ€¦

1193
03:29:03.490 --> 03:29:16.659
Boardroom: I don't know if in my lifetime I will ever own a Mills Act-eligible property, so I just don't know what I don't know. So, how does this work in practice? What is the length of a contract?

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1194
03:29:16.660 --> 03:29:27.550
Boardroom: Andâ€¦ What would be the administrative procedure, around,

1195
03:29:27.680 --> 03:29:37.539
Boardroom: Tracking or monitoring if, whether it's through a local jurisdiction or through a different agency.

1196
03:29:38.730 --> 03:29:44.920
Boardroom: Planning Director Klein can answer some of those, more nuanced questions. I mean, the length of the contract is 10 years.

1197
03:29:45.030 --> 03:29:54.140
Boardroom: And staff in the planning department are the ones that administer the program. So if you have more specific questions, I think Director Klein can probably answer those more easily.

1198
03:29:55.170 --> 03:29:56.110
Boardroom: Okay.

1199
03:29:56.420 --> 03:30:00.230
Boardroom: So, after 10 years, what happens?

1200
03:30:01.510 --> 03:30:05.190
Boardroom: So the initial term of the contract is 10 years?

1201
03:30:05.730 --> 03:30:08.669
Boardroom: Each year, starting the first anniversary.

1202
03:30:09.190 --> 03:30:11.080
Boardroom: Of that 10-year period.

1203
03:30:11.340 --> 03:30:13.779
Boardroom: The term is extended by 1 year.

1204
03:30:14.160 --> 03:30:17.089
Boardroom: Unless the city sends a notice of non-renewal.

1205
03:30:17.290 --> 03:30:22.060
Boardroom: So there's always a 10-year period term remaining.

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1206
03:30:23.080 --> 03:30:28.540
Boardroom: Soâ€¦ and as soon as the city sends a non-renewal notice.

1207
03:30:28.980 --> 03:30:36.309
Boardroom: then the 10-year term does not grow from that point on. And at that point, the value of the Mills Act

1208
03:30:36.450 --> 03:30:53.219
Boardroom: benefit gradually decreases, so that it's not turned off immediately. That's howâ€¦ this isâ€¦ and by the way, this is all governed by state law, and including both the government code and the revenue and taxation code.

1209
03:30:53.480 --> 03:31:09.470
Boardroom: dictate how this program works. So once we send the notice of non-renewal to the contract holders, they will still enjoy, in that first year after non-renewal, about 90% of the benefit. And then the second year, about 80% of the benefit.

1210
03:31:09.790 --> 03:31:13.659
Boardroom: And then, after 10 years, they willâ€¦

1211
03:31:13.840 --> 03:31:22.159
Boardroom: pay what they would have paid under, a normal assessment, without aâ€¦ as if they were not a Milzac contract holder.

1212
03:31:22.730 --> 03:31:31.519
Boardroom: I really appreciate that explanation, Jordan. And I have one more question, and I think it might be for Paul, and it's justâ€¦

1213
03:31:31.720 --> 03:31:33.310
Boardroom: It,

1214
03:31:34.470 --> 03:31:46.899
Boardroom: notwithstanding whatever action we may or may not take tonight, what, if anything, would preclude the LPC from forwarding a recommendation to the Council?

1215
03:31:49.810 --> 03:32:02.859

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Boardroom: they would be free to forward a recommendation to Council if they so chose. Okay, thank you. So, Iâ€¦ I will just say, I appreciate Councilmember Humbert's,

1216
03:32:03.170 --> 03:32:14.529
Boardroom: change in supplemental 2, because, the three pending applications, that did give me pause, and that is,

1217
03:32:14.530 --> 03:32:24.709
Boardroom: no longer in the item, and I think that is, the appropriate way to, deal with this matter.

1218
03:32:24.710 --> 03:32:31.989
Boardroom: Given the, budget, situation that we are in,

1219
03:32:32.630 --> 03:32:42.490
Boardroom: I will be supporting this item as amended, and I would just like to associate myself with Councilmember Lena Paris.

1220
03:32:42.540 --> 03:33:01.130
Boardroom: comments, and appreciate the good work that the Landmarks Preservation Commission does. These are individuals with expertise in historic preservation, and we do rely upon their expertise,

1221
03:33:01.130 --> 03:33:05.829
Boardroom: Quite often. And so, to the Commission,

1222
03:33:05.830 --> 03:33:22.510
Boardroom: if there are other, aspects of this that you feel the Council should look at, I certainly, would be very interested in hearing, what the Commission has to recommend,

1223
03:33:22.510 --> 03:33:26.670
Boardroom: But yeah, I wanted to just thank,

1224
03:33:27.020 --> 03:33:45.059
Boardroom: the author for, you know, this item did not start in a way that, I probably could support, but, so I, I also appreciate, the work of building consensus, on, on this item. Thank you.

1225
03:33:45.760 --> 03:34:01.990

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Boardroom: Thank you. Councilmember Humbert? Yeah, I appreciate folks have raised issues about how the individual contracts that have been approved expire, and we have aâ€¦ one of our whereas clauses, or rather one of our

1226
03:34:02.040 --> 03:34:05.979
Boardroom: Be it for the resolved clauses, reads as follows.

1227
03:34:06.410 --> 03:34:16.359
Boardroom: Be it further resolved that any existing Mills Act contracts and any Mills Act contracts approved for properties applying before the cutoff of November 19th.

1228
03:34:16.360 --> 03:34:26.700
Boardroom: 25 shall be allowed to expire at the end of their contract terms, and shall not be considered for renewal unless and until the City Council takes further action

1229
03:34:26.700 --> 03:34:38.660
Boardroom: to reauthorize the use of the agreements for historic property preservation, as specified in California Government Code Sections 50280 at SAC for qualified historic properties.

1230
03:34:38.660 --> 03:34:49.570
Boardroom: And I'm concerned that maybe we need to add, an additional clause in there, or, some additional text that would, instruct

1231
03:34:49.570 --> 03:35:00.150
Boardroom: The city manager to send out, termination notices so that, that 10-year period expires for each contract.

1232
03:35:00.610 --> 03:35:18.369
Boardroom: I would say, Councilmember, that that would make it abundantly clear. Our reading of this as it is, what we would do if you passed it as is, is that any contract that had reached that 10-year mark that Director Klein described would be getting a letter of non-renewal from us.

1233
03:35:18.570 --> 03:35:31.480
Boardroom: And we would just start thatâ€¦ we'd stop their 10-year clock, and they'd start that process. So that is how we're interpreting that. Okay. However, if you want to add that clarification, that makes it completely clear, soâ€¦ but I think it's pretty clear as it is.

1234

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03:35:31.780 --> 03:35:39.979
Boardroom: Okay, I think I would like to add that clarification. Does somebody have some suggested language? What would we include?

1235
03:35:41.550 --> 03:35:55.989
Boardroom: maybe what I suggested, thatâ€¦ that with respect to each one of the contracts, the city manager, shall send out, termination notices. She'll send out a letter of non-renewal, or letter of non-renewal, yeah.

1236
03:35:57.280 --> 03:36:17.679
Boardroom: Okay, thank you very much, I appreciate you clarifying that. Councilmember, yeah, Councilmember Kessarwani. Thank you very much, Madam Mayor. Thank you, Councilmember Humbert, for authoring this item. I just wanted to clarify, so the letter of non-renewal goes to everybody who is currently, receiving this benefit.

1237
03:36:17.680 --> 03:36:23.500
Boardroom: It would go to everybody who has a MILZAC contract that has hit the 10-year mark, so theyâ€¦

1238
03:36:23.610 --> 03:36:41.119
Boardroom: Well, I mean, I guessâ€¦ It seems like it needs to go to everybody. You're right, it could go to everyone, and then that would stop their clock. So I wanted to clarify that, becauseâ€¦ That's a good point. The way that Director Klein is describing it, it needsâ€¦ everybody needs to be notified, and thenâ€¦ because if you've been experiencing this benefit for one year.

1239
03:36:41.120 --> 03:36:52.839
Boardroom: You need to start being ramped down over a 10-year period. So, okay, so Director Klein, is that correct? Yeah, that's right, that is right. Okay. Okay, so, soâ€¦

1240
03:36:53.220 --> 03:37:10.889
Boardroom: I, Councilmember Humber, can you just say that again, what your proposed amendment is, then? Can I make a recommendation? Could youâ€¦ what if the City Council would, direct the, City Manager to initiate non-renewal proceedings?

1241
03:37:11.220 --> 03:37:26.669
Boardroom: of all Mills Act contracts at the earliest opportunity. Yeah, and I think that's what my languageâ€¦ Okay, yeah, as long as it says all, I think that was the clarification that I wanted. Okay, thank you very much. I'm sorry, did you get that, Mr. City Clerk? I just want to make sure.

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1242
03:37:26.670 --> 03:37:42.720
Boardroom: Thank you. Okay, very good. Okay, you got it. Alright, thank you. Thanks, everyone. Councilmember Blackaby. Thanks, Madam Mayor. I just want to thank Councilmember Humber Humbert and colleagues for authoring this item, and also just want to make a distinction that, again, I think we'reâ€¦ most of us are saying the same thing, that

1243
03:37:43.860 --> 03:38:01.949
Boardroom: the Mills Act piece itself is separate, very separate, distinct from the fact that we value preserving historical landmarks and sites of historic value, and we want to continue to support that. It's important to the historical fabric of the city, and as a matter of fact, I think a number of us are, you know.

1244
03:38:01.950 --> 03:38:07.570
Boardroom: Having some conversations about whether or not we want to launch a historic resource survey effort to proactively

1245
03:38:07.570 --> 03:38:28.899
Boardroom: start that process. That's important to me, and so my support of the Mills Act item is separate, you know, completely separate from the point that I do think that landmarking is important where appropriate, and that we should be preserving those resources where appropriate. It's just aâ€¦ it's an economic question and a budget question in terms of how we finance it. So, I just wanted to thank, Councilmember Humbert for authoring this.

1246
03:38:30.910 --> 03:38:33.700
Boardroom: Thank you. Other comments from my Council colleagues?

1247
03:38:35.000 --> 03:38:57.679
Boardroom: Okay, I just want to add a couple of things. Just importâ€¦ just to say that this action is important for the health of our budget. We had some really challenging conversations in some of our previous meetings, where I basically said we have to cut everything that isn't absolutely necessary, and that, I'm really concerned about what our budget situation's gonna look like in the next year, and

1248
03:38:57.680 --> 03:39:09.779
Boardroom: One of the things I was really proud about in our last budget was that we were ableâ€¦ we did freeze positions, but we didn't have to have massive layoffs, and I am really concerned about that. So,

1249

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03:39:09.780 --> 03:39:21.750
Boardroom: I do just want to say that that's why I'm supporting this item, but I also want to appreciate the change in SEP2 that allowed for the two applicants in the two applications to progress

1250
03:39:21.750 --> 03:39:39.869
Boardroom: and, and close the door for new applications, I think that that was valuable clarification, and I know we had some of the applicants come and speak with us after our last, agenda and Rules Committee meeting, so I appreciated hearing from you all, and thank you for being here this evening.

1251
03:39:39.870 --> 03:39:43.960
Boardroom: And I think with thatâ€¦ Is there a motion?

1252
03:39:45.270 --> 03:39:49.420
Boardroom: Ayes so move. Second. Okay.

1253
03:39:49.530 --> 03:39:58.810
Boardroom: Let's take the roll. Okay, yeah, on the motion toâ€¦ Adopt the resolution for theâ€¦ Mills,

1254
03:39:59.270 --> 03:40:05.970
Boardroom: pausing the Mills Act agreements with the, amendment added regarding the non-renewal.

1255
03:40:06.120 --> 03:40:13.950
Boardroom: Proceedings, and, with the changes in supplemental communications packet number 2,

1256
03:40:14.100 --> 03:40:24.770
Boardroom: On the motion, Councilmember Kessnerwani? Yes. Taplin? Yes. Bartlett? Yes. Dragum? Aye. O'Keefe? Yes. Blackaby? Yes.

1257
03:40:24.770 --> 03:40:38.260
Boardroom: Luna Parra? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Very good. Thank you all very much, and now I think we need to take a 10-minute break, and we'll be back for the final item. Thank you all.

1258
03:41:07.940 --> 03:41:18.360

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Boardroom: Hi! Okay, we're back. Alright, thank you all so much, appreciate your patience. We're moving on to item 31, Unmanned aerial systems and drones as First Responders.

1259
03:41:18.360 --> 03:41:32.619
Boardroom: And, I think that we're actually going to pass it over to Councilmember Taplin to introduce the item. Yes, thank you very much, Madam Mayor, and we have Chief Lewis here, and Captain Okies, and Chief Mays online.

1260
03:41:33.390 --> 03:41:43.310
Boardroom: I would like to thank my co-sponsors, Vice Mayor Humbert, Councilmembers Councillor Wani and Blackaby, the Public Safety Policy Committee, the Chiefs, and Captain Oakies.

1261
03:41:43.450 --> 03:41:58.449
Boardroom: A number of public agencies are utilizing drones to support disaster and safety operations, including barricade subjects, search and rescue, and vehicle pursuits. The deployment of such tools amplifies the efficacy of the first response while minimizing risk and exposure to hazards.

1262
03:41:58.670 --> 03:42:10.720
Boardroom: This item recommends that the City Council refer to the City Manager the initiation of the process outlined in the City of Berkeley's Surveillance Technology Ordinance to inquire and use UAS systems and drones as first responders.

1263
03:42:10.720 --> 03:42:19.379
Boardroom: Consistent with all auditing and reporting requirements, and all transparency, data, and privacy protections required for every use, every policy and acquisition report.

1264
03:42:19.510 --> 03:42:23.599
Boardroom: under every use policy and obligation report under the SCO.

1265
03:42:23.720 --> 03:42:39.929
Boardroom: By developing these policies and utilizing drones for responders, the city will mitigate the service impacts of our police staffing shortage, supplement our recruitment and retention efforts, and bolster our disaster and safety response by giving responders the tools to survey the locations of critical incidents before deploying personnel.

1266
03:42:40.180 --> 03:42:53.790

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Boardroom: The Public Safety Committee did recommend a positive adoption, and I'll restate the item's recommendation to refer to the City Manager the initiation of the process outlined by BMC 299, the Surveillance Technology Ordinance for the Berkeley Police Department.

1267
03:42:53.830 --> 03:43:07.049
Boardroom: to acquire and use unmanned aerial systems, including drones as first responders, consistent with all auditing, transparency, data, and privacy protections required for all use policies, and acquisition reports under the SCO.

1268
03:43:07.230 --> 03:43:24.039
Boardroom: And in closing, I'll state that it's important to consider what we heard earlier this evening about the need to triage calls for service that don't require certain kinds of response. Modern tools are valuable for their ability to gather intel on-site to ensure that we deploy appropriate response levels before mobilizing personnel resources. Thank you.

1269
03:43:24.920 --> 03:43:31.999
Boardroom: Thank you very much, and did you want to go ahead, Chief? Yeah, I was going to, but it sounds like Councilmember Taplin covered it pretty thoroughly.

1270
03:43:32.320 --> 03:43:47.540
Boardroom: So good, good evening. I joke, but really, we want to go through and share a lot of the information that we've, identified during our initial research, and talk about some of that. Obviously, we're here today to, to,

1271
03:43:47.540 --> 03:44:11.740
Boardroom: look for Council's direction on whether or not to enter the STO process, which is a whole process in and of itself to, write use policies and bring forth acquisition reports to cover, the use of technologies and what technologies we would bring. Tonight we will provide a foundation to explain what these programs are, how they work, and how they could benefit Berkeley. And as, we've shared previously with this Council, the City Gate Assessment Report let us know that

1272
03:44:11.740 --> 03:44:23.269
Boardroom: the staffing shortages that we were experiencing were affecting some of our service levels. They did recommend an additional 15 patrol officers to meet our current service level demands.

1273
03:44:23.590 --> 03:44:32.850

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Boardroom: Along with the rest of the country, our department is facing severe staffing shortages. We are currently operating at a 20% vacancy rate for our sworn personnel.

1274
03:44:33.590 --> 03:44:48.200
Boardroom: Regardless of these constraints on our resources, that hasn't changed the community's expectation and level of service that they deserve to be both timely, transparent, and accountable across a broad range of calls that we respond to.

1275
03:44:48.520 --> 03:44:53.550
Boardroom: We do know that drone technologies offer a way to improve both efficiency.

1276
03:44:53.670 --> 03:44:58.779
Boardroom: And safety, without relying solely on having to have additional police personnel.

1277
03:44:58.980 --> 03:45:13.139
Boardroom: Across the country, we have seen that both police, fire, and emergency service agencies are using these tools to improve response times, to improve outcomes, reduce risk to both the community and officers, and support more effective and equitable service delivery.

1278
03:45:13.140 --> 03:45:23.709
Boardroom: So I'm joined tonight by Captain Okies, who's going to speak more about the two kinds of drone programs that are identified in Councilmember Taplin's item, and give you some more background on how those things are used.

1279
03:45:25.710 --> 03:45:41.010
Boardroom: Thank you, Chief. So, overview of a drone program. There are two distinct components, under consideration. Drones as first responders, or DFR, and, traditional unmanned, aerial systems, or UAS.

1280
03:45:41.120 --> 03:45:56.119
Boardroom: Drones as First Responders are programs where departments position drones in fixed sites, usually on rooftops, where they can launch autonomously in response to a call for service or a 911 call when those calls come in.

1281
03:45:56.200 --> 03:46:07.370

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Boardroom: They typically arrive within 2-3 minutes of a call for service, often before patrol officers arrive on scene. Then they livestream video to officers and dispatch.

1282
03:46:07.710 --> 03:46:22.609
Boardroom: responding officers and dispatch. This early information helps to determine the safest and most appropriate course of action, for officers to take as they're responding, including whether or not an in-person response is needed at all.

1283
03:46:23.370 --> 03:46:29.779
Boardroom: Unmanned aerial systems are drones that are operated directly from trained officers in the field.

1284
03:46:30.020 --> 03:46:43.170
Boardroom: They are used for a wide range of incidents, including search and rescue, special response team calls, crime scene documentation, traffic collision investigations, and support disasters and hazard responses.

1285
03:46:43.780 --> 03:46:53.889
Boardroom: UAS platforms can access areas confined, confined areas or dangerous spaces, detect heat signatures, identify chemical hazards.

1286
03:46:54.150 --> 03:47:02.040
Boardroom: Use onboard speakers to communicate with subjects, and deliver small items, like cell phones and medical supplies.

1287
03:47:02.860 --> 03:47:07.830
Boardroom: There are a number of benefits, that drone programs can bring to our community.

1288
03:47:08.200 --> 03:47:21.930
Boardroom: First, a faster and more informed response. Drones can reach locations within minutes, as I referenced earlier. Provide real-time video to help officers evaluate their situation before arrival. This is critical.

1289
03:47:21.930 --> 03:47:30.160
Boardroom: In that the more information officers have before they get to a scene, the better they are able to make correct decisions by the time they arrive there.

1290

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03:47:30.550 --> 03:47:40.149
Boardroom: This improves resource allocation as well, and enhances our ability to respond to things like ALPR hits, with timely and updated information.

1291
03:47:41.300 --> 03:47:54.400
Boardroom: Another benefit is enhanced de-escalation and safety for our community. Early visual information helps reduce the risk by giving officers a clearer understanding of what it is that they're walking into, whether somebody is armed.

1292
03:47:54.400 --> 03:48:13.200
Boardroom: whether somebody is in a mental health crisis, and whether a situation can be resolved without any enforcement action. Another key component, as we've talked about before with de-escalation, is distance, which allows officers time and the ability to slow a situation down.

1293
03:48:13.200 --> 03:48:19.559
Boardroom: This technology gives us that distance to allow us to slow situations down, and

1294
03:48:19.610 --> 03:48:21.599
Boardroom: Frequently results in better outcomes.

1295
03:48:23.180 --> 03:48:32.560
Boardroom: As the Chief talked about, another benefit is the better use of our limited resources. DFRs, or Drones of First Responders, can clear calls without requiring an in-person response at all.

1296
03:48:32.810 --> 03:48:37.760
Boardroom: preserving patrol capacity, for instance, that truly need them.

1297
03:48:38.510 --> 03:48:47.140
Boardroom: Some agencies have reported in the area of 20% of calls for service being cleared by a drone as a first responder without requiring a police response.

1298
03:48:49.050 --> 03:49:05.180
Boardroom: Finally, another benefit is support for emergencies and investigations. Drones have equipment such as thermal imaging that supports search and rescue efforts. Aerial perspectives can assist with traffic collisions and crime scene assessments.

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1299
03:49:05.180 --> 03:49:11.020
Boardroom: It can reduce the amount of time that roads are closed, and allowing for more precise documentation.

1300
03:49:11.460 --> 03:49:24.399
Boardroom: Some specific use scenarios of this technology include area searches for missing persons, tactical situations, including high-risk search warrants, hostage and barricaded subject responses, and active shooter response.

1301
03:49:24.730 --> 03:49:32.899
Boardroom: Vehicle pursuits, when the, drones have the capâ€¦ are within the capability of pursuing and evaluating a vehicle.

1302
03:49:33.190 --> 03:49:46.119
Boardroom: And determining where it's going, and directing, other units to respond to it. And finally, counter, counter drone operations as well. We've seen as recently as last week.

1303
03:49:46.130 --> 03:50:03.900
Boardroom: At the Turning Point event on the UC campus, individual actors actually bringing drones into our community and using them, without, you know, to oversee events. So having that counter, drone capability is an important thing to add as well.

1304
03:50:05.120 --> 03:50:22.469
Boardroom: I've talked about some general use, uses, but I think it's valuable to actually bring that into a specific case study. So, helpful comparison for us is the City of San Mateo. San Mateo, it's roughly the same size as the City of Berkeley, slightly larger at 12 square miles.

1305
03:50:22.470 --> 03:50:27.860
Boardroom: They launched a DFR program, recently, and within the first 3 months.

1306
03:50:27.970 --> 03:50:32.430
Boardroom: Their dronist first responder responded to roughly 600 calls for service.

1307
03:50:32.660 --> 03:50:43.239
Boardroom: More than 70 of those calls were resolved without requiring a single officer responding to that location. Response times dropped from 6 to 10 minutes, down to 2 to 3 minutes.

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1308
03:50:43.360 --> 03:50:47.159
Boardroom: And their system is now flying 15 to 20 missions per day.

1309
03:50:47.720 --> 03:50:58.539
Boardroom: San Mateo's a good example, also because they face similar staffing and growth challenges and pressures that Berkeley's currently facing, making their experience particularly relevant to us.

1310
03:51:00.610 --> 03:51:19.909
Boardroom: We're seeing this also, this technology being used, rapidly becoming the standard in the Bay Area and in national policing. Locally, agencies, including the Alameda County Sheriff's Office, Richmond Police Department, San Francisco Police Department, Fremont, Hayward, Oakland, and San Leandro already operate either DFRs or

1311
03:51:20.050 --> 03:51:23.419
Boardroom: deployed drones, from their vehicles.

1312
03:51:23.770 --> 03:51:35.739
Boardroom: Several other agencies are actively exploring this technology as well. Nationally, cities including Santa Monica, Portland, Oregon, New York City, and Los Angeles are also leveraging this technology.

1313
03:51:35.930 --> 03:51:39.320
Boardroom: Many of these agencies report improved response times.

1314
03:51:39.420 --> 03:51:50.009
Boardroom: Reduce risks to officers, better outcomes for critical incidents, and a strong community support when programs are implemented with transparency and clear policy oversight.

1315
03:51:50.750 --> 03:52:05.149
Boardroom: I've talked through some of the benefits that this program brings to the police side of public safety, and I'm now going to hand this off to Deputy Chief May, who will discuss some of the benefits this technology provides to the Berkeley Fireâ€¦ can provide to the Berkeley Fire Department. Chief?

1316
03:52:05.990 --> 03:52:12.329
Keith May: Hi, good evening, Council. I'll start with some of the more, maybe the more exciting, the more well-known.

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1317
03:52:12.550 --> 03:52:23.360
Keith May: uses of drones that are being used across California and also the United States. The first one is the FLIR, which is Forward Looking Infrared Camera

1318
03:52:23.610 --> 03:52:27.930
Keith May: Ability, which is the ability to detect heat sources.

1319
03:52:28.080 --> 03:52:38.080
Keith May: So, this is very useful for fire departments across the United States when we're looking at a burning structure and trying to locate where trapped victims might be.

1320
03:52:38.580 --> 03:52:46.179
Keith May: Or downed firefighters, and even hot spots where we cannot see from the ground orâ€¦

1321
03:52:46.540 --> 03:52:52.750
Keith May: from our position at the Unified Command Post. We use this technology through aâ€¦

1322
03:52:53.650 --> 03:53:02.469
Keith May: mutual aid partner in November of 2020 with the fire alarm fire that we had on University.

1323
03:53:03.630 --> 03:53:14.460
Keith May: The agency was able to come in, deploy several drones, and because we couldn't enter that multi-story structure because it was still in construction.

1324
03:53:14.530 --> 03:53:25.370
Keith May: The drones were able to pick up where those heat senses were, where the spot fires were occurring, and help us direct streams into that structure to help put out the fire.

1325
03:53:25.670 --> 03:53:31.399
Keith May: Another useful tool that we see, a possibility is situational awareness.

1326
03:53:33.360 --> 03:53:39.630
Keith May: Drones can get to a scene a lot faster than our apparatus, because they do, obviously, line of sight.

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1327
03:53:39.730 --> 03:53:45.530
Keith May: This is especially useful for the wildland urban interface areas along the eastern,

1328
03:53:45.770 --> 03:53:47.290
Keith May: Limits of the city.

1329
03:53:47.570 --> 03:53:55.550
Keith May: Also, once theyâ€¦ the drone is able to get to a scene or an incident, it's useful.

1330
03:53:56.310 --> 03:54:06.590
Keith May: Because of the live intel, that we can either increase a response, add more units, add more apparatus to an incident, or downgrade a response, and limit our liability.

1331
03:54:06.730 --> 03:54:11.819
Keith May: Base that'sâ€¦ that's based on the live intel that we see through the video feed.

1332
03:54:12.160 --> 03:54:27.139
Keith May: Also, during large-scale evacuations, we can quickly confirm what intersections are heavily congested, and when resources are available, we can send personnel out to direct traffic and help the flow of traffic through those intersections.

1333
03:54:27.600 --> 03:54:34.380
Keith May: And then there's the search and rescue operations, especially because we're right close to the bay. Again.

1334
03:54:34.520 --> 03:54:48.320
Keith May: the drones can pick up that heat signature of victims that are in the water somewhere. Normally, we would have to send out either our boat or jet skis and do grid searching.

1335
03:54:48.610 --> 03:54:50.829
Keith May: The drone is able to

1336
03:54:51.130 --> 03:54:59.919

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Keith May: Do a grid search, but on a much wider pattern, and able to pick up heat signatures, and direct our personnel directly to where that person might be.

1337
03:55:00.460 --> 03:55:12.450
Keith May: Earthquakes. Obviously, you know Berkeley. These drones can help support our, post-earthquake, responses.

1338
03:55:12.520 --> 03:55:24.470
Keith May: Right now, typically, what would happen during a large earthquake is our apparatus would go out and do what we call window surveys, and that's where they have to drive every street, look at every structure,

1339
03:55:24.650 --> 03:55:40.300
Keith May: talking to citizens, and just listening to where the problems are, and then reporting that back to the command post. Obviously, a drone can do that a lot quicker, with live footage, and therefore our unified command post or emergency operations center can send resources directly to where it's needed most.

1340
03:55:40.650 --> 03:55:46.940
Keith May: And probably theâ€¦ one of my favorite, which is probably the last on the list, isâ€¦

1341
03:55:47.910 --> 03:55:51.500
Keith May: Cost recovery for declared disasters.

1342
03:55:53.050 --> 03:56:00.629
Keith May: after a declared disaster, we're able to, with the drone capability, I should say before a declared disaster, map a city.

1343
03:56:00.920 --> 03:56:03.260
Keith May: Topography to find out where

1344
03:56:03.480 --> 03:56:10.249
Keith May: And how the city looks before a disaster hits, whether that's a wildfire, tsunami, or even a mudslide.

1345
03:56:10.360 --> 03:56:17.149
Keith May: Then, after a disaster, that drone can get back up and map the city again, and provide

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1346
03:56:17.700 --> 03:56:21.980
Keith May: Proof to our government agencies that are going to be providing aid.

1347
03:56:21.980 --> 03:56:23.219
Boardroom: and recovery.

1348
03:56:23.220 --> 03:56:30.859
Keith May: And, verify that the city has had damage. So, cost recovery becomes a lot quicker and more efficient.

1349
03:56:31.060 --> 03:56:40.119
Keith May: So, those are some of the things that I think the fire department would be enhanced by having a drone operation, or the UAS. And with that, I'll turn it back over to Chief Lewis.

1350
03:56:41.600 --> 03:56:42.450
Boardroom: Thanks, Chief.

1351
03:56:42.450 --> 03:57:05.199
Boardroom: You know, it always strikes me when we start to really talk about the different ways we can use these technologies, that there'll be so many opportunities for both police, fire, and some of our other city departments to use this technology to increase efficiencies, and really recognize, the value in these tools. And so, as we work to, answer questions that the Council has, that the community has on costs and use and how it impacts us.

1352
03:57:05.200 --> 03:57:18.450
Boardroom: You know, we'll be looking to, build use reports, use policies that allow us the space to, explore technology and grow into it, so we can make best use of, of the technology once weâ€¦ if we acquire it.

1353
03:57:18.450 --> 03:57:31.609
Boardroom: I can share, though, that very important pieces of a use policy will always include transparency and accountability. It will be instrumental to us to ensure that those pieces exist in our use policies and are very clearly articulated.

1354
03:57:31.610 --> 03:57:40.259
Boardroom: For example, all DFR flights can be recorded, and consistent with the way that our department speaks about the transparency about our work.

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1355
03:57:40.290 --> 03:57:54.979
Boardroom: be produced on our dashboard, or on, you know, a product's dashboard to show exactly where we're flying and give real-time information about why we flew, and what the outcomes were of that event. Also, as part of the STO process.

1356
03:57:55.090 --> 03:58:15.700
Boardroom: We will develop those clear and robust use policies, and those policies will go to the Police Accountability Board, will be written in alignment with privacy and fairness issues, with, our city and state laws and requirements, and the data security protections that we demand for vendors that come into our city to provide us services.

1357
03:58:15.820 --> 03:58:25.500
Boardroom: So with Council's direction tonight, not only will we continue to do the research that we're engaged in, we will prepare official, formal surveillance acquisition reports.

1358
03:58:25.500 --> 03:58:50.489
Boardroom: But also, look to comply, ensure we're complying with the community safety ordinance and AB481 that, relate to military equipment ordinance. All those three different, ordinances or policies or laws, guide us on the information that has to exist within use policies, before we implement this kind of technology. So there'll be a lot of process discussion, and, things that are laid out in those policies are really defined

1359
03:58:50.490 --> 03:59:15.330
Boardroom: how we would use these technologies. With the idea that not only that, but, when we come back to Council, if Council directs us to move forward on this, my intent is to bring information about the different vendors that are out there providing these technologies, and how they would interact and work in tandem with both our ALPR technologies and our fixed camera technologies, so that Council can guide us, in an informed way, make decisions around

1360
03:59:15.330 --> 03:59:19.289
Boardroom: How we want these technologies to all work in concert with each other.

1361
03:59:19.550 --> 03:59:31.389
Boardroom: So, that's the end of what we, are presented on today. I know it's a lot of information, and there's still a lot for us to dive into

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and share back with Council, but happy to answer any questions that we can at this point.

1362
03:59:32.000 --> 03:59:40.069
Boardroom: Thank you, Chief. Captain? Chief? Starting off with Councilmember Trega, we're gonna start with questions, please.

1363
03:59:40.810 --> 03:59:54.280
Boardroom: Thank you, Madam Mayor. Thank you, Councilmember Taplan, for bringing forward this item, and thank you to Chief, Captain, and Chief, respectively, for, being on.

1364
03:59:54.490 --> 03:59:56.060
Boardroom: I,

1365
03:59:56.940 --> 04:00:12.979
Boardroom: I, I will reserve my comments for later, obviously. I, just want to say off the bat, I appreciate the value proposition for this. And so to me, I have categories of,

1366
04:00:12.990 --> 04:00:23.200
Boardroom: buckets of, items I wanted to, you to speak through. I believe there are

1367
04:00:23.290 --> 04:00:32.160
Boardroom: 5. So, first one is security. How do we ensure, thatâ€¦

1368
04:00:33.060 --> 04:00:48.359
Boardroom: whatever, vendors we do business with, that the technology is secure, it can't be hijacked by, someone with nefarious, purposes.

1369
04:00:48.400 --> 04:01:07.599
Boardroom: what is the interplay between national standards, like NDAA compliance, and, what Berkeley might, need to, expect for any vendor around security protocol. Second is privacy. I thinkâ€¦

1370
04:01:07.600 --> 04:01:10.909
Boardroom: I, I imagine I will, I will,

1371
04:01:10.910 --> 04:01:18.420
Boardroom: be the first council member, but not the last to ask about this, at,

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1372
04:01:18.760 --> 04:01:22.670
Boardroom: I wanted to, better understand

1373
04:01:22.780 --> 04:01:41.310
Boardroom: what kind of privacy protocols other jurisdictions, like, that are using, drone technology right now, or are authorized for use, such as Richmond, what, they, employ, and, what some best practices around this might be.

1374
04:01:43.090 --> 04:01:56.229
Boardroom: coordination between agencies. I understand that, a city of Berkeley's population size and, relative geographic compactness

1375
04:01:56.420 --> 04:02:05.610
Boardroom: Maybe the, optimal use case, could be a single drone. If that is the case,

1376
04:02:05.960 --> 04:02:17.890
Boardroom: how would, the agencies like BPD and FIRE coordinate, among themselves for usage of the same equipment? Also,

1377
04:02:18.020 --> 04:02:23.460
Boardroom: what are the specific use cases? For example,

1378
04:02:23.630 --> 04:02:42.540
Boardroom: I probably would appreciate the use of floor technology when it comes to, rescuing someone from a burning building. But maybe I would not appreciate the same technology if it's just a drone flying overhead, such that,

1379
04:02:42.730 --> 04:02:58.909
Boardroom: folks that are just going about their regular lives in the building that is not burning, that they are, not being surveilled or, get a heat signature from the drone.

1380
04:03:00.350 --> 04:03:11.039
Boardroom: And then, transparency and community engagement. I wanted, you know, obviously that's a priority for me. How,

1381
04:03:11.310 --> 04:03:20.760

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Boardroom: How will, if we move forward, tonight with the, this referral, what will be the process toâ€¦

1382
04:03:20.800 --> 04:03:33.799
Boardroom: engage the community, and let them know that this is, a technology that the City of Berkeley is contemplating. And lastly, I know we haveâ€¦

1383
04:03:34.050 --> 04:03:44.249
Boardroom: A variety of, policies that I would put in the ethical procurement category.

1384
04:03:44.780 --> 04:03:49.880
Boardroom: I want to make sure that any equipment we purchase,

1385
04:03:49.890 --> 04:04:12.340
Boardroom: We don't use vendors, and we don't use equipment, that, may also be sold to rogue actors, whether they be, nation states or entities that are up to, nefarious things. So how do we ensure, do we need toâ€¦ can we do that within ourâ€¦

1386
04:04:12.420 --> 04:04:36.809
Boardroom: are the existing policies we have around procurement sufficient, or do we need to, actually create a new set of policies, and how will it interplay with, the military procurement policy and, the others, that we have? So, those are my five, general buckets, and, thank you so much again.

1387
04:04:37.830 --> 04:04:54.620
Boardroom: And before you answer, I just want to say that, keeping in mind, folks, that, we're not talking about a specific company yet, so when the chief's responding, it's really on, you know, what could potentially happen, just to make sure for the public that you all are clear, too.

1388
04:04:54.840 --> 04:05:13.919
Boardroom: Yeah, and maybe another thing to share, too, is that, the, questions we get, both from the community, the questions we get from this council about things that are important, helpâ€¦ are gonna help usâ€¦ guide us as we go through the STO process. Like, that's what we know, likeâ€¦ and so my intent is to be able to come back with aâ€¦ probably a long chart.

1389
04:05:13.920 --> 04:05:38.920

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Boardroom: Right? That kind of compares the different vendors and the different ways they hold protections, and the different ways they interplay with the other technologies, so that we really can put it all on the table and have an informed conversation about which is best. Because there are certain vendors that we know only service public safety, but a different vendor might have a better data protection elements, right? And so, as we look through all those pieces, we can kind of understand, you know, what fits best for Berkeley and Berkeley's value.

1390
04:05:38.920 --> 04:05:49.010
Boardroom: I can share, a couple things. The, the technology is, for the most part, the vendors, the, technology exists on the drone.

1391
04:05:49.170 --> 04:06:05.079
Boardroom: and is then, either a thumb card or a download, but when it lands, it downloads into our evidence system, or it's held locally and preserved if it's evidenced, in that manner. So the controls are tighter. Like, some of them, may be cloud-based.

1392
04:06:05.080 --> 04:06:14.270
Boardroom: But a lot of them work in that manner, so it's much more secure, right? We have control of that. One of the vendors that's out there is actually the same vendor that does our evidence system.

1393
04:06:14.270 --> 04:06:35.869
Boardroom: you know, Evidence.com system. So, you know, those are some of the considerations about the ways that it's holding. We absolutely know that both how data is collected, where it's held, who has access and who has keys to it are of utmost concern to this council. I've been paying attention to the questions. We know that those things will be important to bring back when we have our acquisition report.

1394
04:06:35.870 --> 04:06:59.450
Boardroom: As far as, the number of DFRs you might need for a city and the size of Berkeley, and things like that, and how many we would need, again, there's best practices, and there's ways, different ways that cities have rolled this out. A lot of cities have just started with one, and then expanded out once they started to see how uses were. Some of the vendors have products where they are, can be interchanged.

1395
04:06:59.450 --> 04:07:14.830
Boardroom: A lot of them can only run for 45 minutes at a time, and so having some redundancy built into your system, whether it's to go to a fire call, or to a police call, or to stay on a protracted police call

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for a long period of time, having more than one of the system can be important.

1396
04:07:14.830 --> 04:07:39.819
Boardroom: And so, the same way that we dispatch, personnel, for public safety needs, both our fire department and our police department, we set priorities based on the type of call. Life safety is always our primary concern. So, if we were mapping the city for, potential future cost recovery that's lower down than, hey, we've got a fire in the hill that we want to get a drone up to right now to.

1397
04:07:39.820 --> 04:08:04.150
Boardroom: see how large that fire is, right? And so, that's, it's all dispatched from our calls for service, and our calls for service are already built with those priority codes in them. Is it in progress? You know, is there life safety issues? You know, things like that. What would help guide how we would use it. My goal would be that, whenever we had a tool that worked well for other departments or, for the fire department versus the police department, we would be

1398
04:08:04.150 --> 04:08:10.880
Boardroom: sharing that technology in a way that makes sense for our city, on behalf of our city.

1399
04:08:11.060 --> 04:08:35.000
Boardroom: Community engagement, obviously, it's important for us to hear via the council what the community is saying. We also have been contacted by members of the community, and we've already started talking about how can we do, like, an information, like, similar to this, where we provide the community information about what the different technologies are. When we say DFR, what does that really mean? Here's some videos of what it looks like. I'm thinking about ways to do, like, some kind of community forum.

1400
04:08:35.000 --> 04:08:36.050
Boardroom: To share that.

1401
04:08:36.050 --> 04:08:39.589
Boardroom: And hear back from the community about their specific interests.

1402
04:08:39.950 --> 04:08:55.110
Boardroom: And then, the last piece about making sure the equipment we use and the vendors that we use don't do business with people that we don't want them to do business with, that's absolutely, again, something

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that we would, want to raise forth as we look at the acquisition report and kind of tell you what we've discovered around vendors.

1403
04:08:55.790 --> 04:09:03.239
Boardroom: And Iâ€¦ I think you maybe spoke around this, but can you speak to,

1404
04:09:03.280 --> 04:09:17.029
Boardroom: between BPD, BFD, if, hypothetically, there was another agency that presented a use case for a drone, how would that be worked out at the interagency level?

1405
04:09:18.550 --> 04:09:23.609
Boardroom: I can just say that, you know, we haveâ€¦ our primary mission is to make sure people are safe.

1406
04:09:23.870 --> 04:09:38.089
Boardroom: And, I, you know, that's the balance that we're gonna be doing, and if the fire department has a competing need for safety, we're gonna respect that. And that's, you know, the way we dispatch is, police and fire from our comm center, so that could be done in one venue.

1407
04:09:40.660 --> 04:09:56.159
Boardroom: Thank you, Councilmember Taplin. Thank you very much, and thank you, Chief Lewis, and Captain Oakies and Chief May, for your close partnership with my office, the other offices, and also for making yourself so available to Council for our questions. I have twoâ€¦ I have 2.5 questions,

1408
04:09:56.480 --> 04:09:59.680
Boardroom: And, you know, in a name of transparency.

1409
04:09:59.980 --> 04:10:13.029
Boardroom: On the PD side, when you're piloting a drone, when would you start collecting visual information? Would you be collecting from the moment the flight begins, or when the drone arrives on scene?

1410
04:10:14.250 --> 04:10:30.439
Boardroom: So there's a couple different ways these, technology works. Some, the cameras are oriented skyward on their flight in. Some, they're oriented, you know, in a regular manner, but are completely off. But filming and collection of data doesn't happen on the way to a call. It doesn't activate until you get to the scene.

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1411
04:10:31.410 --> 04:10:40.230
Boardroom: As a follow-up, if a drone is deployed to respond to something happening in one building, is there any utility in collecting data from

1412
04:10:40.450 --> 04:10:41.890
Boardroom: an adjacent building?

1413
04:10:43.070 --> 04:11:02.660
Boardroom: No, it would be limitâ€¦ we would be looking at the event, the incident, you know, obviously, if there was concerns there was an active shooter call, and you thought there might be a suspect in another building, you might do a pan, around there, but the idea is that it's providing us intelligence about the incident, where the incident is occurring, and that's what our focus is going to be on.

1414
04:11:02.970 --> 04:11:15.930
Boardroom: Thank you so much. And on the fire side, you mentioned that these can be used to carry and transport objects. I'm wondering, Chief May, and you mentioned, you gave an example of responding to,

1415
04:11:16.460 --> 04:11:34.939
Boardroom: a call for service involving a building under construction, but I'm wondering if whether, a mid-rise or a high-rise building, if there were a fire that broke out in one of the units, could a drone be used to dispatch, flame-combating material, like, through a window, perhaps?

1416
04:11:35.510 --> 04:11:51.760
Keith May: Yeah, I think some of the demonstrations that we have seen so far, there is a weight limit for what the drones can carry. I do notâ€¦ I have not yet witnessed, flame retardant, more so on the medical side, such as Narcan or an AED.

1417
04:11:51.760 --> 04:11:58.339
Keith May: of lightweight. But I have not yet seen one that has a demonstration for any type of fire retardant.

1418
04:11:59.130 --> 04:12:03.980
Boardroom: I will say that the technologies that they do have allow them to break windows.

1419
04:12:04.040 --> 04:12:28.219

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Boardroom: And, you know, I don't want to speak for the fire department, that's, you know, Chief May's area of expertise, but sometimes communication with someone who is in a building that's on fire, and letting them know, stay where you are, or, you know, do some otherâ€¦ you know, that line of communication, and that's one of the things that the drone provides, is the ability to speak to, that resident. And so, while they may not be able to put fire retardant in that area, they may be able to give specific instructions, like.

1420
04:12:28.770 --> 04:12:45.759
Boardroom: you know, come out and go to the right or go to the left, or, you know, wait to come out a few more minutes, we're going to make the area safe, things like that could make a real difference in a response. And follow-up to that, could one be used toâ€¦ I think you spoke to this in theâ€¦

1421
04:12:45.970 --> 04:12:55.070
Boardroom: in the example regarding the building under construction, but I'm wondering ifâ€¦ if we have a nasty fire in a building, could a drone be used to guide,

1422
04:12:55.170 --> 04:12:56.680
Boardroom: Responders en route.

1423
04:12:57.230 --> 04:12:58.800
Boardroom: While they're inside the building.

1424
04:13:00.990 --> 04:13:07.009
Keith May: Yes, to answer the question. We didn't use it on the one on university, that was more for,

1425
04:13:09.520 --> 04:13:22.229
Keith May: Water streams, but should a drone be deployed and be able to tell exactly where a victim is? Yes, that information could be relayed to the, search and rescue crew that's inside looking for victims.

1426
04:13:23.490 --> 04:13:25.130
Boardroom: Thank you very much. Those are my questions.

1427
04:13:25.870 --> 04:13:27.940
Boardroom: Thank you. Councilmember Blackaby.

1428
04:13:28.070 --> 04:13:42.430

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Boardroom: Thanks, Madam Mayor, and thank you, Councilmember Taplin, for authoring this item and, inviting me to co-sponsor it. and thank you to Chief Lewis and Captain Okies and Chief May for being here. I just had a few questions,

1429
04:13:42.430 --> 04:13:53.020
Boardroom: you know, we've talked a little bit about some of the privacy concerns, and again, I also realize all these questions are premature, because this is all stuff that you're going to work out in the policy, but just some initial thinking as we go.

1430
04:13:53.020 --> 04:14:05.730
Boardroom: Do you have any early thoughts on maybe a few of those sort of privacy limitations and safeguards you might put in place? I know Councilmember Taplin just asked a few questions about whether you're viewing neighboring buildings, but are there some other kind of no-brainers

1431
04:14:05.770 --> 04:14:08.310
Boardroom: Already, just that you've already thought about that wouldâ€¦

1432
04:14:08.440 --> 04:14:10.860
Boardroom: Likely be part of this from a privacy perspective.

1433
04:14:11.630 --> 04:14:31.690
Boardroom: Yeah, I think it'll be interesting to explore, you know, if weâ€¦ a DFR goes to a scene, and it's a non-police call, you know, do we want to retain, you know, retain or not retain for as long, you know, the video that's collected? You know, things like that, questions that we'll get into. Very strict guidelines on, you know,

1434
04:14:31.690 --> 04:14:42.590
Boardroom: where the operator looks, you know, directing them, specific language, like the Councilmember brought up about, like, to the incident, you know, may only be used to observe related to the incident.

1435
04:14:42.590 --> 04:14:45.620
Boardroom: The other thing that,

1436
04:14:45.740 --> 04:14:59.439
Boardroom: I do know is that this has an application across a lot of different types of calls. And so, I want to define use policies that are really clear about what we expect around how they use it, but I'm also cautious to not

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1437
04:14:59.440 --> 04:15:24.409
Boardroom: over-limit us unintentionally, so that we don'tâ€¦ can't use maximum, you know, ability of this, of this technology. Like, you might say, well, hey, only use this for the most serious cases. Well, but the way you use it as to, to address staffing shortages is you send it to things like vehicle in a roadway, and is that vehicle even still there anymore? Can you not send an officer? And things like that. So there'sâ€¦ there's, you know, we're, we think about it in two ways.

1438
04:15:24.410 --> 04:15:28.219
Boardroom: One is, do you define the ways something can be used?

1439
04:15:28.430 --> 04:15:31.620
Boardroom: Or are you just very clear about the ways it will not be used?

1440
04:15:31.700 --> 04:15:55.189
Boardroom: Right? And so then you don't create some limits that, that, you know, unintentionally stop you from making good use of a tool without going through a whole process to be able to add that back in. And then build a frequent, like, look-back, because it's like, hey, let's look after X months and see how we're doing, and then we can make adjustments. Okay, thank you. You've talked a little bit about the DFR versus UAS. Can you talkâ€¦ is thatâ€¦ that's different technology for each? Can you just talk a little bit about how, maybe.

1441
04:15:55.190 --> 04:15:58.359
Boardroom: Capinokies, like, what are the different technologies for each?

1442
04:15:58.360 --> 04:16:22.790
Boardroom: Sure, generally the technologies are very similar. It's, the main differences are the size. So, a DFR tends to be, respond, and be out for longer periods of time. That requires a bigger platform, because batteries are what carry most of the weight. And also, the DFRs are usually set up on rooftops and automated, versus the UAS, which is

1443
04:16:22.790 --> 04:16:29.499
Boardroom: A much smaller drone, usually in the trunk of a car, back of a vehicle, that's deployed out there in the field by an officer that justâ€¦

1444
04:16:29.500 --> 04:16:41.929

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Boardroom: takes it, sets it up, takes a few minutes to set it up, and then deploys it straight to the location that they'reâ€¦ that they're dealing with. So, very, very similar, slightly different use cases, andâ€¦ and really, it's about scale. Okay.

1445
04:16:41.930 --> 04:16:51.650
Boardroom: Again, both departments would sort of jointly use the technology, you'd kind of work all that out. Do you have any kind of rough, estimates onâ€¦

1446
04:16:51.700 --> 04:17:03.850
Boardroom: given a city of our geographic size and population size, like, how manyâ€¦ how many units are appropriate? Like, maybe where would we start, and maybe what could you envision, how many of these units would we have at any kind of point in time?

1447
04:17:05.590 --> 04:17:09.919
Boardroom: Yeah, so, a couple different vendors that we've talked to said you could get it done with one.

1448
04:17:10.160 --> 04:17:35.149
Boardroom: DFR to start. Again, there's the limitations around how long it can fly for. Some of the vendors, the product, can be, landed and a battery swapped out, right? So you can have one unit and multiple, you know, you just buy more batteries, and so then you don't have that same issue. The scale up is easier than, right, than spending a bunch of money and having to scale down, once you get, once you kind of understand the use of the

1449
04:17:35.150 --> 04:17:58.659
Boardroom: technology. I think if we want to get to the point where we're maximizing how many calls we can clear, knowing that a city like San Mateo is using 15 to 20 times in a day, that tells me that they're probably at the capacity of one, you know, and are very close to probably needing two. So, we probably would want to look at the pricing and what, you know, whether there's a deal for a longer, a little bit longer contract, or buying multiple at one time.

1450
04:17:58.660 --> 04:18:11.380
Boardroom: And then I will say that for the UAS, the smaller handheld devices, typically you want to see a handful of those, right, because they can be used, they can be out of the city for a special response team operation. At the same time, you've got

1451
04:18:11.380 --> 04:18:27.709

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Boardroom: you know, smaller calls that they're responding to, so you'd want to have more of those to have, and those are a much more affordable product. There is a licensing and training component for people to be able to fly them, so that there's those costs that we'd have to build in as we're looking at all these pieces.

1452
04:18:28.400 --> 04:18:40.850
Boardroom: Another component to that is the technology. There's some companies out there that their model is to have multiple, drones as first responders set up, and so when one runs out of battery, the other one goes out.

1453
04:18:40.850 --> 04:19:03.140
Boardroom: another technology has a larger battery and a different model, so some of it's gonna really depend on what the technology is that we're looking at and what makes the most sense for the city. If we were ever in the position where we were at 1.5 or 2.5 capacities, the kind of thing where would we be able to partner with a neighboring jurisdiction, like, hey, Albany, kick in forâ€¦ I mean, is that appropriate, or would you rather this just be deployed Berkeley-specific?

1454
04:19:05.140 --> 04:19:11.709
Boardroom: That's an interesting question, and, you know, the military equipment ordinance actually says that that jurisdiction has to have

1455
04:19:11.710 --> 04:19:35.429
Boardroom: use policy in place before that technology could be used in their city. So we would have to make sure that we weren't loaning it out to someone who wasn't, authorized at the time to use it. Again, you know, our priorities are going to always be life safety first. You know, a perfect example is the homicide event that we had at, Toyota Albany, right?

1456
04:19:35.430 --> 04:19:43.540
Boardroom: aren't so worried about a jurisdictional border when someone's life is in danger. And fire, we know there's implications of, of,

1457
04:19:43.610 --> 04:20:08.410
Boardroom: if I were coming over the hills, and the last thing we'd want to do is, like, say, well, our drones can only fly in this area, and these drones have the capability of flying well beyond our borders if needed. Yeah, great. Capone, I love the data about the percentage of cases that sound like upwards of 20% or 30% in some jurisdictions, or maybe San Mateo 10%, where, calls for service can be responded to with just the drone, clear them without an

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1458
04:20:08.410 --> 04:20:33.089
Boardroom: officer responding. I'm also wondering if, so that's appealing. Is there also a case where maybe you'd have calls for service, where maybe you'd have two officers that would normally respond? You could do it with one? So isâ€¦ are there things like that? So it's not just driving it to zero, but even things where you'd have multiple units could be reduced. Yeah, absolutely. So there was, one of the examples that one of the companies uses is a, response to a call of a man with a gun.

1459
04:20:33.410 --> 04:20:53.680
Boardroom: And, the drone goes over there and determines it's a cigarette lighter, somebody that's in a little bit of distress, but no big deal. They reduce their response significantly, and the officers knew what they were getting into. Obviously, they're gonna respond very differently to a call of a man with a gun than somebody who's, you know, acting erratically who has a cigarette lighter, so lower response and a more appropriate response.

1460
04:20:53.690 --> 04:21:01.369
Boardroom: And if I could just add a small thing to that, too, one of the best uses that we've heard about has to do with vehicle pursuits.

1461
04:21:01.370 --> 04:21:26.190
Boardroom: And if youâ€¦ and notâ€¦ so that's not only a personnel power thing, but it's also a safety thing. And so, where typically, if you had a vehicle pursuit, you might have 3 units in the pursuit, plus follow-on supervisors involved in that, right, pursuit. Instead, you can use DFR technology to safely follow a car, wait until it parks somewhere, and then deal with the suspects in that manner. It's much safer for everyone, and significantly reduces the number of personal units.

1462
04:21:26.190 --> 04:21:28.380
Boardroom: deploy it to a physical location, you could say.

1463
04:21:28.380 --> 04:21:46.340
Boardroom: literally follow that car, kind of a situation. Okay. Couple other quick things, then I'll be done. Chief May, on the fire side, you know, I've definitely got some kind of residents in D6 who've beenâ€¦ are interested in the idea of drones for wildfire safety, prevention, detection.

1464
04:21:46.340 --> 04:21:58.670
Boardroom: Is there a scenario where on those, like, extreme weather days, you might just have a drone or multiple drones up, kind of around

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the clock for some period of time? Is that something you didn't envision doing? Is that a possibility?

1465
04:21:58.740 --> 04:22:00.650
Boardroom: To detect and scan.

1466
04:22:01.100 --> 04:22:13.199
Keith May: Yeah, I think I'd have to look at what detection equipment is available for a drone, because I know our units right now go out and do weather samplings. We do spot forecasting with NOAA, or the Weather Center.

1467
04:22:13.500 --> 04:22:19.079
Keith May: It's very possible to look and see what type of detection they could do with,

1468
04:22:19.320 --> 04:22:30.179
Keith May: And I see Chief Sprague is on, or was on here, some of the work that, Moraga Rinda was doing with some of their sensors, but that's somethingâ€¦ that's a very good idea, and something we can look into.

1469
04:22:32.160 --> 04:22:33.130
Boardroom: Chief, were you gonnaâ€¦

1470
04:22:33.330 --> 04:22:52.589
David Sprague: Jump in. Yeah, Councilmember, the only thing I had to chime in on is, so far we understand the significant barriers to that specific use are that oftentimes on those high weather days, there are winds that may prohibit the use of drones. And additionally, we have issues with,

1471
04:22:52.910 --> 04:23:01.229
David Sprague: airspace and the East Bay Regional Parks helicopter, so we'd also have to explore that conflict. But it's definitely a potential.

1472
04:23:01.230 --> 04:23:19.059
Boardroom: Okay, cool. And I thought, given the evacuation study, I think Chief May, you already mentioned this too, but just the ability toâ€¦ like, we know that in a fire, getting people out of the hills and relieving those choke points is going to be extremely important, so the opportunity to, like, fly a drone, say, hey, avoid the circle, go this way, or go that way.

1473

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04:23:19.080 --> 04:23:24.969
Boardroom: would be enormously valuable in moving people around, so I think that that's also a really interesting use case.

1474
04:23:25.180 --> 04:23:36.149
Boardroom: Last question for the team is, so if we do proceed forward tonight, what would you anticipate as the rough timeline? How long would this process potentially take to go from here to policy and potentiallyâ€¦

1475
04:23:36.250 --> 04:23:37.640
Boardroom: Acquisition deployment.

1476
04:23:39.890 --> 04:23:41.589
Boardroom: Well, I think,

1477
04:23:41.840 --> 04:24:06.200
Boardroom: We know there's some primary players in the field as far as vendors, and we've done some of the initial research to identify who those vendors are. We're starting to build out our list of all the questions we're gonna ask and information that we want to bring back. I anticipate, with that, plus, knowing that whatever use policies we develop, we're going to want to include, having had a conversation, or at least getting some input from our community, and it goes to PAB for at least a 30-day review of.

1478
04:24:06.200 --> 04:24:08.940
Boardroom: Our use policies and acquisition reports.

1479
04:24:08.940 --> 04:24:19.830
Boardroom: And knowing that Council's about to enter into recess, I think, reasonably, in the early part of February, we could be bringing something back for Council to consider. Good, so, okay. Great. Thank you. Thanks very much.

1480
04:24:21.030 --> 04:24:23.329
Boardroom: Thank you. Councilmember O'Keefe.

1481
04:24:23.940 --> 04:24:28.770
Boardroom: Thank you. I have 7.0 questions. Okay.

1482
04:24:29.210 --> 04:24:42.569

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Boardroom: Get ready. First question is, these drones can be equipped with microphones, is that correct? Can you let us, walk us through some of the scenarios where you would imagine using the microphone?

1483
04:24:43.290 --> 04:25:08.220
Boardroom: Yeah, of course. So, there's a ton of medical reasons why, including delivery of Narcan and instructions how to do it, delivery of an AED, you know, the example I gave about, telling somebody, don't evacuate yet, the fire department's clearing the fire, stay where you are, being able to fly in a specific area where a missing person was last seen, and putting out an

1484
04:25:08.220 --> 04:25:09.150
Boardroom: announcements.

1485
04:25:09.150 --> 04:25:33.859
Boardroom: Being able to do evacuation notices. A lot of times now, we have to use either the LRAD or PAs and are doingâ€¦ and go to areas and evacuate. Great example would be the tsunami when we were trying to evacuate. We had a very short period of time to evacuate a lot of people and get personnel coordinated. We could have sent the drone to the farthest end of the marina and just started working way back there and been there within, you know, probably 45 seconds from the station.

1486
04:25:33.860 --> 04:25:56.480
Boardroom: direct line of flight, and started doing that. There's things as simple as, hey, we see the gun in your hand, please put it down and come out, and, you know, very clear instructions on how to de-escalate in that, or even start negotiations. Some drones are capable of carrying a cell phone, dropping a cell phone, so we can start communications that way, and so it's like, hey, we've just dropped a phone, pick it up and please talk to us, and things like that, yeah.

1487
04:25:57.850 --> 04:26:16.810
Boardroom: Thanks. By the way, is myâ€¦ how does it work? Does my time go only when I'm talking, or when the questions are happening? Okay, it didn't stop, okay. I just want to make sure, usually I don't have so many questions, but I want to make sure I get to ask them all, so thank you. My next question is, I think Councilmember Tregob already, referenced this, but if you answered it, I didn't quite catch it.

1488
04:26:17.330 --> 04:26:37.899
Boardroom: I'm concerned about, being able toâ€¦ like, this heat signature thing seems cool, it'd be great in search and rescue, but can they also just see where a person is in their home? Like, if they're sitting on the toilet, or if they're in bed? Like, is that something that

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they're also able to see? I would think so, but I want to give you a chance to clarify.

1489
04:26:38.700 --> 04:26:46.779
Boardroom: Yeah, it's typically what you see. I mean, you could see them in a seated position. I don't think you could tell exactly what they were seated on, but yeah.

1490
04:26:47.720 --> 04:27:04.160
Boardroom: Okay, thank you. Next question. You know, you mentioned the San Mateo example a few times, and I'm wondering, you know, it seemed compelling, but also fairly anecdotal, and I'm wondering if youâ€¦ there is actually any data that shows that outcomes are better with drones?

1491
04:27:05.110 --> 04:27:17.269
Boardroom: Yeah, I know, I've seen a number of different presentations that I've attended where they're reporting, the vendors are reporting, which, of course, has to be verified, but are reporting that their customers are experiencing

1492
04:27:17.270 --> 04:27:42.250
Boardroom: I've seen as high as 25 and 30% of their calls are being cleared by DFR, so one of the metrics you're looking at is how fast they can get there, sort of how good is your response time, whether or not you've sent officers or not, whether there's safer outcomes or not. That's a little harder to judge, right, or to attribute one way or the other to whether or not what the drone observed or the drones. So you primarily see the data around that, like how fast they can get there and how they resolve calls.

1493
04:27:43.970 --> 04:27:51.120
Boardroom: Thanks, yeah, I think it's hard to study, but it sounds like it hasn't actually been studied yet, so I hopeâ€¦ I hope somebody does that study, it would be interesting.

1494
04:27:51.330 --> 04:28:06.980
Boardroom: Next question, also regarding the San Mateo example, was any data collected there, about how people felt about having, like, a drone come and maybe probably not know why? Because the cop never came? How did people feel?

1495
04:28:08.230 --> 04:28:16.530
Boardroom: So, don't have specific data for, for that. I do know that, in the presentation that, that I saw.

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1496
04:28:16.530 --> 04:28:31.109
Boardroom: the city manager was the biggest proponent of that program based on both the efficiencies that it created and the quality of service that they were getting to the community, and so I don't have specifics to how people felt.

1497
04:28:31.110 --> 04:28:55.860
Boardroom: I do think that on those cases where we, you know, where you're going to send a drone out and they determine, hey, no police response is needed, sometimes, you know, we get calls frequently of, like, a 911, what we call a 911 ascertain, where somebody calls and we try calling them back on their cell phone, they don't answer. We send an officer to go look and try to find someone, nobody's there. Something like that would be a really good use case

1498
04:28:55.860 --> 04:29:02.080
Boardroom: for a drone. Similarly, we get a call of an alarm system that's going off.

1499
04:29:02.080 --> 04:29:20.910
Boardroom: going and evaluating is, hey, are there any signs of a break-in? Something like that might be another use case where you don't have that human contact, but there wasn't really an expectation of one. Okay, but I'm sure sometimes there was a person who experienced the drone, and soâ€¦ sounds like the answer's no, and that's fine. I just wanted to find out about that. Do you have something to add?

1500
04:29:20.930 --> 04:29:26.089
Boardroom: Okay, thank you. Next question, next question's for Chief May, or Chief Sprague.

1501
04:29:26.670 --> 04:29:41.309
Boardroom: this idea that the drones can carry something, there's actually a cool, idea that I heard, and I'm wondering if you could comment on. Can they carry a flotation device to somebody who's, like, in the bay drowning? Is that possible?

1502
04:29:41.660 --> 04:29:48.720
Keith May: That is possible, yes, because the flotation device that we saw in the presentation was light enough.

1503
04:29:48.860 --> 04:29:53.389
Keith May: And the flotation device could activate when hitting the water. So, yes, it could.

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1504
04:29:54.020 --> 04:30:07.480
Boardroom: That's cool. Okay, last question. Look at me getting through it. One use case I don't think was mentioned, or hasn't been discussed at least, is if a drone could be useful for,

1505
04:30:07.480 --> 04:30:20.369
Boardroom: surveilling, like, a large public event, like, would that be aâ€¦ would there be a safety benefit if there was, let's say, at the Solano stroll, if there was a police drone kind of justâ€¦ just going up and down, checking things out? Is that a use youâ€¦ you would have?

1506
04:30:20.370 --> 04:30:35.300
Boardroom: Yeah, so Albany has used drones before for this long stroll specifically, to do, like, a flyover. A lot of use policies require, for an event like that there to be a crime that occurs first, before the drone will go up and start flying.

1507
04:30:35.300 --> 04:30:54.210
Boardroom: I think it's an interesting balance, right? Like, do we want an event where a visible drone is flying overhead while people are enjoying an event, versus we want to be able to address issues and get ahead of something before it becomes an issue? And again, that's the balance that we have to strike about a use policy.

1508
04:30:54.570 --> 04:31:13.179
Boardroom: and I think I lean more towards theâ€¦ I'd like people to be able to enjoy their space and not feel like there's somebody over them all the time, and so how do we make sure we're in the rightâ€¦ we're close enough to be available and useful if needed, but we're not living in a community where there's somebody always, you know, right above you watching you.

1509
04:31:13.950 --> 04:31:19.760
Boardroom: Okay, actually, that was my 7, but I have a follow-up. I guess what I'm getting at, and I think I'll ask a little moreâ€¦

1510
04:31:19.760 --> 04:31:37.619
Boardroom: Specifically, I'm wondering if that's something that the Berkeley Police would be interested in, and I'm asking because if so, I will, in my comments, I'd like to put, suggest some guidelines. But if it's not something you're interested in, if you think it probably wouldn't want to do it, then maybe it's not worth it.

1511

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04:31:39.690 --> 04:31:48.850
Boardroom: Are you too much on the spot? You can say you don't know, I'm justâ€¦ No, I think what I would say is, I think what I would say is, if it's a use you would like us to explore.

1512
04:31:48.850 --> 04:32:13.850
Boardroom: Then provide us what would be good information to gather and understand about it. Like, we can research what other jurisdictions are doing, what, you know, is anybody doing this, how are they doing this, what are the best practices, and come back to this council with a consideration for it in our use policy. If after we go and see that, I still think it's a good law enforcement use, then I could put it in there. So, like I said, it's so early in the process, I don't want to start crossing things off

1513
04:32:13.850 --> 04:32:23.610
Boardroom: withoutâ€¦ you know, our values are good privacy, good accountability, good transparency, public safety. That's what we're gonna try to land all our prohibited uses

1514
04:32:23.610 --> 04:32:34.340
Boardroom: you know, to prevent, but I want to beâ€¦ I'm wary of defining too many things without having done all the research. Fair enough. And I just realized I missed one of my questions, andâ€¦

1515
04:32:34.540 --> 04:32:37.409
Boardroom: I have time. So, you know,

1516
04:32:37.640 --> 04:33:01.749
Boardroom: dronesâ€¦ my understanding is drones are already allowed under our current use policy, we just borrowed them from other jurisdictions, is that right? That's correct, the UAS. Yeah, okay, right. Can you, we have used them a few times. Can you talk about how those have been used in the past? Yeah, so, we talk in depth in our surveillance technology report that we turned in, so if people want to really dive into what those use cases are.

1517
04:33:01.750 --> 04:33:25.560
Boardroom: Most often they're used for, our search warrant operations, so our special response team doing a search warrant, is able to clear a residence, and, safely do that, without having to send people in to do that first, which de-conflicts potential violence. We've also used it, for calls, like, someone's asleep at a wheel, and somebody thought they saw a weapon in the passenger seat, or on theâ€¦ whatever.

1518

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04:33:25.560 --> 04:33:48.470
Boardroom: we've sent a drone up to look in there and observe, and like, in one case, it was, yeah, there is, there's this or that. It changed our response. In another case, it was like, no, that, you know, that person, that's not what you thought you saw in there. So there's those kinds of uses to date that we've used. A lot of agencies are moving towards starting to charge when you borrow that technology, and we also know that,

1519
04:33:48.500 --> 04:33:57.039
Boardroom: We're still exploring the technology, so we haven't really even experienced all the ways that we could use it as an agency if we had that technology in our city.

1520
04:33:57.410 --> 04:34:01.679
Boardroom: And approximately how many times have you used it in the last, I guess since it's been allowed?

1521
04:34:01.890 --> 04:34:03.210
Boardroom: 5 years or so.

1522
04:34:03.890 --> 04:34:13.239
Boardroom: I don't know that I have the 5-year data. I think last year was 6 or 7 uses. That's good, I just wanted to get a sense, yeah. Thank you. Those are all my questions, I appreciate it.

1523
04:34:14.950 --> 04:34:28.970
Boardroom: Thank you, and I just want to say, if you have thoughts of, you know, for feedback, Councilmember O'Keefe, you should just give them during your comments. I think that's fine, like, regardless of how they'reâ€¦ Yeah. Okay, so, Councilmember Bartlett.

1524
04:34:29.900 --> 04:34:41.390
Boardroom: Thank you, Madam Mayor, and thank you, team, for coming out and, presenting this, and, you know, I know Councilor Kesarwani had volunteered to answer all my questions, but I'm just, you know, thank you for filling in.

1525
04:34:41.390 --> 04:34:56.759
Boardroom: So one question, this is on my mind. The auto dealer that we had the incident in Albany last year, right? In your opinion, in your experience, can these drones, enter and navigate confined spaces?

1526
04:34:59.400 --> 04:35:14.240

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Boardroom: Yeah, one of the primary uses of our special response team, when they do use this equipment from other agencies, is to go into confined spaces, use the cameras on the drone to clear them out, to ensure that nobody is in there.

1527
04:35:14.240 --> 04:35:32.949
Boardroom: Before officers go in there to check it. So, that reduces the likelihood of a potential conflict and likelihood of violence. So it'sâ€¦ it's actually a better outcome for everyone involved, a safer outcome, and, one of the primary uses, that we, we currently use this technology for. Okay.

1528
04:35:32.960 --> 04:35:34.810
Boardroom: That was a very risky moment.

1529
04:35:34.980 --> 04:35:44.560
Boardroom: Thank you for doing it. Theâ€¦ so, and what have you seen in terms of the chain of command? Like, who's in charge of issuing the call for the drone and calling it back?

1530
04:35:45.750 --> 04:36:00.790
Boardroom: So for the DFR technology, you set parameters on what kinds of calls it gets deployed to. So you would get an alert saying, this is a possible DFR call, and your drone operator that would be monitoring that would say yes or no that it's gonna go to that call.

1531
04:36:00.790 --> 04:36:16.840
Boardroom: It can then be redeployed on the way to a different call for service based on, like, if it's on its way to something that's a Priority 2, a Priority 3 call, and a Priority 1 call comes up, or a fire Priority 1 call comes up, you can divert it to that call by the drone operator.

1532
04:36:16.840 --> 04:36:40.719
Boardroom: And then, you know, in the same manner that, if they'reâ€¦ the deployment in the field, so the opâ€¦ it's not just anybody gets to drive a drone thatâ€¦ that because we have drones, youâ€¦ you go through a specific training program and certification program to be able to use it, and so you're gonna get deployed to a certain call where it's, indicated that it's needed. Our scene supervisors, so our sergeants and our watch commanders, would be the ones kind of calling the play.

1533
04:36:40.720 --> 04:36:47.320
Boardroom: If they're like, you know what, go to this call instead, or do something like that, that's typically how we manage specific resources in that manner.

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1534
04:36:48.570 --> 04:36:56.520
Boardroom: And have you seen, any evidence of their redaction protocols, like blurring of faces, that kind of thing?

1535
04:36:57.970 --> 04:37:08.940
Boardroom: So, for instance, in an instance where the, you know, the camera's being used, you scan a bunch of people, you get the one you want, are the non, you know, the non-assailant people, or theâ€¦

1536
04:37:09.110 --> 04:37:13.230
Boardroom: People who don't need to be swept up, are theyâ€¦ are their faces blurred later?

1537
04:37:13.470 --> 04:37:38.459
Boardroom: Private parts, things like that? Yeah, so youâ€¦ well, so we probablyâ€¦ I've not seen any technology that can blur in live time, right? So as you're recording, and I wouldâ€¦ I'd be hesitant to do that, because if you're still trying to develop what's happening on a scene, you wouldn't want to miss evidence because you've blurred. But absolutely, before we release, as long as we're not running up against implications with PRA rules when we release footage and things like that, we're always looking to redact either privacy

1538
04:37:38.460 --> 04:37:43.880
Boardroom: or, you know, things that might embarrass somebody from a video. Okay.

1539
04:37:43.880 --> 04:37:57.649
Boardroom: And then, have we considered the use of, other city departments besides for, law enforcement and emergency response? Like, for instance, I can imagine, those people that have to go look at the tops of trees would appreciate this.

1540
04:37:59.419 --> 04:38:13.489
Boardroom: Question for the City Manager. We have discussed potentially things like that, like, assessing trees, assessing building and safety, code violations, those kinds of things. Okay, thank you.

1541
04:38:13.930 --> 04:38:15.400
Boardroom: Prevent injury, you know?

1542
04:38:15.970 --> 04:38:24.740

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Boardroom: And are you seeing the use of any artificial intelligence analytics or autonomous response at all?

1543
04:38:26.360 --> 04:38:27.210
Boardroom: Apples.

1544
04:38:28.029 --> 04:38:42.080
Boardroom: So the DFR technology allows itâ€¦ it used to be that you had to have line of sight, and there was an operator that actually flew this, so the new technology that's in the DFRs allows it to fly autonomously to the call, based on the coordinates of the location it's going to.

1545
04:38:43.380 --> 04:38:47.529
Boardroom: And then I guess, my last question is, regarding,

1546
04:38:47.939 --> 04:39:00.540
Boardroom: the interactivityâ€¦ have you, have you, have you noted any interactivity with private drone operators? Because believe it or not, I heard about the, an emergent, you know, neighborhood watch drones, even.

1547
04:39:03.279 --> 04:39:14.339
Boardroom: Yeah, as Captain Oilke shared earlier, we were aware of at least two drones that were flying during the event, on campus last week. There are companies that are coming out with technologies to, interrupt

1548
04:39:14.340 --> 04:39:27.120
Boardroom: those drones that are in the air, and we understand that, someoneâ€¦ in the same way we're trying to use this tool to make things safer and more efficient, there may be individuals that use these tools to do damage or spy on people or do things that are against our values.

1549
04:39:27.130 --> 04:39:32.810
Boardroom: Okay, so would that, would that be something we would consider for our deployment, this sort of defensive,

1550
04:39:32.890 --> 04:39:35.549
Boardroom: defensive, tooling.

1551
04:39:36.470 --> 04:39:38.570
Boardroom: Yeah, it's absolutely something we can look into.

1552
04:39:39.290 --> 04:39:40.270

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Boardroom: Alright, thank you.

1553
04:39:41.690 --> 04:39:45.849
Boardroom: Thank you, Councilmember Bartlett. I'm moving on to Councilmember Lenopara.

1554
04:39:46.450 --> 04:39:54.520
Boardroom: Thank you. I have a couple questions. I'm curious if you're looking at Flock as a potential vendor?

1555
04:39:56.880 --> 04:40:12.870
Boardroom: So Flock doesn't produce a DFR or a UAS drone. They do partner with, I'm gonna get this wrong. There is one of the drone companies, Aerodone, that they partner with that connects well with their system, but they are not a drone manufacturer.

1556
04:40:14.180 --> 04:40:21.130
Boardroom: Okay, so are you, I guess, looking at the flock-adjacent system as aâ€¦

1557
04:40:21.130 --> 04:40:35.429
Boardroom: Yeah, so there's only a couple DFR companies in the market, so that is one of the ones that we would probably look at and see how they compared to the other ones, and obviously bring that forward, along with some of the other larger vendors that are in the market for that.

1558
04:40:35.580 --> 04:40:37.860
Boardroom: Okay, thank you.

1559
04:40:38.980 --> 04:40:48.959
Boardroom: I'm also curious, I know that there's still a lot of analysis to be done about this, but I'm curious just generally if you know how much one of these drones costs.

1560
04:40:49.290 --> 04:40:53.370
Boardroom: I understand that we don't have the specific numbers, but just a range.

1561
04:40:53.410 --> 04:40:56.120
Boardroom: Yeah, so the, UASâ€¦

1562
04:40:56.120 --> 04:41:19.310

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Boardroom: Can be in the area of, 5,000 to 9,000 to 14,000 and or upwards, depending on, how big the model is and what the capabilities are, their flight time, how quiet they are, how long the batteries are, things like that. The, DFR systems, there's the station where it docks and lands and charges, and, then there's also the drone itself.

1563
04:41:19.310 --> 04:41:44.280
Boardroom: and the spare batteries and things like that, and the platforms. We've seen, prices range from $60,000 to $90,000 to, $125,000, I mean, it really depends on how long of a contract you get into, how many stations you're gonna have, and things like that. And whether you buy a multiple of one, there's some vendors that, you can buy a replacement plan, so as part of your yearly cost.

1564
04:41:44.280 --> 04:42:08.569
Boardroom: you pay a little bit more, but at year X, Y, or Z, you get a brand new upgraded model. You know, there's allâ€¦ there's a lot of different ways that vendors do this work. There's also a lot of vendors that will, step into a one-year free trial period with you for these technologies and things like that. And so, the work on us is to kind of try to

1565
04:42:08.570 --> 04:42:29.239
Boardroom: bring all that information together into one place and try to hit the, like, how the data is held, what the costs are, you know, how long the contract periods would be, you know, is it a lease or a purchase program, what is a replacement plan? You know, and really try to bring all of that forward so you can see everything together and make an informed decision about whether you want us to move forward and with what.

1566
04:42:31.280 --> 04:42:32.879
Boardroom: Thank you,

1567
04:42:32.940 --> 04:42:51.600
Boardroom: And then my last question is, kind of following up on some of Councilmember O'Keefe's questions around San Mateo and some of the other case studies that you're looking into, and if you have any information about what those jurisdictions have done to balance effectiveness with community concerns around surveillance and safety and privacy.

1568
04:42:52.790 --> 04:42:57.809
Boardroom: Yeah, I can just say that the better job the communityâ€¦ the agency does with

1569

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04:42:58.050 --> 04:43:21.970
Boardroom: checking with the community first, with building use policies that are clear, that are public, with having a transparency portal that provides the information that the community needs, and doing a good job once we start using a technology, talking about it through our platforms, and providing data and information about it, the better it seems to have landed in jurisdictions. I have not heard of a specific jurisdiction that launched DFR

1570
04:43:21.970 --> 04:43:37.810
Boardroom: and that there was then an outcry about the use of DFR. That doesn't mean that that's not the case. My initial research has not uncovered that. Most places where it's in place, there's been a marked improvement in, actually, the delivery of service, and people like that.

1571
04:43:40.130 --> 04:43:44.959
Boardroom: Thank you. Those are my questions. Thank you. Do any of the other council members have questions?

1572
04:43:46.600 --> 04:44:02.129
Boardroom: Okay, I just have a couple left, because we already asked you a million questions, soâ€¦ So, I know you mentioned that some cities are starting to charge for use of the drones. I'm curious, well, have we had to pay so far?

1573
04:44:02.780 --> 04:44:25.350
Boardroom: No, we've been fortunate so far that theâ€¦ we haven't had to utilizeâ€¦ so, if youâ€¦ if you imagine if that other jurisdiction that has a UAS program is busy with theirs, then we wouldâ€¦ and we called for it, it'd be a no. We've been fortunate that we've been able to call another jurisdiction, or call the jurisdictions that aren't currently charging, so that we, you know, we've avoided that to date. But if I had to choose between the risking an officer's

1574
04:44:25.350 --> 04:44:30.989
Boardroom: safety or pains for a drone, I'm gonna, you know, I'm gonna be asking to pay for the drone. Soâ€¦

1575
04:44:31.060 --> 04:44:44.310
Boardroom: We're trying to get ahead of it as everybody's facing these budget constraints and the staffing constraints. They're gonna be less available to come to us and help us. Thank you, that's helpful. And then, the other piece of using other

1576
04:44:44.310 --> 04:44:52.640

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Boardroom: jurisdictions, dronesâ€¦ I'm curious if we've ever had an access issue where we weren't able to get access to a drone when we needed access.

1577
04:44:54.950 --> 04:45:15.650
Boardroom: So generally, agencies are, are trying, you know, willing to help when they can. We have had a couple of incidents where we've had significant delays, in cases where, in one case where we, were serving a high-risk warrant in another city, and a suspect we believed to be armed fled into a house, and we had a significant delay, and that time

1578
04:45:15.670 --> 04:45:31.660
Boardroom: increases risk, in that the longer we had to wait, it was about an hour and a half, two hour wait, for the drone to arrive, then created additional risk for the community, for our officers on scene, and for the safe resolution of that incident.

1579
04:45:31.940 --> 04:45:51.129
Boardroom: Thank you, that's very helpful, appreciate it. And then just for the City Manager, I know you mentioned just a couple of instances that other departments might use the drones, but could you elaborate? Are there any other instances what that, drone usage was discussed, and if you can also share under what conditions? Yeah, I haveâ€¦ actually have it.

1580
04:45:51.130 --> 04:45:54.579
Boardroom: Mayor, discuss with the other departments what use cases there might be.

1581
04:45:54.580 --> 04:46:01.069
Boardroom: But, you know, I couldâ€¦ the ones that I mentioned and the ones that I think Councilmember Bartlett was alluding to areâ€¦

1582
04:46:01.120 --> 04:46:06.189
Boardroom: Certain circumstances where there might be, worker safety or worker ease of access.

1583
04:46:07.010 --> 04:46:14.710
Boardroom: Considerations to think through, and whether a drone could go up there and put a visual,

1584
04:46:14.860 --> 04:46:22.519

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Boardroom: You know, have a visibility into issues that we wouldâ€¦ somebody would have to, like, climb the outside of a building, or climb up a tree, or, you know.

1585
04:46:22.840 --> 04:46:25.580
Boardroom: Do things that would be challenging for staff to do.

1586
04:46:27.420 --> 04:46:42.679
Boardroom: Thank you, that's helpful. Okay, back to Councilmember Blackaby, orâ€¦ One very last thing. On the deployment of the drone, were you thinking, would this be sworn personnel, non-sworn personnel, dispatcher? How would that work, on that piece? Thank you.

1587
04:46:42.860 --> 04:47:05.819
Boardroom: So far, from the general conversations I've had, it seems like most agencies are using sworn personnel because they have to assess what they're observing. I have heard of community service officers, analysts in real-time crime centers, you know, I think Dave Sprague and I were talking a little bit about, like, he was, you know, trying to assess whether he would want to have someone that had some fire training.

1588
04:47:05.820 --> 04:47:20.470
Boardroom: to be able to look and see what they're observing. So that's one of the things we would be working out, as we step into this process. You know, another interesting way we could use some of this technology is if we have a UAS deployed for a fire call.

1589
04:47:20.560 --> 04:47:33.949
Boardroom: And, there could be a fire personnel standing next to our drone operator, right, to look at the screen, because they're just reading the screen and what the screen's telling them, that might be able to help us bridge that gap, right, until we figured out exactly what we needed.

1590
04:47:35.270 --> 04:47:46.769
Boardroom: Thank you. Councilmember Trekup, did you have an additional question? Yeah, actually, that prompted a question I had around certification. Could you speak to what, like.

1591
04:47:47.090 --> 04:47:56.389
Boardroom: I understand that FAA certification may be required for certain types of drones. Can you speak toâ€¦ would it be on aâ€¦

1592
04:47:56.390 --> 04:48:15.709

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Boardroom: per use basis, like, or annually, what's the recertification period? What's the cost of that? Also, if there are any operator, specific certifications that may be needed to operate certain categories of drones.

1593
04:48:16.040 --> 04:48:40.979
Boardroom: Yeah, there are some specific operator requirements that you have to do. A lot of the vendors for the DFRs build in the costs for all the certification processes in the price tag they give you, and they are, you know, have worked through those processes and commit to, you know, not letting go of the process and absorbing a lot of the training requirements that are part of that. We are aware and have started to kind of capture the different

1594
04:48:40.980 --> 04:48:52.059
Boardroom: licensing requirements that individual operators would have to be under, and what kind of schedule that would be on, so that we're clear what our ongoing training costs would be, you know, to support this program.

1595
04:48:55.140 --> 04:48:57.410
Boardroom: Okay, thank you. Any other questions?

1596
04:48:58.100 --> 04:49:01.209
Boardroom: Okay, is there public comment on this item?

1597
04:49:06.370 --> 04:49:21.099
Boardroom: Are there folks online, too? Justâ€¦ we've got someone making their way up, but I'm curious to know. If you're participating remotely, and you'd like to give public comment on item 31 regarding unmanned aerial systems and dronesâ€¦

1598
04:49:21.240 --> 04:49:24.550
Boardroom: Please raise your hand on the Zoom.

1599
04:49:24.690 --> 04:49:27.320
Boardroom: Application.

1600
04:49:29.690 --> 04:49:39.080
Boardroom: Okay, so, it seems like we spent years debating cameras when people

1601
04:49:39.110 --> 04:49:55.419

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Boardroom: are on camera all the time, like, dozens of times during a day, and so, as has been said, drones are now common, and are becoming more common than they were at the turning point of it. So, drones like camera,

1602
04:49:55.480 --> 04:50:11.690
Boardroom: cameras have their purposes, such as has been stated in the disaster situations, de-escalation, crisis, and hostage situations, and understanding, scoping out a scene. So, oneâ€¦

1603
04:50:11.930 --> 04:50:26.930
Boardroom: question, I'm thinking, is the depersonalization. I understand about sending a drone into a crisis situation or a hostage situation. I'm wondering if these drones have cameras on it, so that you can see the person.

1604
04:50:26.930 --> 04:50:33.239
Boardroom: That you're communicating with? Because there's something eerie about the fact that you're negotiating with a robot.

1605
04:50:33.600 --> 04:50:35.379
Boardroom: Instead of a human being.

1606
04:50:36.580 --> 04:50:52.780
Boardroom: And, of course, I'm concerned about the tracking, but it was stated that it would start only at the site, so other unintended people wouldn't be picked up. I'm concerned that we protect people who are not related to the situation.

1607
04:50:52.780 --> 04:50:56.630
Boardroom: And so, if you're looking, using a drone.

1608
04:50:57.060 --> 04:51:02.110
Boardroom: to find a suspect that's fleeing, how do you notâ€¦

1609
04:51:02.440 --> 04:51:06.910
Boardroom: get other people involved. How are other people not surveilled?

1610
04:51:07.200 --> 04:51:15.060
Boardroom: And who can access this information? I mean, the last remaining privacy that we have is in our homes, maybe.

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1611
04:51:15.060 --> 04:51:27.900
Boardroom: And so, can you stand on your patios and your porches, or yourâ€¦ can you keep your windows open? Are you in danger of being surveilled as this drone is looking for somebody?

1612
04:51:28.390 --> 04:51:38.349
Boardroom: So these, these are the concerns I have, and also, who is going to be able to access the footage? Thank you. Thanks, Carol. Let's go to the folks online.

1613
04:51:38.620 --> 04:51:45.369
Boardroom: Okay, the first commenter for item 31 is a phone number ending in 211.

1614
04:51:49.750 --> 04:51:54.429
1510****211: Iâ€¦ Good evening. I think it's a great idea, great idea.

1615
04:51:54.590 --> 04:52:05.439
1510****211: Our great company, East TV, caused two murders, one in Telegraph and one in Durant Avenue. And actually, both people were prosecuted. It also kept hundreds of people in the area safe.

1616
04:52:05.540 --> 04:52:08.619
1510****211: Because we have 24-hour cameras at Telegraph.

1617
04:52:08.760 --> 04:52:17.850
1510****211: and Durant, and one in Telegraph, and Blake. And criminals don't want to, to be seen, so we never had robbery in our whole.

1618
04:52:18.030 --> 04:52:35.590
1510****211: 50 years' worth of business. That's a good idea. Meanwhile, I'm sorry about harsh comment I made it early, but we need to go forward. We need to get ECU back in a physical location. We're doing business. We'll never go out of business. I appreciate your help, and have a very good evening. Take care. Have a good night.

1619
04:52:35.980 --> 04:52:38.610
Boardroom: Thank you. Okay.

1620
04:52:42.490 --> 04:52:46.800
Boardroom: Next speaker is Cheryl Davila, former council member.

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1621
04:52:50.620 --> 04:52:52.890
Boardroom: Yeah, so, Iâ€¦

1622
04:52:53.730 --> 04:53:03.780
Cheryl Davila, Former Councilmember, Founder CEMTF: Don't think that this is a great idea. For one, if you're gonna use Flock, Flock is notorious for, and in the news.

1623
04:53:04.250 --> 04:53:12.050
Cheryl Davila, Former Councilmember, Founder CEMTF: currently, because they cooperate with ICE, and you won't own the data.

1624
04:53:12.280 --> 04:53:15.800
Cheryl Davila, Former Councilmember, Founder CEMTF: Soâ€¦ that's a problem.

1625
04:53:15.980 --> 04:53:21.480
Cheryl Davila, Former Councilmember, Founder CEMTF: And why do we needâ€¦ if you only have 6 uses in 365,

1626
04:53:21.880 --> 04:53:28.480
Cheryl Davila, Former Councilmember, Founder CEMTF: days of the year, why do you even need it? That's not reallyâ€¦

1627
04:53:29.700 --> 04:53:32.730
Cheryl Davila, Former Councilmember, Founder CEMTF: worth the money, it seems.

1628
04:53:33.260 --> 04:53:36.300
Cheryl Davila, Former Councilmember, Founder CEMTF: So, I don't think that's a great idea, andâ€¦

1629
04:53:36.520 --> 04:53:43.909
Cheryl Davila, Former Councilmember, Founder CEMTF: free Palestine, and don'tâ€¦ this is, like, just what,

1630
04:53:44.050 --> 04:53:46.509
Cheryl Davila, Former Councilmember, Founder CEMTF: I don't want to say that man's name.

1631
04:53:46.670 --> 04:53:54.039

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Cheryl Davila, Former Councilmember, Founder CEMTF: Who knit yawn, backwards, butâ€¦ or mixed up, which he is.

1632
04:53:54.300 --> 04:54:06.250
Cheryl Davila, Former Councilmember, Founder CEMTF: or it's not real, does. They surveil people, and they use drones to kill people, and it, yeah.

1633
04:54:06.370 --> 04:54:09.839
Cheryl Davila, Former Councilmember, Founder CEMTF: Like, why taking on the same tactics?

1634
04:54:10.440 --> 04:54:16.560
Cheryl Davila, Former Councilmember, Founder CEMTF: not a good idea. We'reâ€¦ we're Berkeley citizens, residents.

1635
04:54:16.970 --> 04:54:21.130
Cheryl Davila, Former Councilmember, Founder CEMTF: We're not enemy combatants. You don't need drones.

1636
04:54:21.680 --> 04:54:28.900
Cheryl Davila, Former Councilmember, Founder CEMTF: Free Palestine, and free yourselves from theâ€¦ Police Industrial Complex.

1637
04:54:32.260 --> 04:54:33.810
Boardroom: Thank you. Okay, that's it.

1638
04:54:34.410 --> 04:54:50.449
Boardroom: Okay, comments from our Council members, starting with Councilmember Taplin. Yes, thank you very much, and thanks to all my colleagues. I am very committed to the efficacy and efficiency of the City services and programs.

1639
04:54:50.460 --> 04:55:03.889
Boardroom: So I would definitely want to see how our policies and the technologies, both inform one another and evolve over time, so that we can ensure that we're using all of our tools in an optimal way, to the best of our abilities to increase

1640
04:55:04.190 --> 04:55:15.210
Boardroom: our delivery of services and improve all of our operations. Iâ€¦ I know thatâ€¦ I know we're still in the beginning of the process, but, just for my part, I'mâ€¦

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1641
04:55:15.380 --> 04:55:19.399
Boardroom: I'm way more interested in the kind ofâ€¦

1642
04:55:19.750 --> 04:55:25.899
Boardroom: targeted scenarios where these would be very helpful, more so than, you know, using these to

1643
04:55:26.070 --> 04:55:39.359
Boardroom: surveil large crowd events, unless there was some sort of, you know, critical incident that needed to be addressed. I just don't know if that's a very effective use of the resource to just fly them around during, you know, the psalmist roll.

1644
04:55:42.780 --> 04:55:55.899
Boardroom: But I'm, I really appreciate the discussion tonight, and I want to thank, both departments for being here to walk us through some of the potential uses, and also share what they've learned,

1645
04:55:55.980 --> 04:56:06.209
Boardroom: Through theâ€¦ through their interactions with other agencies. With that, I move adoption of the item. Second. Second. Okay, Councilmember Blackaby?

1646
04:56:06.860 --> 04:56:13.250
Boardroom: Thanks, Madam Mayor, and again, thank you to Councilmember Taplin for authoring this. Thank you for our public safety team for being here and for

1647
04:56:13.250 --> 04:56:36.789
Boardroom: their support and their work on this, and, as we embark on the process, because this is just the kind of beginning of, of, of, if we pass this item, the beginning of what's going to unfold here. I'll note that under, BMC 2.99, if we refer this to the city manager, under that, under that legislation, we're called upon to establish a thoughtful process regarding the procurement and use of surveillance technology.

1648
04:56:36.790 --> 04:56:47.439
Boardroom: that carefully balances the city's interest in protecting public safety with its interest in protecting the privacy and civil rights of its community members. So, again, this process isâ€¦

1649
04:56:47.440 --> 04:57:05.000

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Boardroom: designed to try and strike that balance, and to begin a public process where we all can talk and explore. Some of these limitations, like Councilmember Taplin, just identified. Councilmember O'Keefe had also highlighted it. Things, you know, there might be things that are very community-specific, where we have

1650
04:57:05.000 --> 04:57:18.149
Boardroom: concerns, and we need to figure all that out, and I look forward to kicking this process off to do it. It is a proactive process. Again, in the item from Councilmember Taplin, we want to establish a thoughtful, community-informed framework.

1651
04:57:18.150 --> 04:57:29.559
Boardroom: so that we ensure that any future deployment of drones, whether by the police department, fire department, or other city divisions, aligns with Berkeley's values of racial justice, civil liberties, environmental responsibility. So I think, again, Iâ€¦

1652
04:57:29.560 --> 04:57:45.700
Boardroom: I'm encouraged by what we heard tonight. I know the Chief and her team and the Fire Department take that responsibility seriously and take that balance seriously, and that's going to be important as we move forward. So, thank you again, Councilmember Taplan, for bringing this, and I look forward to supporting the item tonight.

1653
04:57:46.870 --> 04:57:49.419
Boardroom: Councilmember O'Keefe is next in line.

1654
04:57:50.420 --> 04:58:04.500
Boardroom: Nice. Just a procedural question first. So I'm happy to support the item. My understanding is, you know, this is a referral to the City Manager, so I have things I would like to be addressed in whatever comes back, and Iâ€¦ if I just kind of say them, and thenâ€¦

1655
04:58:04.710 --> 04:58:05.860
Boardroom: Hopefully they'llâ€¦

1656
04:58:05.910 --> 04:58:21.409
Boardroom: everyone will hear them. Is thatâ€¦ is that appropriate? Okay, great. I'll support the item as long as these things are taken seriously. So, I'm gonna start with, the positive. Things I love about this, and I really hope we can, make a good solid-use policy that, allows this.

1657
04:58:21.410 --> 04:58:44.869

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Boardroom: Search and rescue, it's great, great use. I really like the saving or drowning person scenario. Iâ€¦ that's why I specifically asked about it. My husband is actually a kite surfer, and I worry a lot. He's a great swimmer, but you never know. And so I think having that, that's a really powerful thing, and I actually think we should considerâ€¦ this is too detailed for right now, but I think we should consider having a droneâ€¦ dedicated drone just at the marina for thatâ€¦ for that. I think that would be worthâ€¦

1658
04:58:44.930 --> 04:58:59.120
Boardroom: you know, the cost of a second one, because then, you know, it wouldn't take 2 minutes to get there, which could make a difference. So, I love that. Vehicle pursuits makes a lot of sense, that's a clear safety win. Large events, I brought that up earlier.

1659
04:58:59.280 --> 04:59:06.449
Boardroom: I'm not necessarily in favor of that, but I think it would be good to, explore that, and the reason I'mâ€¦

1660
04:59:06.800 --> 04:59:08.590
Boardroom: I want to talk about it is.

1661
04:59:08.920 --> 04:59:30.669
Boardroom: it seems like it could be useful, to improve security at a big event, but I think we have to be really careful about, the line between, like, the Solana stroll and a protest. And I don't think that line is always super clear, and I really, I don't think we should allow drones at a protest. I think they would have,

1662
04:59:30.670 --> 04:59:36.340
Boardroom: potentially have a, like, a chilling effect on people's ability to exercise their freedom of speech, and that was aâ€¦

1663
04:59:36.340 --> 04:59:53.389
Boardroom: That was for the lawyers on the council. That's a real concern. So, if we did use them for, like, crowd control or crowd safety, we want to be really careful to, make sure we're not including protests. I think we should not allow them for any kind of free speech activity.

1664
04:59:53.770 --> 05:00:13.319
Boardroom: Unless there was a really big safety risk. Anyway, I want that in there, addressed. And then, the anti-drone action makes a lot of sense. I think that's the onlyâ€¦ if that's the only tool we have, and that's a new kind of threat, great, then that makes a lot of sense, so

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that should be used for that. So those are my yes toâ€¦ yes to drones comments. I have concerns.

1665
05:00:13.320 --> 05:00:21.460
Boardroom: First one is, the microphone, which I brought up. I, I think we really need to be really thoughtful about this. Some of the use casesâ€¦

1666
05:00:21.460 --> 05:00:32.830
Boardroom: that were described made a lot of sense. Hostage negotiation, you gotta communicate, that's clearly a win. A medical call in order to communicate back and forth with somebody while help is on the way.

1667
05:00:32.830 --> 05:00:44.690
Boardroom: Other uses, mentioned, like, aiding and evacuation and all that seemed fine, although I think that's more of the speaker. So, speaker's fine. I don't have a problem with the speaker, as long as it's not annoying, butâ€¦

1668
05:00:44.690 --> 05:01:00.989
Boardroom: Those cases all seemed fine, butâ€¦ exactly, yeah, don't, yeah, be careful. So, yeah, Iâ€¦ I can't think of that many other uses where the microphone would be, I think, justified.

1669
05:01:01.050 --> 05:01:02.190
Boardroom: We'reâ€¦

1670
05:01:02.750 --> 05:01:12.390
Boardroom: We don't live in a world right now where there's a lot of law enforcement audio surveillance. There's none as far as I know, except maybe, I guess, the body cameras pick up audio, but,

1671
05:01:14.980 --> 05:01:30.219
Boardroom: I mean, like, Alexa and Siri are audio surveillance, but that law enforcement is a totally different thing, so I think we need to be very careful. Video surveillance is normalized, but audio surveillance is not, and I want to be really, really thoughtful about how and when we allow that.

1672
05:01:30.350 --> 05:01:36.989
Boardroom: Similarly, I'm concerned about the, the, the heat signature.

1673
05:01:37.150 --> 05:01:53.429

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Boardroom: thing. I think, you know, I don't really want a drone to be able to see me in my house unless my house is on fire, in which case it's fine. So I think we need to be really careful about when that particular, technology is allowed, just only when it's clearly, in the best interest of

1674
05:01:53.740 --> 05:01:56.310
Boardroom: Of the person it's lookingâ€¦ looking for.

1675
05:01:56.400 --> 05:02:15.720
Boardroom: And then, you know, speaking of being normalized, I just want to say, in general, I don't believe we should be using these for routine police calls. I do understand the argument that it saves police time and has the potential to de-escalate a situation, by getting information before the officer arrives. That makes a lot of sense, and I think that has value.

1676
05:02:15.720 --> 05:02:34.909
Boardroom: But the other side of that is it creates a new and extremely unsettling experience for people who, have the police called on them for, you know, for no good reason. And nobody likes this, but I know that this is, a great source of pain and anxiety, especially for people of color.

1677
05:02:34.990 --> 05:02:36.050
Boardroom: Andâ€¦

1678
05:02:36.320 --> 05:02:48.229
Boardroom: you know, nobody likes it, but the question I have, and this is actually a question because I have not personally experienced this, but the question I have is, is itâ€¦ is it actually better to have

1679
05:02:48.360 --> 05:02:50.540
Boardroom: A drone come check you out.

1680
05:02:50.540 --> 05:03:15.530
Boardroom: And here's my thinking. Oh, shit. Really? You can haveâ€¦ Can I have one more minute? I'll say it quick, thanks. Councilmemberâ€¦ I never, I neverâ€¦ Come on! Okay, thank you, thank you, thank you. I'll be quick, though. I justâ€¦ I'm concerned that we're trading one bad experience for another. I think that the, you know, our police are very well trained, and they don't come with their guns out for no reason.

1681
05:03:15.530 --> 05:03:18.329
Boardroom: reason, as far as I know. And soâ€¦

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1682
05:03:18.330 --> 05:03:33.149
Boardroom: typically, I'm imagining if the police get a bogus call and the person's obviously not doing anything, it'sâ€¦ the interaction is going to be very human. And so, it sucks, but at least it's a human and a human. And replacing that with a, carol used the word,

1683
05:03:33.150 --> 05:03:40.890
Boardroom: what did sheâ€¦ Depersonalization, which I thought that was a really good word. And I think to depersonalize that interaction actually makes it worse.

1684
05:03:40.940 --> 05:04:03.759
Boardroom: And I hate the idea of a person just minding their own business, and then this police drone is just staring at them, and they don't get to, like, have a conversation about it, because the microphone's off. And, I justâ€¦ I'm concerned about that, and I think these are really great for some specific cases, but I personally don't want them to be used for routine calls, even though I get that it wouldâ€¦ it would beâ€¦ have a lot of benefits.

1685
05:04:03.760 --> 05:04:06.009
Boardroom: Those are my comments. Thank you for letting me going over.

1686
05:04:06.130 --> 05:04:08.450
Boardroom: Thank you, Councilmember Traika.

1687
05:04:09.210 --> 05:04:26.910
Boardroom: I'm glad I gave Councilmember O'Keefe one of my minutes, because she's said a lot of the things Iâ€¦ well, I just wanted to echo, in general, want to associate myself with those comments, those,

1688
05:04:27.510 --> 05:04:38.609
Boardroom: her concerns are some of my concerns, and vice versa, theâ€¦ the use cases that, she supports, Iâ€¦ I support as well.

1689
05:04:38.610 --> 05:04:52.720
Boardroom: I wanted to just start out again the five, buckets I listed. That is my North Star for, when something comes back, how I'm going to be evaluating this.

1690
05:04:52.720 --> 05:05:07.670

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Boardroom: Again, that's security, privacy, coordination between the various departments, transparency and community engagement, and then making sure that we do not procure technology that,

1691
05:05:09.700 --> 05:05:24.419
Boardroom: is being built by a vendor that may, be also selling that technology, or allows the technology to end up in the wrong hands. And, withâ€¦

1692
05:05:24.420 --> 05:05:31.899
Boardroom: the drones themselves, that is easier to track than parts, so Iâ€¦ I am, Iâ€¦ I know this isâ€¦

1693
05:05:31.960 --> 05:05:37.550
Boardroom: Easier said than done, but I feel very strongly about, this piece.

1694
05:05:37.730 --> 05:05:43.590
Boardroom: Look, the technology is here. We have a variety of

1695
05:05:43.780 --> 05:06:03.680
Boardroom: neighboring jurisdictions where they're currently in use. And I understand that maybe this is an item that, some did not expect to come to us, this quickly, but I feel like we do need to,

1696
05:06:04.310 --> 05:06:22.270
Boardroom: look into it, head on. We don'tâ€¦ Iâ€¦ Iâ€¦ I would hate for us to be the last jurisdiction to adopt it wheneverâ€¦ when theâ€¦ the chapter has already been written,

1697
05:06:22.590 --> 05:06:32.940
Boardroom: Because I think we can really shape, whatever policy we adopt to be, the guiding, North Star.

1698
05:06:33.320 --> 05:06:36.770
Boardroom: And I would, suggest,

1699
05:06:37.200 --> 05:06:44.099
Boardroom: I, like, my feeling is, in terms of the range of options that come back to us.

1700
05:06:44.180 --> 05:06:56.870

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Boardroom: I would support making them as broad as possible, not necessarily because I would feel comfortable supporting the full range of options, but just so that we have a better understanding of the trade-offs

1701
05:06:56.870 --> 05:07:10.779
Boardroom: up front. And, that includes if the forestry department, wants to use it for tree trimming, and whatever else. Let's put it in there, because,

1702
05:07:10.940 --> 05:07:29.360
Boardroom: I think it will be important, the more, departments want these, the more, effort it will probably take to resolve potential conflicts, and just work out an inter-jurisdictional, interdepartmental policy. And I'd rather have that up front.

1703
05:07:29.360 --> 05:07:37.460
Boardroom: then, you know, have to make changes later. So I thinkâ€¦

1704
05:07:40.040 --> 05:07:56.299
Boardroom: I think those are all my comments, and I will be supporting the, the referral tonight, and again, my gratitude to Councilmember Taplin and everyone who has, shaped this to what it is right now. Thank you. Councilmember Bartlett.

1705
05:07:56.710 --> 05:08:02.109
Boardroom: Thank you. And, I was just gonna run through a couple of just thoughts I had.

1706
05:08:02.830 --> 05:08:05.909
Boardroom: Iâ€¦ I definitely,

1707
05:08:06.170 --> 05:08:11.660
Boardroom: I think there's a good use case here for environmental markâ€¦ environmental monitoring around fire.

1708
05:08:11.850 --> 05:08:14.590
Boardroom: The,

1709
05:08:15.020 --> 05:08:30.689
Boardroom: you know, a safer form of pursuit. We've had those incidents where, you know, people got hurt, from these high-speed chases, so this

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is a really interesting way to maybe alleviate that risk, while achieving the outcome as well.

1710
05:08:31.240 --> 05:08:33.190
Boardroom: Let's see, the,

1711
05:08:34.070 --> 05:08:45.419
Boardroom: Response times, of course, being great, greatly reduced in time. The issues we want to keep in mind, and I think a lot of this, a lot of this is probably covered by our existing policies that we.

1712
05:08:45.420 --> 05:08:55.380
Boardroom: painstakingly went through, those years ago, with Councilmember Taplin, around, around, privacy and all those elements,

1713
05:08:55.530 --> 05:08:57.830
Boardroom: The, so the data management.

1714
05:08:57.950 --> 05:09:05.679
Boardroom: It's gonnaâ€¦ it's gonna be important to get right, you know, how toâ€¦ who retains it, who controls it, the chain of custody.

1715
05:09:05.790 --> 05:09:14.259
Boardroom: So we can actually, you know, make sure that we are able to achieve ourâ€¦ our goals, prosecutorially-wise.

1716
05:09:14.360 --> 05:09:20.429
Boardroom: And, an acute deployment, as opposed to, sort of, continuous passive surveillance.

1717
05:09:20.600 --> 05:09:22.759
Boardroom: I don't think anyone here wants aâ€¦

1718
05:09:22.800 --> 05:09:28.700
Boardroom: just a roving eye overhead. And, equity of coverage came up in my research.

1719
05:09:28.730 --> 05:09:47.900
Boardroom: As a criticism, make sure that we're getting deployed, fairly everywhere. And of course, you know, a good indemnification policy, as a city attorney, probably get in there, and work out, because these things

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hit power lines, and they can cause some damage, so we want to make sure that we're not on the hook.

1720
05:09:47.930 --> 05:09:53.149
Boardroom: For this stuff. Those are all my points, really, honestly. I think,

1721
05:09:53.290 --> 05:10:01.469
Boardroom: I think we've done a lot of thinking around similar technologies, so we're kind of braced for this. But toâ€¦ but to keep theâ€¦

1722
05:10:01.710 --> 05:10:18.430
Boardroom: the policy open to the evolutions of the technology, because this is really justâ€¦ we're just one step, up from the Radio Shack quadcopters, right? And step by step, we see, if you watch the activity in Ukraine, you see the evolution of drones happening every month.

1723
05:10:18.480 --> 05:10:27.669
Boardroom: And so, we have to be ready to just, you know, to brace ourselves and handle whatever comes our way. Thank you.

1724
05:10:28.160 --> 05:10:30.300
Boardroom: Thank you. Councilmember Kesarwani?

1725
05:10:31.060 --> 05:10:44.780
Boardroom: Thank you very much, Madam Mayor. I want to begin by thanking Councilmember Taplin for bringing this item forward, and I'm very pleased to be a co-sponsor. Thank you, Chief Lewis and Captain Okies, for the presentation.

1726
05:10:44.780 --> 05:10:56.130
Boardroom: And, I just want to note that, some members of the Council had an opportunity to receive a presentation and, see a demonstration of

1727
05:10:56.130 --> 05:11:11.709
Boardroom: one of these, drones that we may be acquiring, you know, assuming this item passes tonight. And I think that, as Captain Okies, as you, as you noted, there's tremendous potential here, given our,

1728
05:11:11.730 --> 05:11:14.080
Boardroom: Staffing,

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1729
05:11:14.430 --> 05:11:25.099
Boardroom: shortage that we face, to be able to leverage the drone and, keep our officers safe. You know, in instances where we don't fully know the circumstances.

1730
05:11:25.100 --> 05:11:45.119
Boardroom: Around a call. I didn't think of this question until now. I know this is technically not the question time, but, Chief, when you said that we had used a drone 6 times last year, if we were to acquire a drone, I'm expecting that that number would increase, correct?

1731
05:11:45.550 --> 05:11:59.760
Boardroom: And in terms of use cases, and I want to thank my colleagues, because there has been so much thoughtful questioning about, you know, securing the privacy of members of the public, and

1732
05:11:59.760 --> 05:12:22.879
Boardroom: how we would use the drones, and so I just want to clarify, you know, once we developâ€¦ would you expect with this use policy that we would have some framework around instances in which we would be using the drone? Because it seems like there's some concern that this would, you know, maybe just drastically replace the human response, and so I wanted to get your sense of

1733
05:12:22.880 --> 05:12:25.429
Boardroom: How you think the use policy might cover that.

1734
05:12:27.840 --> 05:12:34.460
Boardroom: Yeah, I think, the way that it has one piece of value is you never have to send

1735
05:12:34.460 --> 05:12:59.429
Boardroom: a uniform response. You can send a mental health crisis worker or something else instead. Like, that's one use, where you'd send a different individual rather than a police officer. And then there's other instances where it's just providing you information so that you can come in a safer way, or reduce risk until you can be there and resolve, so you are engaged in a connected way.

1736
05:12:59.430 --> 05:13:24.119
Boardroom: There are probably plenty of circumstances where the DFR is going to provide us information, and the person on the ground that we then interact with, it never even knows that that's there, and that was part of the process, right? We're just able to respond in a safer way,

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because we have information by being able to observe as we approach. Okay, okay, great. And I think, and no one has suggested this, but

1737
05:13:24.730 --> 05:13:28.580
Boardroom: I just want to say, you know, this is not a customer service chatbot.

1738
05:13:28.580 --> 05:13:50.870
Boardroom: You know, this is a very sophisticated technology, that, that is going to provide, you know, actionable intelligence that can help us deploy our costly and, hard-to-hire and hard-to-retain officers, as

1739
05:13:50.870 --> 05:14:01.099
Boardroom: as, smartly as possible in dangerous circumstances. So, you know, I'm really excited about the potential for this, and Captain Okies, you talked about

1740
05:14:01.150 --> 05:14:18.679
Boardroom: You use the stat 20%. Can you just clarify? I think you were talking about a 20% reduction in instances when you would need to send an officer out, is that correct? It is, and again, those are the use cases where, we get a call for service.

1741
05:14:18.750 --> 05:14:26.919
Boardroom: That just either proves not so, calls for service that don't require a police officer to respond. So it's not that the drone

1742
05:14:26.920 --> 05:14:48.539
Boardroom: serves as a replacement for a human being, it's more along the lines of it's separating out a call for service that requires a police response from one that doesn't. Okay, because we get a lot ofâ€¦ you know, I expect that we get a lot of calls for, you know, suspicious activity, right? Where it's not really clear, if this is actually a danger, and so being able to

1743
05:14:48.540 --> 05:14:50.370
Boardroom: Send thisâ€¦

1744
05:14:50.660 --> 05:15:00.170
Boardroom: technology in lieu of the individual, or of the human response, that's what we're talking about, potentially. Andâ€¦

1745
05:15:00.360 --> 05:15:09.240

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Boardroom: And I really, I wanted to underscore, I think, something that I found very interesting in the demonstration that I was able to attend, and what you said tonight, is thisâ€¦

1746
05:15:09.240 --> 05:15:33.099
Boardroom: this ability to use the thermal imaging for search and rescue efforts. I mean, this is just, like, the ability hereâ€¦ a human being just cannot do what the technology is able to do, in terms of being able to detect, oh, that a certain individual was on this block within a certain period of time because of that thermal imaging. So, I wanted to note that as well.

1747
05:15:33.100 --> 05:15:43.349
Boardroom: So having sort of talked about a lot of these benefits to, preserving staff resources when they are truly needed, to giving us

1748
05:15:43.440 --> 05:15:52.830
Boardroom: tools to, I think, fight crime more efficiently and effectively. I do want to acknowledge what I heard from my colleagues around some of the,

1749
05:15:53.060 --> 05:16:10.470
Boardroom: data and operational concerns, that I expect we will resolve when we work on the use policy. So itâ€¦ and I just want to note some of the points that were made, something about, you know, consideration of when the microphone is used.

1750
05:16:10.840 --> 05:16:18.779
Boardroom: consideration of who is operating the drone. And, you know, another sort of question or thought I have is.

1751
05:16:18.780 --> 05:16:37.950
Boardroom: it seems like our dispatch, the people who answer the calls, are also going to probably require some kind of training, because I imagine this is going to flow through our entire emergency response system. I don't know if you have thoughts on that, like, you know, will dispatch need to make those determinations of, oh, is a drone more appropriate than

1752
05:16:38.400 --> 05:17:01.739
Boardroom: you know, an officer, orâ€¦ Yeah, that's not the traditional model. The traditional model is you have somebody who is trained or has the experience to be actually operating it, while your dispatchers are gathering information and or dispatching, actual police units. Someone else isâ€¦ someone else is navigating as a drone operator, is watching,

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and seeing and reserving and saying, hey, you can clear that call, you don't need an officer, orâ€¦

1753
05:17:01.740 --> 05:17:26.709
Boardroom: routes, units responding, you know, coming in this direction. There's, like, a lot of navigateâ€¦ pieces that you would require some level of expertise to be able to do that, but it's outside the traditional realm of our dispatch responsibilities. Okay. And we know that we are, busy supporting and building up our dispatch center, so we're not trying to add an incredible burden like that into their work. Got it. So, so that wouldâ€¦ so that responsibility still would reside with the police department or the fire

1754
05:17:26.710 --> 05:17:39.690
Boardroom: department. Okay, that's helpful to know. And then I also just wanted to note the sort of issue of a protest or a crowd control situation. That also seems like something that can be addressed through a useâ€¦ through our use policy.

1755
05:17:39.690 --> 05:17:58.160
Boardroom: Yeah, that's correct. There's obviously considerations, you know, absolutely, it's invaluable and important to make sure that what we're doing with a drone is not chilling people's ability to have free speech. It's also really important to me to make sure that the venue in which someone is exercising their right to free speech is safe.

1756
05:17:58.160 --> 05:18:23.100
Boardroom: And so a perfect example is last week, you know, if we had a drone team up, we could have potentially identified somebody that was causing harm, come and remove them from that area, so that the event can go on peacefully, right? So there are spaces and times and ways, and that's why, what I shared about this little stroll is, like, a lot of the use policies say, the drone doesn't go up and start flying unless a felony occurs, or there's some crime of, you know, there's some crime of violence or something.

1757
05:18:23.100 --> 05:18:42.039
Boardroom: they'll go up with a distinct purpose to go and address that, right, and be focused on that, not flying over the whole crowd and filming everybody that's there, right, and catching everybody that's coming in. Okay, so great. So I just want to underscore that, like, our intention here is not to just have general surveillance when there's a large group of people.

1758
05:18:42.040 --> 05:18:52.869

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Boardroom: But, to use it strategically when we know that there could be a threat to public safety. Okay, well, that's all I have, and I look forward to voting on the motion, which is a referral. Thank you very much.

1759
05:18:52.870 --> 05:18:56.249
Boardroom: Thank you, Councilmember Humbert. Yes, thank you, Madam Mayor.

1760
05:18:56.250 --> 05:19:13.150
Boardroom: And, thank you, Councilmember Taplin, for bringing this forward, and the work that you and your office have done on it. And thank you to Chief Lewis and May and Captain Oakies for your presentation, here tonight, and all the questions that you've answered.

1761
05:19:13.190 --> 05:19:23.169
Boardroom: good answers that you've given to very good questions. Iâ€¦ and I'm privileged to be a co-sponsor and thank Councilmember Taplin for asking me.

1762
05:19:23.220 --> 05:19:38.779
Boardroom: to be a co-sponsor. What Iâ€¦ Iâ€¦ I wasâ€¦ got to attend theâ€¦ one of the demonstrations, and what I found really compelling was, the, you know, the story that, I think Captain Okies mentioned, whereâ€¦

1763
05:19:38.780 --> 05:19:42.880
Boardroom: Somebody reported a man with a gun,

1764
05:19:42.880 --> 05:19:59.429
Boardroom: the department dispatched a drone and saw that this idiot was lighting his cigarette with a gun lighter. So the police did show up, and we saw the docudrama version of it, and then we saw the real, kind of, raw footage.

1765
05:19:59.560 --> 05:20:16.280
Boardroom: The police did show up, but they didn't show up with guns drawn, because they knew that he wasn't truly in possession of a gun, and I think they went and talked to him and said that that was a really dumb thing for him to do. That was the sense I got from watching the raw video.

1766
05:20:16.620 --> 05:20:34.649
Boardroom: So I found that really compelling. I also, at this demonstration, at this demo, heard from the presenter there that, you know, the drones can get to a crime scene so quickly, and in one

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instance, the drone got there so quickly, it could take a thermal image of

1767
05:20:34.650 --> 05:20:43.209
Boardroom: the shell casings that were still hot after being ejected from a gun used in the crime, and I think that's amazing, the speed at which these

1768
05:20:43.210 --> 05:20:57.089
Boardroom: these, devices can get to a critical situation. They don't have to stop for stop signs, they don't have to turn corners, they go straight from, you know, they go as the crow flies, and that is a real advantage.

1769
05:20:57.340 --> 05:21:07.070
Boardroom: I understand that people have concerns about privacy and civil liberties, especially in this current political climate.

1770
05:21:07.210 --> 05:21:23.120
Boardroom: And I'm honestly very hard-pressed to see how BPD having access, though, to these particular tools represents an appreciable threat in that respect. If for any reason these tools are being abused, it's gonna be asâ€¦ and this is a panzerism.

1771
05:21:23.220 --> 05:21:30.549
Boardroom: as plain as a drone in the sky. And the Police Accountability Board and the City Council will be able to review such instances.

1772
05:21:30.600 --> 05:21:46.160
Boardroom: And on the positive side, the technology has extraordinary implications for our ability to safely respond to dangerous situations, monitor natural disasters, safely monitor fleeing vehicles, I find that really, really important, and even perform

1773
05:21:46.220 --> 05:22:04.520
Boardroom: search and rescue operations, and detect people where the naked eye, you know, wouldn't be able to do so. Somebody who's lost in the woods, who might be under a, you know, a bush or something. Somebody couldn't see him, but the drone could detect a thermal image. I think that's really important.

1774
05:22:04.970 --> 05:22:20.000
Boardroom: Private citizens, I think it bears noting that private citizens already operate drones within Berkeley for any number of

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reasons. I don't think it makes sense that we would prohibit them for this application, which is very useful and not frivolous.

1775
05:22:20.000 --> 05:22:27.559
Boardroom: Where we actually have a great degree of oversight. We don't have that for private use. So, thank you. I'm gonna be supporting this.

1776
05:22:29.000 --> 05:22:36.409
Boardroom: Thank you, so much for your presentations. I really appreciate you all taking the time to go over it and share all the information with us.

1777
05:22:36.530 --> 05:22:48.049
Boardroom: I also went to one of the drone presentations, so I got a good chance to ask my questions and to understand, you know, how this could potentially be used. I think thatâ€¦

1778
05:22:48.420 --> 05:23:00.749
Boardroom: we're in an interesting time where I expect that this will be a pretty standard piece of police equipment. Like, right now, I know it's not necessarily there, but I expect that this will be the norm.

1779
05:23:00.750 --> 05:23:25.740
Boardroom: And so what is really important to me is that we're really clear about how we want to use it, and I really appreciate, Chief, what you were talking about when it comes to, you know, making sure it aligns with Berkeley's values. And, I also want to acknowledge that there are many folks, especially in this city, who feel really uncomfortable, although we haven't seen much public comment tonight, which was a little surprising to me, that there are many people who are uncomfortable with surveillance.

1780
05:23:25.740 --> 05:23:35.359
Boardroom: and have expressed that to us a number of times in different ways, in different meetings. So I do just want to comment on that, even though those voices aren't really in the room tonight.

1781
05:23:35.390 --> 05:24:00.330
Boardroom: It's really important to me that we're engaging the community while we're developing this policy. I really like your idea, Chief, about having some kind of public presentation. I think that we've had some really challenging meetings recently, partially because I think we could have done more public outreach, and so, you know, I really want to make sure that we're really beingâ€¦ doing very robust outreach there. And of course, I'm sure my Councilmember colleagues and I would be really happy

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1782
05:24:00.330 --> 05:24:04.639
Boardroom: I'm happy to help get the word out about any events that you are interested in having on this.

1783
05:24:08.020 --> 05:24:17.869
Boardroom: Yeah, and so, and of course, I know that part of this, surveillance technology ordinance includes community engagement, and so just generally, when thisâ€¦ when the plan is complete for that.

1784
05:24:17.870 --> 05:24:33.669
Boardroom: We'd really love to give input, and we want to make sure that there's community input, especially from communities of color and unrepresented communities, communities who have typically not had good experiences with the police department, of course, including the LGBTQ community.

1785
05:24:33.670 --> 05:24:58.500
Boardroom: Iâ€¦ this doesn't come up at all, and I know this is not something you were talking about necessarily, but I want to make sure it's really clear that I'm strongly opposed to weapons being on drones, used here in the city of Berkeley. No one's brought that up yet, surprisingly, but I think when most folks think about drones, they're thinking about weapons of war, and so I know there are police departments that are having, weapons on their drones, so I want to make sure it's clear that I'm opposed to that.

1786
05:24:59.600 --> 05:25:13.590
Boardroom: I also want to encourage the, you know, as you all are doing research, Chief, City Attorney, City Manager, that we're looking at how we ensure privacy rights, First and Fourth Amendment, you know, looking at First and Fourth Amendment issues.

1787
05:25:13.610 --> 05:25:23.439
Boardroom: And, want to comment on training being very important in this. I hear you, Chief, what you're saying about this likely being a sworn officer.

1788
05:25:23.510 --> 05:25:39.520
Boardroom: I feel like that sort of, like, undercuts ourâ€¦ our opinions on, like, how this might save us money or staff time, so I just want to look into that a little bit more, because, I think training is really important, and I also like the idea of if it's possible not to be a sworn officer.

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1789
05:25:40.470 --> 05:26:00.699
Boardroom: Let's seeâ€¦ and then when you're doing your research of drones and policies with other jurisdictions, I'd really like you to look at other departments, to see if they've received any citizen complaints to Councilmember O'Keefe's, concern around people feeling uncomfortable with that, or having issues with the drones.

1790
05:26:00.930 --> 05:26:10.650
Boardroom: And yes, if yes, if there have been citizen complaints, how many, what types of complaints, any trend in demographics, of these complaints?

1791
05:26:10.660 --> 05:26:35.530
Boardroom: And then, also would like to know if there are any lawsuits in other cities that have deployed drones, of course, lawsuits about drones, and, how they were resolved. So, that's kind of just, like, a handful of things, but just hopefully really practical, tangible things for you all to look at as you're moving forward in your research. And yeah, again, just want to thank everyone for your questions and for your thoughtful

1792
05:26:35.530 --> 05:26:43.110
Boardroom: remarks, and thank you all so much for your work, and also, to Chief May, thank you for being online.

1793
05:26:43.110 --> 05:26:57.439
Boardroom: I know you're getting left out of some of this conversation, but I appreciate you being here and going over how you think the fire department would use it as well. So, that's it for me, and I know we have a motion on the floor, so I would like to take the roll, please. Thank you.

1794
05:26:57.670 --> 05:27:02.560
Boardroom: Okay, the motion to approve the recommendation,

1795
05:27:02.780 --> 05:27:15.530
Boardroom: Item 31, Councilmember Kisnerwani? Yes. Taplin? Yes. Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? No.

1796
05:27:15.590 --> 05:27:27.359
Boardroom: Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Alright, thank you all very much. I just lost my laptop, but we have also,

1797

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05:27:27.950 --> 05:27:31.960
Boardroom: the, forâ€¦ oh, yes.

1798
05:27:32.440 --> 05:27:36.470
Boardroom: Yes, for any other public comment for items not listed on the agenda.

1799
05:27:38.600 --> 05:27:42.789
Boardroom: Anyone online? Well, there's one hand raised online.

1800
05:27:43.270 --> 05:27:47.729
Boardroom: Phone number ending in 000.

1801
05:27:51.840 --> 05:27:56.269
1510****000: In the memory of the great work of police chief, Josh Butler. He was great.

1802
05:27:56.420 --> 05:28:14.099
1510****000: He saved meâ€¦ saved my life, actually, and my family life, because we had embezzlement in San Francisco store management, and very good prayer for him. He was a great man. Dash butler. Have a good night, and greatâ€¦ let's do the best we can to make City the greatest city it was in the past.

1803
05:28:14.330 --> 05:28:15.909
1510****000: Have a good night. Thank you.

1804
05:28:16.060 --> 05:28:21.159
Boardroom: Thank you, thanks for your comment. Okay, any other public comment?

1805
05:28:23.230 --> 05:28:43.179
Boardroom: Nope. That's it? Nope, that's it? Okay, very good. I will entertain a motion to adjourn. So moved. Second. Second. Okay, is there any opposition to adjournment? Ohâ€¦ oh, I'm sorry. Well, we're actually adjourning our meeting right now, so our meeting is adjourned.

1806
05:28:43.590 --> 05:28:46.079
Boardroom: Thank you all. I'm sorry?

1807
05:28:47.990 --> 05:28:56.969

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Boardroom: Is this the what? Oh, he missed the opportunity for public comment. Yes, I'm so sorry, yeah, you missed the opportunity.

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